# SOLICITATION, OFFER AND AWARD

| 1. THIS CONTRACT IS A RATED ORDER UNDER DPAS (15 CFR 700) | RATING | PAGE 1 OF PAGES 183 |
|---|---|---|

| 2. CONTRACT NO. | 3. SOLICITATION NO. | 4. TYPE OF SOLICITATION | 5. DATE ISSUED | 6. REQUISITION/PURCHASE NO. |
|---|---|---|---|---|
| | W912PL20B0015 | [X] SEALED BID (IFB) [ ] NEGOTIATED (RFP) | 23 Sep 2020 | |

| 7. ISSUED BY | CODE | 8. ADDRESS OFFER TO (If other than Item 7) | CODE |
|---|---|---|---|
| USACE, LOS ANGELES DISTRICT<br>CONTRACTING DIVISION<br>915 WILSHIRE BLVD, SUITE 930<br>LOS ANGELES CA 90017<br>TEL: 213-452-3242<br>FAX: 213-452-4187 | W912PL | See Item 7<br>TEL:<br>FAX: | |

NOTE: In sealed bid solicitations "offer" and "offeror" mean "bid" and "bidder".

## SOLICITATION

9. ~~Sealed offers in original~~ and ~~0~~ ~~copies for furnishing the supplies or services in the Schedule will be received at the place specified in Item 8, or if handcarried, in the depository located in~~ SEE VIRTUAL BID OPENING INSTRUCTIONS IN SECTION L until 02:00 PM (Hour) local time 23 Oct 2020 (Date)

CAUTION - LATE Submissions, Modifications, and Withdrawals: See Section L, Provision No. 52.214-7 or 52.215-1. All offers are subject to all terms and conditions contained in this solicitation.

| 10. FOR INFORMATION CALL: | A. NAME | B. TELEPHONE (Include area code) (NO COLLECT CALLS) | C. E-MAIL ADDRESS |
|---|---|---|---|
| | STANISLAV Y SEKACOV | 213-452-3216 | stanislav.y.sekacov@usace.army.mil |

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## OFFER (Must be fully completed by offeror)

NOTE: Item 12 does not apply if the solicitation includes the provisions at 52.214-16, Minimum Bid Acceptance Period.

12. In compliance with the above, the undersigned agrees, if this offer is accepted within _____ calendar days (60 calendar days unless a different period is inserted by the offeror) from the date for receipt of offers specified above, to furnish any or all items upon which prices are offered at the price set opposite each item, delivered at the designated point(s), within the time specified in the schedule.

| 13. DISCOUNT FOR PROMPT PAYMENT (See Section I, Clause No. 52.232-8) | |
|---|---|

| 14. ACKNOWLEDGMENT OF AMENDMENTS (The offeror acknowledges receipt of amendments to the SOLICITATION for offerors and related documents numbered and dated): | AMENDMENT NO. | DATE | AMENDMENT NO. | DATE |
|---|---|---|---|---|
| | | | | |
| | | | | |

| 15A. NAME AND ADDRESS OF OFFEROR | CODE | FACILITY | 16. NAME AND TITLE OF PERSON AUTHORIZED TO SIGN OFFER (Type or print) |
|---|---|---|---|
| | | | |

| 15B. TELEPHONE NO (Include area code) | 15C. CHECK IF REMITTANCE ADDRESS IS DIFFERENT FROM ABOVE - ENTER SUCH ADDRESS IN SCHEDULE. | 17. SIGNATURE | 18. OFFER DATE |
|---|---|---|---|
| | ☐ | | |

## AWARD (To be completed by Government)

| 19. ACCEPTED AS TO ITEMS NUMBERED | 20. AMOUNT | 21. ACCOUNTING AND APPROPRIATION |
|---|---|---|
| | | |

| 22. AUTHORITY FOR USING OTHER THAN FULL AND OPEN COMPETITION: ☐ 10 U.S.C. 2304(c)( ) ☐ 41 U.S.C. 253(c)( ) | 23. SUBMIT INVOICES TO ADDRESS SHOWN IN (4 copies unless otherwise specified) | ITEM |
|---|---|---|
| | | |

| 24. ADMINISTERED BY (If other than Item 7) | CODE | 25. PAYMENT WILL BE MADE BY | CODE |
|---|---|---|---|
| | | | |

| 26. NAME OF CONTRACTING OFFICER (Type or print)<br>TEL: EMAIL: | 27. UNITED STATES OF AMERICA<br>(Signature of Contracting Officer) | 28. AWARD DATE |
|---|---|---|
| | | |

IMPORTANT - Award will be made on this Form, or on Standard Form 26, or by other authorized official written notice.

Section B - Supplies or Services and Prices

CERT OF CORPORATE PRINCIPAL

**CERTIFICATE OF OFFEROR'S PRINCIPAL**

**(1) IF THE OFFEROR IS PARTNERSHIP OR JOINT VENTURE, LIST FULL NAME OF ALL PARTNERS/ JOINT VENTURERS (Add addendum as necessary):**

| _____ | _____ | _____ |
|---|---|---|
| **(Company Name)** | **(Signature)** | **(Title)** |
| _____ | _____ | _____ |
| **(Company Name)** | **(Signature)** | **(Title)** |
| _____ | _____ | _____ |
| **(Company Name)** | **(Signature)** | **(Title)** |

**(2) IF THE OFFEROR IS A CORPORATION, THE FOLLOWING CERTIFICATION SHOULD BE COMPLETED:**

**CERTIFICATION AS TO CORPORATE PRINCIPAL**

**I, _____, certify that I am the Secretary of the corporation named as principal in the within SF-33; that _____, who signed the SF-33 at Block 16 & 17 on behalf of the principal, was the _____of the corporation; that I know the individual's signature and that his/her signature is genuine; and that said Offer was duly signed, sealed and attested for on behalf of said corporation by authority of its governing body.**

_____
**CORPORATE PRINCIPAL**

**CORPORATE SEAL**

_____
**SECRETARY**

**(3) IF THE OFFEROR IS A LIMITED LIABILITY COMPANY/PARTNERSHIP, LIST FULL NAME OF ALL MANAGERS BELOW (Add addendum as necessary). SIGNATURES BY ALL MANAGERS HERE SIGNIFY THAT THAT THE INDIVIDUAL WHO SIGNED THE OFFER IN BLOCK 16 & 17 OF THE SF-33 HAS THE AUTHORITY TO BIND THE LIMITED LIABILITY COMPANY/PARTNERSHIP.**

| _____ | _____ | _____ |
|---|---|---|
| **(Officer's Name)** | **(Signature)** | **(Title)** |
| _____ | _____ | _____ |
| **(Officer's Name)** | **(Signature)** | **(Title)** |
| _____ | _____ | _____ |
| **(Officer's Name)** | **(Signature)** | **(Title)** |

| ITEM NO | SUPPLIES/SERVICES | QUANTITY | UNIT | UNIT PRICE | AMOUNT |
|---|---|---|---|---|---|
| 0001 | BASE YEAR<br>FFP<br>Provide Pricing in SubClins AA-AE for Base and Options | | | | |
| | | | | NET AMT | |

| ITEM NO | SUPPLIES/SERVICES | QUANTITY | UNIT | UNIT PRICE | AMOUNT |
|---|---|---|---|---|---|
| 0001AA | HVAC MAINTENANCE<br>FFP<br>(APPENDIX A)<br>FOB: Destination | 12 | Months | | |
| | | | | NET AMT | |

| ITEM NO | SUPPLIES/SERVICES | QUANTITY | UNIT | UNIT PRICE | AMOUNT |
|---|---|---|---|---|---|
| 0001AB | | 12 | Months | | |
| | PEST CONTROL<br>FFP<br>(APPENDIX B)<br>FOB: Destination | | | | |
| | | | | NET AMT | |

| ITEM NO | SUPPLIES/SERVICES | QUANTITY | UNIT | UNIT PRICE | AMOUNT |
|---|---|---|---|---|---|
| 0001AC | | 12 | Months | | |
| | GROUNDS MAINTENANCE<br>FFP<br>(APPENDIX C)<br>FOB: Destination | | | | |
| | | | | NET AMT | |

| ITEM NO | SUPPLIES/SERVICES | QUANTITY | UNIT | UNIT PRICE | AMOUNT |
|---|---|---|---|---|---|
| 0001AD | | 12 | Months | | |
| | CUSTODIAL SERVICES<br>FFP<br>(APPENDIX D)<br>FOB: Destination | | | | |
| | | | | NET AMT | |

| ITEM NO | SUPPLIES/SERVICES | QUANTITY | UNIT | UNIT PRICE | AMOUNT |
|---|---|---|---|---|---|
| 0001AE | | 12 | Months | | |

FACILITY MAINTENANCE (Reoccurring)
FFP
Reoccurring Preventive Maintenance
(APPENDIX E)

FOB: Destination

NET AMT

| ITEM NO | SUPPLIES/SERVICES | QUANTITY | UNIT | UNIT PRICE | AMOUNT |
|---|---|---|---|---|---|
| 0001AF | | | Job | | |

FACILITY MAINTENANCE (Service Requests)
FFP
Service Requests (AMOUNT OF FUNDING WILL BE DETERMINED BY THE GOVERNMENT FOR THIS CLIN AND WILL BE NEGOTIATED AS NEEDED)
(APPENDIX E)

FOB: Destination

NET AMT

| ITEM NO | SUPPLIES/SERVICES | QUANTITY | UNIT | UNIT PRICE | AMOUNT |
|---|---|---|---|---|---|
| 0002 | Option Year 1<br>FFP<br>Provide Pricing in SubClins AA-AE | | | | |
| | | | | NET AMT | |

| ITEM NO | SUPPLIES/SERVICES | QUANTITY | UNIT | UNIT PRICE | AMOUNT |
|---|---|---|---|---|---|
| 0002AA | HVAC MAINTENANCE<br>FFP<br>(APPENDIX A)<br>FOB: Destination | 12 | Months | | |
| | | | | NET AMT | |

| ITEM NO | SUPPLIES/SERVICES | QUANTITY | UNIT | UNIT PRICE | AMOUNT |
|---|---|---|---|---|---|
| 0002AB | PEST CONTROL<br>FFP<br>(APPENDIX B)<br>FOB: Destination | 12 | Months | | |
| | | | | NET AMT | |

| ITEM NO | SUPPLIES/SERVICES | QUANTITY | UNIT | UNIT PRICE | AMOUNT |
|---|---|---|---|---|---|
| 0002AC | GROUNDS MAINTENANCE<br>FFP<br>(APPENDIX C)<br>FOB: Destination | 12 | Months | | |

NET AMT

| ITEM NO | SUPPLIES/SERVICES | QUANTITY | UNIT | UNIT PRICE | AMOUNT |
|---|---|---|---|---|---|
| 0002AD | CUSTODIAL SERVICES<br>FFP<br>(APPENDIX D)<br>FOB: Destination | 12 | Months | | |

NET AMT

| ITEM NO | SUPPLIES/SERVICES | QUANTITY | UNIT | UNIT PRICE | AMOUNT |
|---|---|---|---|---|---|
| 0002AE | FACILITY MAINTENANCE (Reoccurring)<br>FFP<br>Reoccurring Preventive Maintenance<br>(APPENDIX E)<br><br>FOB: Destination | 12 | Months | | |

NET AMT

| ITEM NO | SUPPLIES/SERVICES | QUANTITY | UNIT | UNIT PRICE | AMOUNT |
|---|---|---|---|---|---|
| 0002AF | | | Job | | |

FACILITY MAINTENANCE (Service Requests)
FFP
Service Requests (AMOUNT OF FUNDING WILL BE DETERMINED BY THE GOVERNMENT FOR THIS CLIN AND WILL BE NEGOTIATED AS NEEDED)
(APPENDIX E)

FOB: Destination

NET AMT

| ITEM NO | SUPPLIES/SERVICES | QUANTITY | UNIT | UNIT PRICE | AMOUNT |
|---|---|---|---|---|---|
| 0003 | | | | | |

Option Year 2
FFP
Provide Pricing in SubClins AA-AE

NET AMT

| ITEM NO | SUPPLIES/SERVICES | QUANTITY | UNIT | UNIT PRICE | AMOUNT |
|---|---|---|---|---|---|
| 0003AA | HVAC MAINTENANCE<br>FFP<br>(APPENDIX A)<br>FOB: Destination | 12 | Months | | |
| | | | | NET AMT | |

| ITEM NO | SUPPLIES/SERVICES | QUANTITY | UNIT | UNIT PRICE | AMOUNT |
|---|---|---|---|---|---|
| 0003AB | PEST CONTROL<br>FFP<br>(APPENDIX B)<br>FOB: Destination | 12 | Months | | |
| | | | | NET AMT | |

| ITEM NO | SUPPLIES/SERVICES | QUANTITY | UNIT | UNIT PRICE | AMOUNT |
|---|---|---|---|---|---|
| 0003AC | GROUNDS MAINTENANCE<br>FFP<br>(APPENDIX C)<br>FOB: Destination | 12 | Months | | |
| | | | | NET AMT | |

| ITEM NO | SUPPLIES/SERVICES | QUANTITY | UNIT | UNIT PRICE | AMOUNT |
|---|---|---|---|---|---|
| 0003AD | | 12 | Months | | |
| | CUSTODIAL SERVICES<br>FFP<br>(APPENDIX D)<br>FOB: Destination | | | | |
| | | | | NET AMT | |

| ITEM NO | SUPPLIES/SERVICES | QUANTITY | UNIT | UNIT PRICE | AMOUNT |
|---|---|---|---|---|---|
| 0003AE | | 12 | Months | | |
| | FACILITY MAINTENANCE (Reoccurring)<br>FFP<br>Reoccurring Preventive Maintenance<br>(APPENDIX E)<br><br>FOB: Destination | | | | |
| | | | | NET AMT | |

| ITEM NO | SUPPLIES/SERVICES | QUANTITY | UNIT | UNIT PRICE | AMOUNT |
|---|---|---|---|---|---|
| 0003AF | | | Job | | |

FACILITY MAINTENANCE (Service Requests)
FFP
Service Requests (AMOUNT OF FUNDING WILL BE DETERMINED BY THE GOVERNMENT FOR THIS CLIN AND WILL BE NEGOTIATED AS NEEDED)
(APPENDIX E)

FOB: Destination

NET AMT

| ITEM NO | SUPPLIES/SERVICES | QUANTITY | UNIT | UNIT PRICE | AMOUNT |
|---|---|---|---|---|---|
| 0004 | | | | | |

Option Year 3
FFP
Provide Pricing in SubClins AA-AE

NET AMT

| ITEM NO | SUPPLIES/SERVICES | QUANTITY | UNIT | UNIT PRICE | AMOUNT |
|---|---|---|---|---|---|
| 0004AA | | 12 | Months | | |

HVAC MAINTENANCE
FFP
(APPENDIX A)
FOB: Destination

NET AMT

| ITEM NO | SUPPLIES/SERVICES | QUANTITY | UNIT | UNIT PRICE | AMOUNT |
|---|---|---|---|---|---|
| 0004AB | | 12 | Months | | |
| | PEST CONTROL<br>FFP<br>(APPENDIX B)<br>FOB: Destination | | | | |
| | | | | NET AMT | |

| ITEM NO | SUPPLIES/SERVICES | QUANTITY | UNIT | UNIT PRICE | AMOUNT |
|---|---|---|---|---|---|
| 0004AC | | 12 | Months | | |
| | GROUNDS MAINTENANCE<br>FFP<br>(APPENDIX C)<br>FOB: Destination | | | | |
| | | | | NET AMT | |

| ITEM NO | SUPPLIES/SERVICES | QUANTITY | UNIT | UNIT PRICE | AMOUNT |
|---|---|---|---|---|---|
| 0004AD | | 12 | Months | | |
| | CUSTODIAL SERVICES<br>FFP<br>(APPENDIX D)<br>FOB: Destination | | | | |
| | | | | NET AMT | |

| ITEM NO | SUPPLIES/SERVICES | QUANTITY | UNIT | UNIT PRICE | AMOUNT |
|---|---|---|---|---|---|
| 0004AE | | 12 | Months | | |
| | FACILITY MAINTENANCE (Reoccurring)<br>FFP<br>Reoccurring Preventive Maintenance<br>(APPENDIX E)<br><br>FOB: Destination | | | | |
| | | | | NET AMT | |

| ITEM NO | SUPPLIES/SERVICES | QUANTITY | UNIT | UNIT PRICE | AMOUNT |
|---|---|---|---|---|---|
| 0004AF | | | Job | | |

FACILITY MAINTENANCE (Service Requests)
FFP
Service Requests (AMOUNT OF FUNDING WILL BE DETERMINED BY THE GOVERNMENT FOR THIS CLIN AND WILL BE NEGOTIATED AS NEEDED)
(APPENDIX E)

FOB: Destination

NET AMT

| ITEM NO | SUPPLIES/SERVICES | QUANTITY | UNIT | UNIT PRICE | AMOUNT |
|---|---|---|---|---|---|
| 0005 | | | | | |

Option Year 4
FFP
Provide Pricing in SubClins AA-AE

NET AMT

| ITEM NO | SUPPLIES/SERVICES | QUANTITY | UNIT | UNIT PRICE | AMOUNT |
|---|---|---|---|---|---|
| 0005AA | | 12 | Months | | |

HVAC MAINTENANCE
FFP
(APPENDIX A)
FOB: Destination

NET AMT

| ITEM NO | SUPPLIES/SERVICES | QUANTITY | UNIT | UNIT PRICE | AMOUNT |
|---|---|---|---|---|---|
| 0005AB | | 12 | Months | | |
| | PEST CONTROL<br>FFP<br>(APPENDIX B)<br>FOB: Destination | | | | |
| | | | | NET AMT | |

| ITEM NO | SUPPLIES/SERVICES | QUANTITY | UNIT | UNIT PRICE | AMOUNT |
|---|---|---|---|---|---|
| 0005AC | | 12 | Months | | |
| | GROUNDS MAINTENANCE<br>FFP<br>(APPENDIX C)<br>FOB: Destination | | | | |
| | | | | NET AMT | |

| ITEM NO | SUPPLIES/SERVICES | QUANTITY | UNIT | UNIT PRICE | AMOUNT |
|---|---|---|---|---|---|
| 0005AD | | 12 | Months | | |
| | CUSTODIAL SERVICES<br>FFP<br>(APPENDIX D)<br>FOB: Destination | | | | |
| | | | | NET AMT | |

| ITEM NO | SUPPLIES/SERVICES | QUANTITY | UNIT | UNIT PRICE | AMOUNT |
|---|---|---|---|---|---|
| 0005AE | | 12 | Months | | |
| | FACILITY MAINTENANCE (Reoccurring)<br>FFP<br>Reoccurring Preventive Maintenance<br>(APPENDIX E)<br><br>FOB: Destination | | | | |
| | | | | NET AMT | |

| ITEM NO | SUPPLIES/SERVICES | QUANTITY | UNIT | UNIT PRICE | AMOUNT |
|---|---|---|---|---|---|
| 0005AF | | | Job | | |

FACILITY MAINTENANCE (Service Requests)
FFP
Service Requests (AMOUNT OF FUNDING WILL BE DETERMINED BY THE GOVERNMENT FOR THIS CLIN AND WILL BE NEGOTIATED AS NEEDED)
(APPENDIX E)

FOB: Destination

NET AMT

BID SUMMARY

**INSTRUCTIONS TO BIDDERS**

When submitting your proposal also include a proposal summary of the base year price, Price of all options and a total of base and all options

**Bid Summary :**

| **Contract Period** | **Price** |
|---|---|
| Total Base Year | |
| Option Year One | |
| Option Year Two | |
| Option Year Three | |
| Option Year Four | |
| **Total (Base and All Option Years)** | |

Section C - Descriptions and Specifications

SCOPE OF WORK

Section C - SOW

# INDEX STATEMENT OF WORK

Statement of Work

Appendix A – HVAC
Appendix B - Pest Control
Appendix C - Grounds Maintenance
Appendix D – Custodial Services
Appendix E – Facility Maintenance
Appendix F – Quality Assurance Surveillance Plan (QASP)
Appendix G – CMRA Contractor Manpower Reporting Application Input and Review Responsibilities

**SECTION C – Statement of Work**

**1 INTRODUCTION**

**1.0** This Installation Support Contract provides the U.S. Army Corps of Engineers (USACE) with the capability to execute operation and maintenance (O&M) services and minor construction for Defense Logistics Agency, Defense Distribution Depot Center. O&M activities include, but are not limited to preventative maintenance, repairs, custodial services, painting, troubleshooting existing systems, servicing existing operations, emergency services, landscaping, pest control and limited construction activities not to exceed $50,000.00. The Contractor will be required to perform all stated services within this contract for a variety of federal customers. The facilities to be serviced under this scope are: 479, 660, 656, 657, 658, 659, 3322, 3483, 3581, 3641, two guard houses on Naval Station compound, and one guard house on Naval Air Station North Island.

**1.1** The technical requirements specified in this statement of work are intended to provide requirements for execution of the contract and general understanding of the functions that the Contractor may be required to perform. The Contractor will receive from the USACE a complete scope of work for the contract or plans and specifications for each project.

**1.2** All work under this contract will be performed at the following two locations: Naval Base San Diego
3581 Cummings Road
San Diego, CA 92136

Naval Air Station North Island 656 Rogers Road
San Diego, CA 92135

The primary USACE POC for all work will be 2LT Fenwick, at cell (858) 302-6001. The alternate USACE POC will be Jared Rowley at phone (858) 430-2805 and at cell 858-249-9366.

2. **DESCRIPTION OF WORK**

2.1 **General & Supervision** - The Contractor shall furnish all supervision, labor, transportation, tools, materials, supplies, vehicles, and equipment necessary to properly perform the work defined below including any formal modifications. The Contractor may be tasked with service requests for services such as repairs, and/or replacement of equipment, materials, and supplies for general facility maintenance. The Contractor must be able to respond in a timely manner to these service requests.

2.2 **Heating, Ventilation, and Air Conditioning (HVAC)** - The Contractor shall provide all personnel, equipment, materials, tools, supervision, facilities, and transportation necessary to perform HVAC maintenance and on site emergency repair for all equipment as defined in the Statement of Work (SOW) at the end of this section. The contract may be modified to increase SOW and add additional equipment as may be required.

2.3 **Pest Control** – The Contractor shall perform to control and eradicate and prevent infestation of pests in plant beds, shrubs, hedges, trees and

fence perimeters and interior of buildings.

2.4 **Ground Maintenance** - The Contractor shall furnish all labor, equipment, tools, transportation, permits and insurance to perform all services required under this agreement.

2.5 **Custodial Services** – The Contractor shall furnish all labor, equipment, tools, transportation, materials, and supervision necessary to perform custodial/janitorial services for various federal agencies. Custodial services include cleaning, vacuuming, polishing, dusting, trash removal, bathroom details, mopping, and any other activity associated with custodial/janitorial services.

2.6 **Facility Maintenance** - The Contractor shall provide all personnel, equipment, materials, tools, supervision, transportation and facilities required to perform day-to-day maintenance alterations, and renovations to buildings. See Appendix E for further details.

2.6.1 **Services** are to be on-call, by issuing service requests. The Contractor may be tasked with service requests for services such as repairs, and/or replacement of equipment, materials, and supplies for general facility maintenance. Labor rates will be subject to the Service Wage Act and Davis-Bacon Wage Determinations.

2.6.2 **Alterations** are defined as small projects where you might change the configuration of a system or structure and might or might not have a detailed SOW. Alterations consist of improvements, changes, modifications, and additions to existing systems or structures. Alterations above the micro-purchase threshold of $2,000 (construction) $2,500 (services) requires Contracting Officer approval prior to performance.

2.6.3 **Renovations** for more complex projects may require a statement of work and possibly have a sketch. In most cases, these will be addressed as modifications to the contract. Renovations above the micro-purchase threshold of $2,000 (Construction) $2,500 (services) require Contracting Officer approval prior to performance.

2.6.4 **Minor construction** activities include alterations, renovations, and modifications to existing facilities and shall be issued using service requests. These activities will be limited $50,000.00. If it is determined that a maintenance ticket will exceed this amount, the request will be reviewed by the Contracting Officer to determine if a maintenance ticket is the appropriate contracting method or if a different contracting action is necessary. The Contractor must adhere to all applicable contract clauses for firm fixed price construction contracts. Construction activities will be subject to firm-fixed price negotiations. Approval will be subject to the Contracting Officer.

2.6.5 **General Facility Maintenance** tasks will include, but not be limited to:

2.6.5.1 Building electrical systems: Repair or modifications to circuits, power panels, lighting workstations, motorized cargo doors, etc.

2.6.5.2 Plumbing systems: Repairs to drains, automatic and manual flushometers and faucets, water leaks, and pipe repairs. Replacement of the same items.

2.6.5.3 Mechanical systems: Repairs to HVAC, refrigeration leaks, Freon, programmable temperature controls, roof fans, window type A/C units, and whole building refrigeration equipment.

2.6.5.4 Structural systems: Carpentry and painting, building with steel stud construction, laying/replacing vinyl floor tile, adjusting doors to fit/close properly, move furniture, install workstations, repair/replace doorknobs, small painting, repair drywall and suspended ceilings.

2.6.5.5 Modifications such as office renovations, installation of new equipment, removal of old equipment, alterations to inside floor plans.

2.7 **Preventive Maintenance (PM)** - PM includes, but is not limited to: inspections, testing, cleaning, calibration, lubrication, alignment, adjustment, and operational checks necessary to maintain the particular piece of equipment operational or, determine its operational or, determine its operational status and detect incipient failures or malfunctions. PM shall include reasonable troubleshooting time.

2.8 **Repairs** - Restoration of the equipment to operational condition so that is may be effectively utilized for the designated purpose. Overhaul, physical restoration, rebuilding, and replacement of components, parts, mechanisms or materials that have deteriorated by action of the elements of usage may affect repair. Repairs shall be identified as part of the scheduled PM services. Repairs identified during regular PM maintenance may be addressed using service requests or contract modification.

2.9 **Cleaning** - Cleaning as required herein shall include complete removal of harmful or undesirable dirt, scale deposits, dust, loose paint, obstructions, foreign matter, vegetation, algae, corrosion, sedimentation, and accumulations of any type on mechanical, electrical or structural parts. Cleaning shall include but not be limited to the use of solvents, chemicals, application of pressure (air, steam, water, etc.), vacuum, scrubbing, scraping, wire brushing, etc. All

cleaning solvents and chemicals shall meet all Federal and State regulations prior to being submitted to the COR for approval. All cleaning, chemicals and solvents shall not damage or alter Government equipment.

2.10 **Emergency Service and Emergency Repair Service** - The Contractor shall respond to service calls for these services only when placed by the Contracting Officer or persons identified as authorized to make calls. Emergency services include service between scheduled inspections, maintenance, and cleaning, and is for the purpose of diagnosis or repair of malfunctioning equipment and the resetting of controls. The Customer may notify the Contractor of the urgency and emergency of services. Emergency services will be treated as a service request item, which may include a contract modification or credit card payment. **THE CONTRACTOR MAY NOT PROCEED TO WORK ON EMERGENCY SERVICES WITHOUT APPROVAL FROM BOTH THE GOVERNMENT AND CUSTOMER.** In the event that the Contractor proceeds prior to approval for emergency service calls, the Contractor is proceeding at their own risk and the Government is in no way obligated to pay for work that was completed by the Contractor.

## 3 DEFINITIONS/ACRONYMS

3.1 **Contracting Officer (CO)** – The Government Official responsible for the execution and administration of a contract on behalf of the Government.

3.2 **Contracting Officer's Representative (COR)** – The Government Official designated by the CO and responsible for performance, monitoring, and quality assurance on behalf of the Government.

3.3 **Contractor's Representative (Site Manager)** – An individual assigned by the Contractor who shall have full authority to act for the Contractor on all contract matters that relate to the daily operations of the contract. The Contractor Representative shall be a single point of contact for all functional, technical, and contract-related services. The Contractor Representative must be an on-site, full-time employee physically located at the project site/location at all times.

3.4 **Federal Acquisition Regulation (FAR)** – The primary regulation for use by all federal executive agencies in their acquisition of supplies and services with appropriated funds. The FAR is issued in the Code of Federal Regulations (CFR) in Title 48, Chapter 1 and is published in the daily issue of the Federal Register. The website for on-line reference is http://www.acquisition.gov/far/

3.5 **On-Site Support** – Work performed by the Contractor on Government premise, whereby the Contractor's personnel may be provided with Government resources such as office space, equipment, and supplies to perform the work dependent upon the customer's needs and physical constraints. Under this contract, the work is O&M Services.

3.6 **Performance Evaluation/Metrics** – The Government's record of the Contractor's performance under the contract, to be used for future source selection purposes by other federal departments and agencies.

3.7 **Performance Standard** – The Contractor's performance level required by the Government. This is also known as the acceptable quality level (AQL). The AQL is defined as the level of effort, effectiveness, and efficiency to complete the tasks described within this contract.

3.8 **Quality Assurance** – Surveillance undertaken by the Government to ensure that products or services provided by the Contractor are within the acceptable quality level for a given performance requirement, and for the assessment of the Contractor's quality control.

3.9 **Quality Control** – Actions taken by the Contractor to control the production of supplies and services to ensure that they conform to the performance requirements and standards. Quality control procedures are outlined in a Quality Control Plan (QCP), developed by the Contractor.

3.10 **Cost Control Plan** – The Contractor plan explaining how material and equipment cost will be monitored, verified, tracked, record, and controlled. This plan is described more in Contractor's Quality Control Section.

## 4 GOVERNMENT FURNISHED PROPERTY AND SERVICES

4.1 The government shall provide only the facilities, equipment, materials, and/or services specifically listed within the individual statements of work for each task.

4.2 The government shall provide and pay for the normal provision of electricity, water, sewage disposal and natural gas required to perform the work required for this task order.

4.3 To the extent they are available, the Government shall grant access to any existing manuals, reports, and drawings for the buildings included in this task order.

## 5 CONTRACTOR FURNISHED ITEMS AND SERVICES

5.1 The Contractor shall furnish all supervision, labor, transportation, tools, materials, supplies, vehicles, and equipment necessary to properly perform the work defined in this task order including any formal modifications.

5.2 All electrical equipment repair or test equipment used by the Contractor shall be battery operated or UL approved and rated for 120 volt, 60 Hz, and shall have a functional ground plug. This equipment must operate using existing building circuits. It shall be the responsibility of the Contractor to prevent the operation, or attempted operation, or electrical equipment or combinations of equipment, which require power exceeding the capacity of existing building circuits.

5.3 All replacement parts shall be those of the original manufacturer or equal, and shall fit the equipment without modification. The Contractor shall have and maintain on hand locally, an inventory of the repair parts sufficient for normal maintenance and repairs.

5.4 The Contractor shall utilize and supply biodegradable cleaning and other materials. The Contractor shall provide the COR with a sample of all proposed materials and Material Safety Data Sheets (MSDS) for each type of material used. None of the materials shall be used until approved in writing by the Safety Officer.

5.5 The Contractor shall not be required under this contract to perform and/or furnish at their expense, parts required by reason of negligence or misuse of equipment by persons other than the Contractor, his representatives and employees, or by reason of any other cause beyond the control of the Contractor, except ordinary wear and tear. The Contractor may be required to install new equipment attachments as recommended or required by insurance companies or by federal, state, municipal, or other government authorities. The Contractor shall provide the COR with a detailed outline and cost breakdown of the new equipment attachments for approval prior to scheduling installation.

5.6 The Contractor shall take all necessary precautions to insure against damage to existing structures, fixtures, finishes, etc. Damage caused by the negligent actions of the Contractor and/or any of their subcontractors shall be repaired or replaced, as approved by the Contracting Officer, at no additional cost to the government.

5.7 The Contractor shall use only STATE AND FEDERAL ENVIRONMENTAL PROTECTION AGENCY (EPA) APPROVED CHEMICALS AND MATERIALS. The Contractor shall provide materials safety data sheets for all chemicals and materials used. Disposal of chemicals and materials shall be in accordance with State and Federal EPA regulations. The Contractor shall not use any chemicals and materials until approved by the Contracting Officer. The Contractor may request, in writing, to used, if available, on-site hazardous waste collection site for disposal of Government purchased hazardous material. The Contractor must obtain prior approval from both the customer and Government before using such on-site disposal areas.

## 6 GENERAL CONTRACT REQUIREMENTS/INFORMATION

6.1 The contract will have one (1) year base period with four (4) one (1) year option periods.

6.2 Individual service requests will be initiated throughout the contract by the Contracting Officer (KO) or Contracting Officer's Representative (COR). Service request will be issued in writing to the Contractor. Service request consist of various general facility maintenance tasks such as

installation, placement, improvements, additions, renovations, and upgrades to the facility. The complexity ranges from relatively minor work to labor extensive, long duration tasks.

6.2.1 The Contractor must assess each service request and make recommendations to resolve the customer's requests in a timely manner. The Contractor will provide direct supervision and inspection of the work completed from each service request. In the event that the service request may exceed the expertise or technical ability of the Contractor, it is the responsibility of the Contractor to notify the Government of any potential issues and/or problems. Service requests must be assessed, evaluated, and proposed within a reasonable amount of time for approval by the Government and customer. Reasonable amount of time is assessed as response time. (See 8.8, Contractor's Quality Control section).

6.2.2 Facility Material includes materials that the Contractor may have to provide to complete service calls. Typical materials associated with service calls includes, but not limited to complex parts to maintain existing equipment, large quantities of supplies associated with assessing a service request, and bulk items for renovations and/or modifications to existing equipment, or facility. Typical materials associated with service requests includes parts, light bulbs, custodial items, paint, Freon, belts, filters, lumber, glass, doors, nails, bolts, lighting fixtures, door knobs, tires, bicycle parts, plumbing fixtures, carpet, office supplies, and any other items necessary to maintain existing systems.

6.2.3 Typical Facility Equipment may include various man lifts necessary for access to maintain, repair, install, or replace facility, air compressors, forklifts, pressure washer, sewer auger, pneumatic chipping tools, concrete cutting equipment, trench compactors, scaffolding, and hand held power tools.

6.2.4 The Contractor is accountable for maintaining, tracking, and documenting each service request. The Contractor must maintain, store, file, and if requested provide all copies of invoices, and/or receipts for costs associated with service request. The Contractor must keep a copy of all such invoices on site at the customer's location for review by the Government at any time.

6.2.5 Payment for approved service request will be made under one contract line item for Facility Maintenance:

6.2.5.1 SERVICE REQUEST

**NOTE:** The Contractor is not entitled to the set lump sum contract amount specified herein this contract. The lump sum or "pool" is designated to pay for the indefinite delivery/indefinite quantity portion of Facility Maintenance following the time and material contractual provisions. This "pool" is set for the payment of approved service requests.

6.2.6 Facility Maintenance CLIN is service requests which involve maintenance or minor construction activities. These requests are subject to the Davis-Bacon Wage Determinations.

6.2.7 Proposed hours will be evaluated using Means, past service request, and previous type of work. Hours will be subject to negotiations. Labor is subject to the negotiated handling fee.

6.2.8 Material and Equipment are subject to a negotiated handling fee. Markups permitted for this category include the Materials Handling Cost pursuant to FAR 16.601(b)(2). No additional profit shall be allowed for this category.

6.2.9 Any individual or combined reimbursable cost exceeding $2,500.00 shall utilize competition. The Contractor certifies, by acceptance of this contract, that it shall obtain prices consistent with only properly allowable expenses and at prices available in the industry to the suppliers' best customer, including any rebates or refunds.

6.3 The customer may increase or decrease tasks at any time throughout this contract. Such changes shall warrant a contractual modification. Modifications to this contract shall be made in accordance with Changes Clause (FAR 52.243-4). The Government reserves the right to add or delete work stated within this Statement of Work.

## 7 PERFORMANCE REQUIREMENTS

7.1 The Contractor's achievement of performances objectives described in the SOW shall conform to the performance thresholds and industry standards. The Contractor shall fulfill the specified performance requirements as follows. Detailed tasks and services are provided in the Appendices of this SOW.

7.1.1 HVAC Services
7.1.2 Pest Control Interior & Exterior
7.1.3 Ground Maintenance
7.1.4 Custodial Services
7.1.5 Facility Maintenance

7.2 The Contract Line Items are included in the pricing schedule. These services must be accomplished in a timely and efficient method with minimal disruption to the customer. The Contractor may obtain subcontractors to complete these tasks. The Contractor will maintain and track all expenses.

7.3 It is the responsibility of the Contractor to notify the Government when funds are low or insufficient to complete these tasks. The Contractor may not proceed with any work knowing that the line item does not contain sufficient funding for the work. In the event that the Contractor exceeds the dollar amount on the line items the Contractor is proceeding at their own risk and the Government is in no way obligated to pay for work that was completed by the Contractor.

7.4 The Contractor must provide for a Contractor's Representative (Site Manager). The Site Manager (SM) shall have full authority to act for the Contractor on all contract matters that relate to the daily operations of the contract. The SM shall be a single point of contact for all functional, technical, and contract-related services. The SM must be an on-site, full-time employee physically located at the project site/location at all times to deal with the daily operations and assist the customer with assessing service requests. The SM must be granted authority to assess, solicit, propose, and negotiate service requests to maintain response times. The SM must also be able to assess current workloads and Contractor's staffing capacity.

7.5 The Contractor must provide verification that the service work has been completed and is acceptable to the customer. Verification includes inspections, testing, balancing, re-work, follow-ups, approval, documentation and acceptance. The Contractor is responsible for all subcontractors performing services to the customer. The Contractor shall maintain control of all subcontractors and evaluate each subcontractor on their performance.

7.6 The Contractor may request progress payments once a month for costs actually incurred. Copies of all supporting documentation shall accompany public Vouchers, including indirect cost rates. The Government will make payments in accordance with the clause "Allowable Cost and Payment". Services will follow a 30-day payment process within the Government (See FAR52.232-25, Prompt Payment).

## 8.0 CONTRACTOR QUALITY CONTROL

**8.1** Contractor Quality Control (CQC) is the means by which the Contractor ensures that all work, including that of subcontractors, complies with the contract requirements. The Contractor is responsible for quality control and shall establish an effective quality control system. The Contractor shall establish and maintain a complete quality control plan in accordance of FAR52.246-1, Contractor Inspection Requirements.

**8.2** The Contractor shall prepare a contractor quality control (CQC) plan and be provided to the Government for review and acceptance. The CQC plan must be submitted prior to commencing any on-site work. The CQC plan is a living document and must be updated to reflect any recommendations, suggestions, personnel changes, and subcontractors.

**8.3** The Contractor shall prepare a Cost Control Plan (CCP), which documents the procedures in tracking, maintaining, verifying, and controlling fair and reasonable costs associated with materials and equipment. Material and Equipment costs are directly cost reimbursable with associated handling fee. At any time, the

Government may audit the records of the Contractor to determine if proposed material and equipment costs are verifiable as proposed within any service request.

**8.4** The Contractor shall provide daily reports of services provided each day, along with any complaints, issues, questions, and/or concerns. The daily reports can be packaged and submitted on a weekly basis, however, each daily report must be completed by 10:00 AM the next working day. Daily reports do not constitute acceptance, approval, or direction from the Government to the Contractor, nor does it relieve any responsibility of the Contractor. In the event that a problem occurs, it is the responsibility of the Contractor to notify the Government immediately of the problem. Notification may consist of fax, e-mail, certified mail, courier service, and/or telephone conversation.

**8.5** It is the responsibility of the Contractor to coordinate with customer any subcontractors, labors, and field personnel who shall be working on the Customer's site location. In the event that Contractor's personnel, subcontractor's, and/or labors are not approved on the site, the Contractor shall not allow those people to work at the site. The Contractor must notify the Government of any such actions for further review.

**8.6** The Contractor must monitor and log all activities on a daily basis and document with daily reports. The Contractor is responsible to inspect, evaluate, recommend, and accept all work performed under this contract. The Contractor shall respond to customer complaints in an appropriate amount of time. Appropriate amount of time is defined the amount of time associated with evaluating, assessing and resolving the complaint to the customer's satisfaction. The appropriate amount of time is to resolve most complaints is within **24 hours** of notification. Notification may consist of fax, e-mail, certified mail, courier service, telephone conversation, and/or customers written complaint. In the event that the customer's complaints are not resolved to the customer's satisfaction, the Government reserves the right to direct the Contractor to respond to the customer's issues. Appropriate amount of time for emergency and urgent complaints follows response time (See 8.8).

**8.7** The Contractor is responsible for ensuring that service requests, service work, custodial services, HVAC maintenance, refrigeration services, pest control, and ground maintenance are inspected, and accepted for all task as described in the Appendices and pricing schedule. The Contractor shall monitor these activities on a daily basis and resolve any issues, or complaints. It is the responsibility of the Contractor to notify the Government of ALL issues and complaints.

**8.8** The Contractor must provide the following response times for service requests, service calls, custodial issues, HVAC work, pest control, refrigeration services, facility and ground maintenances.

| Response Time: Service calls may be categorized as | |
|---|---|
| Emergency: Threat to health and safety | Respond within four hours. Must be corrected/controlled immediately |
| Urgent: System failure/Operational shutdown | Respond within 24-hours. Must be corrected same day |
| Routine | Response can be scheduled. Correction as determined at time of call |

## 9.0 GOVERNMENT QUALITY ASSURANCE

**9.1** Government surveillance shall be done in accordance with standard inspection procedures (FAR 52.246, Quality Assurance, provisions and clauses for FAR Part 46), including review of submittals, service requests, customer comments or complaints, and observation of services performed or products supplied.

**9.2** Customer Input will also be used as a method of surveillance. The Government will use customer input as a factor for Contractor's Performance Rating.

**9.3** Quality Assurance (QA) includes visual observation of mechanical, custodial and ground maintenance work. Separate inspections will occur for each service request work. The customer may or may not be involved with

these inspections. QA also includes verification of fair and reasonable cost associated with service request items. This verification involves use of Means Cost Data, phone interviews, local pricing data, and quotations for other suppliers and/or contractors.

**9.4** Minimum requirements for each major task is as follows:

HVAC – Services are working to maintain a consistent temperature range with no valid complaints meeting specific customer constraints.
Pest Control – Services are regularly provided with no valid complaints.
Ground Maintenance – Scheduled services are completed as required with no valid complaints from the customer.
Custodial Services – Delivery of timely services with scheduled custodial maintenance with no valid complaints from the customer.
Facility Maintenance – Service requests are evaluated, assessed, proposed, initiated, and completed within a timely manner with no valid complaints.

Visual observations will be conducted during each QA inspection. When complaints occur, a QA inspection will be conducted with the Contractor to correct the deficiency and ensure that the Contractor maintains an acceptable performance level.

## 10.0 CONTRACTOR'S PERFORMANCE OBJECTIVE

**10.1** Performance Objectives are the required level of services described in the SOW, Performance Objectives. The Contractor is required to perform at Acceptable Quality Levels (AQL) at all times. It is the responsibility of the Contractor to achieve all AQLs. During QA site visits, the Contractor will be notified on performance progress based on AQL, and customer input.

**10.2** The Contractor will be rated, evaluated, and documented by several factors such as timeliness, quality of services, number of complaints, efficiency of work, and control of contractor's employees or subcontractor's. The Government shall rate each major task of Custodial Services individually, such as office space cleaning, flooring, restrooms, clean rooms, and IQ requests. Each performance assessment will be documented and submitted to the Contractor for notification and/or review. This documentation constitutes official record and may be considered past performance information. All performance will be documented whether it is acceptable or unacceptable in accordance with the Contractor's Performance Matrix.

**10.3** A final rating will be conducted at the end of each contract period. The rating will be based on services, performance standards, acceptable quality levels (AQL), and weighted averages. Ratings will be used to determine the final performance evaluation for the Contractor for the contract.

**10.4** The Contractor will be given a factor, which will be applied to each of the major tasks. The maximum percentage is 100%. A factor between ratings may be applied to the Contractor's rating if performance falls between rating scales. The following is the rating procedures:

10.4.1 1 – Excellent quality of services with no valid complaints, which the Contractor responded in a timely manner to all services with no disruption in services.

10.4.2 0.9– Outstanding quality of services with no valid complaints, which the Contractor responded most of the time in a timely manner with no disruption in services.

10.4.3 0.8 – High level of services with minimal complaints, which were resolved within a timely manner with minimal disruption in services.

10.4.4 0.7– Level of Services performed at the AQL with few complaints in which the Contractor resolved with assistance from the Government and few services repeated to customer's satisfaction.

10.4.5 0.6 – Level of Services are below adequate with much assistance from the Government to resolve customer's issues/concerns/problems with disruption in services noticeable to customer.

10.4.6 0.5 – Unacceptable Services with numerous complaints and customer input. Additional retainage may be necessary to provide adequate services for customer. Government may proceed with termination of contract.

**10.5** The following is a matrix of Contractor's Performance Requirements:

| Performance Objective(s) | Performance Standard(s) | Acceptable Quality Level(s) | Monitoring Method | Contractor's Performance Rating | |
|---|---|---|---|---|---|
| | | | | Weight (%) | Rating |
| HVAC – Heating, Ventilation, and Air Conditioning | Regularly maintain, monitor, trouble shoot, and service HVAC in working condition(s) with minimal disruption with services | Services are working to maintain a consistent temperature range with no valid complaints meeting specific customers constraints. | Customer Input<br><br>Periodic Inspection | 20 | |
| Provide Pest Control Services for various buildings. | Schedule pest control visits are maintained. | Services are regularly provided with no valid complaints. | Customer Input<br><br>Periodic Inspection | 5 | |
| Provide Ground Maintenance for various buildings. | Establish, maintain, correct, adjust, and provide ground maintenance for various plants, vegetation, trees, and shrubs. | Scheduled services are completed as required with no valid complaints from the customer. | Customer Input<br><br>Periodic Inspection | 5 | |
| Provide Custodial Services for various buildings with routine scheduled maintenance. | Ensure cleaning schedules are adhered to as requested by the customer scheduling requirements. | Deliver timely services with scheduled custodial maintenance with no valid complaints from the customer. | Customer Input<br><br>Periodic Inspection | 40 | |
| Provide Facility Maintenance for various buildings including service requests from customer. | Regularly maintain, and service various facility reoccurring items in working condition(s) with minimal disruption with services.<br><br>Service requests are evaluated, assessed, technically approved by both the Government and customer and completed within a timely manner with a high level of quality of work. | Services are working to maintain a consistent working environment with no valid complaints meeting specific customers constraints.<br><br>Service requests are evaluated, assessed, proposed, initiated, and completed within a timely manner with no valid complaints. | Customer Input<br><br>Periodic Inspection | 30 | |
| | | | **TOTAL:** | **100%** | |

# APPENDIX A - HEATING, VENTILATING, & AIR CONDITONING (HVAC)

1.0 GENERAL

1.1 SCOPE OF WORK. The contractor shall provide all personnel, equipment, materials, tools, supervision, facilities, and transportation necessary to perform HVAC maintenance and on site emergency repair for all equipment as defined in the Statement of Work (SOW) at the end of this section. The task order may be modified to add additional equipment as may be required.

1.2 The Contractor shall provide an itemized descriptive listing of materials, parts used to maintain and repair equipment, and quantities used, for each month with a copy of all bills of lading to the COR as part of the monthly billing back up.

1.2.1 The Contractor shall provide containment drums for lubrication which may be comprised of or contain Chlorofluorocarbons. The drums and the disposal of the contaminated materials shall be the responsibility of the contractor. All procedures shall be in strict accordance with all current State and Federal OSHA and EPA regulations.

1.3 The Contractor or subcontractor personnel performing the work shall be certified and authorized by Trane, York and/or Carrier companies as is applicable to maintain the specified equipment. The importance of maintaining this equipment in a safe and satisfactory operating condition demands that the services be performed by technicians who have satisfactorily maintained like equipment, and possess a current State of California Certification authorizing that technician to work on equipment of these sizes and types.

1.3.1 CERTIFICATION/REGISTRATION REQUIREMENT.

1.3.2 The Contractor shall possess Federal Certification per instruction under Title 6 Clean Air Act Amendment dated 1990, Section 608 at which time the certification becomes available. The contractor shall provide copies of the Federal Certification and State Registration to the Contracting Officer and the COR, no later than 30 days after the requirement becomes effective.

1.3.3 The Contractor shall also register with the State of California, Department of Health, Air Pollution Control Division once Federal Certification is obtained.

1.4 Warranties of those parts, materials, and equipment on which the vendor or manufacturer normally provide warranties shall be supplied to the Contracting Officer before final payment is made to the contractor. Warranties will reflect a description of the product, the serial number of the product, if applicable, the date and location where the product was incorporated into the work, the condition of the warranty, the name of the supply vendor, the name of the purchaser, and his purchase order number and date. Warranties for installed equipment shall include a list of required maintenance necessary to ensure the warranty is kept valid. The list shall clearly identify the maintenance item and state whether the Government or the contractor is responsible for the maintenance.

2.0 **SERVICE REQUIREMENTS**.

2.1 All maintenance services shall be performed in accordance with the manufacturer's specifications and all applicable Municipal, State and Federal Regulations. The Government assumes no liability in the event actual requirements do not equal estimates. The intent and purpose of the work statement is to outline, in general, the HVAC maintenance service and schedules required to keep the equipment clean, functional and fully operational. This is not intended to be an all-inclusive outline.

2.1.1 Contractor(s) personnel shall respond to all emergency repair service calls within building(s) included n this task order or to locations designated by the COR, when the emergency repair service call is placed.

2.1.2 Upon completion of maintenance or service call(s), the contractor shall provide the COR with a service ticket for certification and inspection of service performed. Payment of preventive maintenance inspection shall not be made without a signed service ticket.

2.2 Preventive maintenance/inspections shall be performed as indicated per the approved schedule. Preventive

maintenance, inspections and repairs shall be performed between the hours 7:30 a.m. to 4:30 p.m., Monday through

Friday, except Government Holidays. Emergency repair services may be performed on any day, 24 hours a day, 365 days a year and shall be performed as determined by the COR. Due to various work schedules in effect at the various buildings, the contractor shall coordinate all work times and areas of work directly with the COR.

2.3 Maintenance. The contractor shall schedule and perform service examinations, adjustments, and cleaning weekly, monthly, and semi-annually as indicated in this section of the work statement. Inspections and maintenance shall consist of the following:

## PACKAGED HVAC UNITS

MONTHLY:

1. Visually inspect Evaporator Coil.
2. Check Blower V-belt for wear, proper tension – replace as required.
3. Visually inspect air-cooled condenser coil.
4. Check condenser fan for noise or vibration.
5. Check operation of thermostat and timer if installed.
6. Replace disposable air filters as follows:

SEMI-ANNUALLY:

1. Lubricate Blower bearings and blower motor if applicable.
2. Check electrical wiring connections. Tighten any loose connections.
3. Check refrigerant charge.
4. Inspect HVAC for rust or corrosion.

ANNUALLY:

1. Coil Cleaning.

## EXHAUST FAN/BLOWER

MONTHLY – Check for unusual noise, vibration, or overheating
SEMI-ANNUALLY

1. Check Fan/Blower V-Belt for wear and alignment and proper tension. Replace V-Belt, adjust tension and alignment as necessary.
2. Lubricate Fan/Blower bearings and Fan/Blower motorbearings.
3.

## HIGH WALL FAN COIL UNITS

MONTHLY:

1. Observe refrigerant in sightglass while compressor is operating on the outdoor unit. Check for moisture in the system and refrigerant shortage.
2. Check piping for refrigerant and oil leaks.
3. Clean Air Filter on the Indoor unit.

ANNUALLY:

1. Replace Batteries in the Remote Controller.
2. Check electrical wiring connections. Tighten as necessary.
3. Inspect Condenser fan (Outdoor Unit) for bent blades and for noise/vibration.
4. Check refrigerant charge.
5. Inspect for corrosion on Outdoor and Indoor units.
6. Coil Cleaning.

# LIEBERT MINI-MATE (Split System w/ Humidity Control)

MONTHLY:

Filters:

1. Check for restricted airflow.
2. Replace 20 x 20 x 4 filters.
3. Wipe section clean.

Fan Section:

1. Impellers free of debris and move freely.
2. Bearings in good condition.
3. Check belt tension and condition.

Humidifier:

1. Check canister for mineral deposits.
2. Check condition of electrodes.
3. All hoses and fittings tight.
4. Check water make-up valve for leaks.

SEMI-ANNUALLY:

Filters:

1. Check for restricted airflow.
2. Replace 20 x 20 x 4 filters.
3. Wipe Section Clean.

Fan Section:

1. Impellers free of debris and move freely.
2. Bearings in good condition.
3. Check belt tension and condition.

Humidifier:

1. Replace canister.
2. Check condition of electrodes.
3. All hoses and fittings tight.
4. Check water make-up valve for leaks.

Compressor Section:

1. Signs of oil leaks.
2. Vibration isolation.

Refrigeration Cycle:

1. Suction pressure.
2. Head pressure.
3. Superheat.
4. Clean Evaporator Coil.
5. Insulation intact.

Flood Back Head / Pressure Control:

1. Check refrigerant level.

Water Cooled / Condensing Unit:

1. Water valve adjustment
2. Water flow.
3. Water leaks.

Water Cooled / Electrical Panel:

1. Check electrical connections.
2. Operational sequence.

Water Cooled / Electric Reheat:

1. Check element for corrosion.

## FANS / AIR HANDLER UNITS

MONTHLY:

1. Change Lead/Lag Switch.
2. Miscellaneous Electrical.

## AIR HANDLING SYSTEM

MONTHLY:

Controls: Check for

1. Check operation.
2. Check connections.
3. Tighten terminal screws.
4. Clean contacts.
5. Check disconnect switch.
6. Check amperage draw.

Motors: Check for

1. Leaking operation.
2. Noisy operation.
3. Excessive vibration.
4. High frame temperature.
5. Excessive sparking.
6. Physical damage to frame.
7. Rust.
8. Proper alignment.

Fans: Check For

1. Noisy operation.
2. Excessive vibration.
3. Physical damage.
4. Corrosion.
5. Drive alignment.
6. Belt tension.
7. Secure mounts.

ANNUALLY:

Controls: Check for

1. Check operation.
2. Check connections.
3. Tighten terminal screws.
4. Clean contacts.
5. Check disconnect switch.
6. Check amperage draw.

Motors: Check for

1. Leaking operation.
2. Noisy operation.
3. Excessive vibration.
4. High frame temperature.
5. Excessive sparking.
6. Physical damage to frame.
7. Rust.
8. Proper alignment.

Fans: Check For

1. Noisy operation.
2. Excessive vibration.
3. Physical damage.
4. Corrosion.
5. Drive alignment.
6. Belt tension.
7. Secure mounts.

Ducts: Check for

1. Inspect interior for dust, dirt and lint.
2. Inspect exterior for corrosion.
3. Inspect duct detector position.
4. Check joints for air leakage.

Dampers: Check for

1. Check operation.
2. Inspect louvers for sealing.
3. Lubricate linkage.
4. Clean louvers.

## EXHAUST FAN/INTAKE EYEBROW

QUARTERLY:

1. Check Fan V-belt for wear and alignment and proper tension.
2. Replace V-belt, adjust tension and alignment as necessary.
3. Check fan motors and lubricate bearings and fan motor bearings.
4. Check for unusual noise, vibration, or overheating.
5. Replace disposable air filters.

## EXHAUST BLOWERS

SEMI-ANNUALLY:

1. Check for noisy operation.
2. Check for drive alignment.
3. Check belt tension.
4. Check for secure mounts.

## WINDOW AIR CONDITIONING UNITS

QUARTERLY:

1. Inspect and test run in heating and cooling mode.
2. Clean the air filter.
3. Blow out dust build-up with compressed air.

ANNUALLY:

1. Inspect and test run in heating and cooling mode.
2. Clean the air filter.
3. Remove unit from case, clean with water and a cleaner, and re-install.

# HVAC Equipment List

Corresponding Checklist:
**FO –** Front Offices and Inventory Offices
**PU –** Packaged HVAC Units
**HV –** Heating and Ventilation (No Cooling) Air Handler
**EF –** Exhaust Fan / Blower
**HW –** High Wall Fan Coil Units
**LM –** Liebert Mini-Mate (322 Only)
**AHU –** Fans / Air Handling Unit (3322 Only)
**AHS –** Air Handling System (3322 Only)
**IE –** Exhaust Fan / Intake Eyebrow (3483 Only)
**EB –** Exhaust Blowers (3304 Only)
**WAC –** Window Air Conditioning Units

Frequency:
**WK** - Weekly
**MO** - Monthly
**QT** - Quarterly
**SA** – Semi-Annually
**AN** - Annually
**AN (Coils)** – Annual Coil Cleaning

| BLDG | Unit | Location | Type | Scope | MO | QT | SA | AN | AN COIL | MFG | MODEL | Filter |
|---|---|---|---|---|---|---|---|---|---|---|---|---|
| 3641 | Packaged Unit | Outside building, east side | Packaged Unit | PU | X | | X | | X | TRANE | WSC060E3R0A0D0000000 | (4EA) 16X25X2 |
| 3641 | Exhaust Fan #1, (EFI) | Above Restroom | INLINE CETRIFUGAL DIRECT DRIVE | EF | | X | | | | COOK | 90SQN15D | N/A |
| 3322 | Fans Lead Lag | 9 Fans, Dispersed throughout building | System Controls | AHU | X | | | | | | | N/A |
| 3322 | Exhaust Fan #3, (EF3) | Storage Area | UPBLAST CETRIFUGAL BELT DRIVE | AHS | X | | | X | | CHELSEA | 1CBX3000AX | N/A |
| 3322 | Exhaust Fan #4, (EF4) | Storage Area | UPBLAST CENTRIFUGAL BELT DRIVE | AHS | X | | | X | | CHELSEA | 1CBX3000AX | N/A |
| 3322 | Exhaust Fan #5, (EF5) | Storage Area | UPBLAST CETRIFUGAL BELT DRIVE | AHS | X | | | X | | CHELSEA | 1CBX3000AX | N/A |
| 3322 | Exhaust Fan #6, (EF6) | Storage Area | UPBLAST CENTRIFUGAL BELT DRIVE | AHS | X | | | X | | COOK | 300 ED 30EDB | N/A |
| 3322 | Exhaust Fan #7, (EF7) | Packing Area | UPBLAST CENTRIFUGAL BELT DRIVE | AHS | X | 31 | | X | | CHELSEA | 1CBX3650AX | N/A |

| | | | | | | | | | | | | |
|---|---|---|---|---|---|---|---|---|---|---|---|---|
| 3322 | Exhaust Fan #8, (EF8) | Reactive Storage | UPBLAST CETRIF UGAL BELT DRIVE | AHS | X | | | X | | COOK | 360 ED 36-EDB | N/A |
| 3322 | Exhaust Fan #9,(EF9) | Packing Area | UPBLAST CENTRI FUGAL BELT DRIVE | AHS | X | | | X | | CHELS EA | 1CBX3650AX | N/A |
| 3322 | Exhaust Fan #10, (EF10) | Corrosive Storage Area | UPBLAST CETRIF UGAL BELT DRIVE | AHS | X | | | X | | CHELS EA | 1CBX3000AX | N/A |
| 3322 | Exhaust Fan #10, (EF10) | Corrosive Storage Area | UPBLAST CENTRI FUGAL BELT DRIVE | AHS | X | | | X | | CHELS EA | 1CBX3650AX | N/A |
| 3322 | Exhaust Fan #11, (EF11) | Mechanical Room Packing Area | UPBLAS TCENT RIFUGA L BELT DRIVE | AHS | X | | | X | | CHELS EA | 1CBX122AX | N/A |
| 3322 | HVAC (AC-1) | AH- Admin office Condenser-Canopy roof | SPLIT SYSTE M HIGH WALL FAN COIL | HW | | X | | X | | EMI | WHX18D05A A000F SHD18DE000 0AA0A | N/A |
| 3322 | Exhaust Fan (EF1-1) | On Roof Restroom Area | UPBLAST CETRIF UGAL DIRECT DRIVE | EF | X | | X | | | GREEN HECK | GB-90-4X-0D | N/A |
| | | | | | | | | | | | | |
| 3581 | HVAC (AC-1) | Above Admin Office Spaces | PACKA GED UNIT | PU | X | | X | | X | YORK | D1HG048N06 046BDA | N/A |
| 3581 | HVAC (AC-2) | Above Admin Office Spaces | Packaged Unit | PU | X | | X | | X | YORK | D1HG060N07 946BDB | |
| 3581 | HVAC (AC-3) | Above Admin Office Spaces | PACKA GED UNIT | PU | X | | X | | X | YORK | D1NHG036N 03646C | (2ea) 15x20x1 (1ea) 14x25x1 |

| | | | | | | | | | | | | |
|---|---|---|---|---|---|---|---|---|---|---|---|---|
| 3581 | HVAC(AC-4) | Above Admin Office Spaces | PACKAGED UNIT | PU | X | | X | | X | YORK | D1NH024N03606 | (2ea) 15x20x1 (1ea) 14x25x1 |
| 3581 | HVAC (AC-5) | Above Admin Office Spaces | PACKAGED UNIT | PU | X | | X | | X | YORK | D1HG060N07946BDB | (1ea) 20x20x1 |
| 3581 | HVAC (AC-6) | Above Admin Office Spaces in shop area | PACKAGED UNIT | PU | X | | X | | X | YORK | D1NH036N03646C | (1ea) 20x20x1 |
| 3581 | HVAC (AC-7) | Above IT Server Room Ceiling Roof | SPLIT SYSTEM W/HUMIDITY CONTROL | LHH | X | | X | | X | LIEBERT | PFH020ACPL7 | (2ea) 15x20x1 (1ea) 14x25x1 |
| 3581 | Exhaust Fan #1, (EF1) | Above Pack/Ship (Restroom) | INLINE CETRIFUGAL DIRECT DRIVE | EF | X | | X | | | COOK | 90SQN15D | (1ea) 20x20x1 |
| 3581 | Exhaust Fan #2 (EF2) | Above Admin Office Spaces (Restroom) | UPBLAST CENTRIFUGAL BELT DRIVE | EF | X | | X | | | COOK | 90SQN15D | (1ea) 20x20x1 |
| 3581 | Exhaust Fan #3, (EF3) | Above Admin Area (shop area restroom) | INLINE CENTRIFUGAL DIRECT DRIVE | EF | X | | X | | | COOK | 90SQN15D | N/A |
| 3581 | Exhaust Fan #4 (EF4) | Above UPS/Generator Room | UPBLAST CENTRIFUGAL BELT DRIVE | EF | X | | X | | | COOK | 120R3B | N/A |
| 3581 | Exhaust Fan #5, (EF5) | Maintenance Shop Welding Booth | MTD DIRECT DRIVE | EF | X | | X | | | NOT | Not Available | N/A |
| 3581 | Exhaust Fan #6 (2ea) (EF6-A & EF6-B) | On Roof Bulk Storage Area Battery Charging Area | UPBLAST CETRIFUGAL BELT DRIVE | EF | X | | X | | | COOK | 300R11B | N/A |
| 3581 | Exhaust Fan #7 | Removed from SOW | | | | | | | | | | N/A |
| 3581 | Exhaust Fan #8 | On Roof Maintenance Shop Area Fire Pump Room | UPBLAST CETRIFUGAL BELT DRIVE | EF | X | | X | | | COOK | 135RB | N/A |

| | | | | | | | | | | | | |
|---|---|---|---|---|---|---|---|---|---|---|---|---|
| 3581 | AC Unit | New Modular Office 1 | Office | FO | X | | X | | | AMANA | AE123G35AX | N/A (permanent washable) |
| 3581 | AC Unit | New Modular Office 2 | Office | FO | X | | X | | | AMANA | AE123G35AX | N/A (permanent washable) |
| 3581 | AC Unit | New Modular Office 3 | Office | FO | X | | X | | | AMANA | AE123G35AX | N/A (permanent washable) |

| | | | | | | | | | | | | |
|---|---|---|---|---|---|---|---|---|---|---|---|---|
| 3483 | HVAC (AC-1) | On Roof Admin Area | PACKAGED UNIT | PU | X | | X | | X | TRANE | WSC060E4R0N | N/A |
| 3483 | HVAC (AC-2) | On Roof Installation Services Area | PACKAGED UNIT | PU | X | | X | | X | TRANE | 4WCC3024A1000AA | |
| 3483 | HVAC (AC-3) | AH-IT Closet in Admin Condenser-Canopy Roof | SPLIT SYSTEM HIGH WALL FAN COIL | HW | X | | | X | X | CARRIER | 40MVC012-301<br>38MVC012-301 | (4ea) 16x25x2 |
| 3483 | (2) Eyebow Intake (2) Exhaust Fans | On Building's exterior, west and south side | | IE | | X | | | | | | (1ea) 20x25x1 |
| 3483 | Exhaust Fan #1 (EF-1) | On Roof Installation Services Area | UPBLAST CENTRIPUGAL BELT DRIVE | EF | | X | | | | GREENHECK | GB220-5X | WASHABLE |
| 3483 | Exhaust Fan #2 (EF-2) | On Roof Installation Services Area | UPBLAST CENTRIFUGAL BELT DRIVE | EF | X | | X | | | GREENHECK | GB220-5X | (2EA) 18x30x1 (12ea) 20x25x1 |
| 3483 | Exhaust Fan #3 (EF3) | On Roof Rad Storage Area | UPBLAST CENTRIFUGAL BELT DRIVE | EF | | X | | | | GREENHECK | GB200-7 | N/A |
| 3483 | Exhaust Fan #4 (EF-4) | Above Admin Office Spaces (Restroom) | INLINE CETRIFUGAL DIRECT DRIVE | EF | X | | X | | | COOK | 90SQN15D | N/A |
| | | | | | | | | | | | | |
| 656 | HVAC #1 (AC-1) | BAY-3 AH-Above Training RM Condenser-ext of bldg | SPLIT SYSTEM | SS | X | | X | | X | TRANE | 4TEC3F42C1000AA 4TWB3042A1000BB | N/A |
| 656 | HVAC #2 (AC-2) | BAY-3 AH-Above IT Admin Condenser-ext | SPLIT System | Ss | X | | X | | X | Trane | 4TEC3F24B1000BB | |
| 656 | HVAC #3 (AC-3) | BAY-3 AH-Above Server RM condenser-Ext of Bldg | SPLIT SYSTEM W/HUMIDITY CONTROL | LMH | X | | X | | X | LIEBERT | MMD24E7PHED0<br>PFH027ACPL7 | (1ea) 20x20x1 |

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|---|---|---|---|---|---|---|---|---|---|---|---|---|
| 656 | HVAC #4 (AC-4) | BAY-3 AH-Above Server RM condenser-ext of Bldg | SPLIT SYSTEM W/HUMIDITY CONTROL | LMH | X | | X | | X | LIEBERT | MMD24E7PHED0<br><br>PFH027ACPL7 | (1ea) 20x20x1 |
| 656 | HVAC #5 (AC-5) | BAY-2 AH-In IT closet Condenser-ext of bldg | SPLIT SYSTEM HIGH WALL FAN COIL | HW | X | | X | | X | CARRIER | 40MVC012-101-38MVC012-101 | (1ea) 20x20x1 |
| 656 | HVAC #6 (AC-6) Install in-work | BAY-2 AH-Above Admin Area Condenser-ext of Bldg | SPLIT SYSTEM | SS | X | | X | | X | TRANE | TWE090D300A<br><br>TWA090D30RA | (1ea) 20x20x1 |
| 656 | HVAC #7 (AC-7) Planned | BAY-1 Outside building, MSO Area | PACKAGED UNIT | PU | | | | | | | | WASHABLE |
| 656 | Exhaust Fan (EF-1) | BAY-3 Above UPS Room | UPBLAST CETRIFUGAL BELT DRIVE | EF | X | | X | | | COOK | 100ACRU | Need Qty and size |
| 656 | Exhaust Fan (EF-2) | BAY-2 Above Rest Rooms | | EF | X | | X | | | | | |
| | | | | | | | | | | | | |
| 657 | HVAC #1 (AC-1) | BAY-2 AH-Wall in Admin area Condenser-Above Admin | SPLIT SYSTEM HIGH WALL FAN COIL | HW | X | | X | | X | CARRIER | 40MVQ024-301-<br><br>38MVQ024---301- | N/A |
| | | | | | | | | | | | | |
| 660 | HVAC #1 (AC-1) | BAY-2 AH-Wall Main admin Condenser-ext of bldg | SPLIT SYSTEM HIGH WALL FAN COIL | HW | X | | X | | X | MITSUBISHI | MSZ-GE09NA<br><br>MXZ-2B20NA | WASHABLE |
| 660 | HVAC #2(AC-2) | BAY-2 AH-Wall main admin Condenser-ext of Bldg | SPLIT SYSTEM HIGH WALL FAN COIL | HW | X | | X | | X | MITSUBISHI | MSZ-GE09NA<br><br>Shared with AC-1 | |
| 660 | HVAC #3 (AC-3) | BAY -2 AH-Wall in office #1 Condenser-ext of Bldg | SPLIT SYSTEM HIGH WALL FAN COIL | HW | X | | X | | X | MITSUBISHI | MSZ-GE09NA<br><br>MXZ-4B36NA | WASHABLE |

| | | | | | | | | | | | | |
|---|---|---|---|---|---|---|---|---|---|---|---|---|
| 660 | HVAC #4 (AC-4) | BAY-2 AH-Wall in office #2 condenser-ext of Bldg | SPLIT SYSTEM HIGH WALL FAN COIL | HW | X | | X | | X | MITSUBISHI | MSZ-GE09NA<br><br>Shared with AC-3 | `WASHABLE |
| MULTI | WINDOW S/C | SEE WINDOWN AC LIST | | WU | | X | | X | | | | WASHABLE |

## Window Air Conditioning Units

| Label No. | Building | Location |
|---|---|---|
| | | |
| AC-WU-3302-01 | 3483 | Admin Office / Southwest corner of Warehouse |
| AC-WU-3581-01 | 3581 | Maintenance Shop / Modular Lunch Room |
| AC-WU-3581-02 | 3581 | Maintenance Shop / Contractors Office |
| AC-WU-3581-3 | 3581 | Receiving Area / Shipping Office |
| AC-WU-3581-4 | 3581 | Receiving Area / Supervisors Office |
| AC- | 3581 | New Modular Office 1 |
| AC- | 3581 | New Modular Office 2 |
| AC- | 3581 | New Modular Office 3 |
| AC-WU-NSGS-01 | 3530 | Entrance Guard House / Naval Station |
| AC-WU-NSGS-02 | 479 | Exit Guard Shack / Naval Station |
| AC-WU-660-01 | 660 | Admin Office |
| AC-WU-659-01 | 659 | Admin Office |
| AC-WU-658-01 | 658 | Admin Office |
| AC-WU-656 | 656 | Admin Office |
| AC-WU-656-01 | 656 | Modular Office / Bay 1 |
| AC-WU-656-02 | 656 | Modular Office / Bay 2 |
| AC-WU-656-03 | 656 | Modular Office / Bay 3 |
| AC-WU-NIGS-01 | GS | Guard House / North Island |
| | | |
| | | |
| | | |
| | | |

# APPENDIX B - INTERIOR AND EXTERIOR PEST CONTROL

## 1.0 CONTROL/ERADICATION OF PESTS

**1.1** Pest control shall be performed to control, eradicate, and prevent infestation of pests in plant beds, shrubs, hedges, trees, fence perimeters and interior of buildings to include all crawling pests (i.e. ants, spiders, roaches, earwigs, rats, mice, and rodents). Flying insects (i.e. bees and birds) are not included and treatment for these pests will be required under a Work Request ticket. Preventative maintenance is to be done on a monthly basis.

1.1.1 For Buildings 3641, 3581, 3322, 3483, and (2) Guard Shacks located on the Naval Station Compound, and Buildings 656, 657, 658, 659, 660 and (1) Guard House located at the North Island Compound, exterior preventative maintenance will include spray treatment of buildings, walkways, and ramp perimeters, as well as crevices and cracks in walkways and ramps. In addition, plant beds, shrubs and vegetation located directly next to buildings shall also be treated.

1.1.2 For Buildings 3641, 3581, 3322, 3483, and (2) Guard Shacks located on the Naval Station Compound, and Buildings 656, 657, 658, 659, 660 and (1) Guard House located at the North Island Compound, interior preventative maintenance will include the replacement of traps at all warehouse door locations, as well as specific areas within the warehouse identified by the Government where pests have been spotted repeatedly. Placement of traps within administration areas will be done by request only, as they can be unsightly. Spray treatment within the interior of a building shall be included in preventative maintenance but shall only be performed, on request, when an infestation occurs.

**1.2** Only a company holding a valid state license for each category of pest control work involved shall apply all pesticides, including herbicides, insecticides and fungicides. Any required state, county or local permits for possession, procurement or use of any pesticide used under this contract shall be obtained at no additional expense to the Government. In addition, all other state, county and local requirements in connection with pesticides used shall be complied with as though the work were being performed for hire on private property.

**1.3** An individual licensed by the State of California Department of Food and Agriculture for the specific category of pest control work being performed shall perform all pesticide mixing and application.

**1.4** All pesticides shall be procured, stored, handled and applied in strict accordance with the manufacturer's label, which shall be registered with the Environmental Protection Agency and the State of California. Each pesticide formulation shall be registered for use under the particular environmental conditions under which it is to be applied. Any additional recommendations or instructions from the COR in connection with the use of pesticides, including the stoppage of work, shall be accurately followed. The Contractor shall exercise extreme care to prevent any damage or illegal contamination by pesticides to vegetation, water, fish and other desirable or protected animals. The Contractor shall exercise extreme care to prevent ill effects to person(s) or pets that could result from the Contractor's use of pesticides. The Contractor shall be held responsible and liable for all such damages, contamination and effects resulting from the Contractor's pesticide use.

**1.5** Herbicide/pesticide spraying shall be performed only on still days and shall be stopped when unfavorable weather or other conditions exist which would unduly increase the hazard to personnel or desirable vegetation by drift, run-off or leaching through the soil. Any Government property or desirable vegetation damaged by the Contractor shall be repaired or replaced at no cost to the Government.

**1.6** Pesticide applications will be inspected by a Government designated Certified Pest Control Coordinator or Certified Pest Control Quality Assurance Evaluator. The Contractor shall notify the COR immediately, by telephone, of any inspection visits by any Federal or State enforcement officials.

**1.7** Pesticide rinse water or excess pesticides from the Contractor's operations shall be collected by the Contractor in appropriate receptacle and disposed of off Government property in accordance with EPA and/or state regulations, or shall be applied to a target area similar to which the original application was made and in the same manner of application if allowed by the EPA registered label.

**1.8** All jobsite pesticide application shall be accomplished by an individual currently licensed by the State of California as a Qualified Applicator in Category B (Landscape Maintenance) and Category C (Right of Way). All jobsite pesticide applications shall be made by personnel capable of identifying the pest species to be controlled,

knowledgeable of control techniques and able to apply pesticide active ingredients at prescribed dosages and rates

of application as required by the label to achieve the required control under the job site conditions without danger to people, pets or other non-target animals or plants.

**1.9** The Contractor shall be responsible for proper reporting and clean up of pesticide spills, as required by EPA and State laws and regulations. All spills shall be immediately reported to the COR.

# APPENDIX C - GROUNDS MAINTENANCE

## 1. GENERAL

1.1 The Contractor shall furnish all labor, equipment, tools, transportation, permits and insurance to perform all services required under this agreement.

1.2 The Contractor shall maintain vegetation on compound in a manner that promotes proper health, growth and a manicured appearance, free of erosion, dying and diseased vegetation, and bare areas. Cuttings shall be removed daily. The irrigation system shall be tested as required and maintained in a good state of repair, fully operational at all times. Other related work described herein shall be performed by the Contractor to the standards and frequencies specified. Equipment used in the performance of this contract is subject to COR approval. All maintenance and quality control effort shall be performed by qualified and, if required, by certified personnel experienced and skilled in the line of work performed.

1.2.1 For Buildings 479, 660, 656, 657, 658, 659, 3322, 3483, 3581, 3641, two guard houses on Naval Station compound, and one guard house on Naval Air Station North Island.

## 2. LAWN MAINTENANCE:

2.1 Turf grass requires a high degree of care to sustain a high quality of appearance. Turf grass shall be maintained in a manner that promotes proper health, growth, rich natural green color and a neat uniform manicured appearance. The turf grass shall be kept free of bare areas, ruts, holes, weeds, pests, dead vegetation, debris and unwanted vegetation that presents an unsightly appearance. All holes or depressions shall be filled and compacted to adjacent grade level. Cool Season grass and Warm Season grass shall be mowed a minimum of once every two weeks in addition to the performance of standards required in the following paragraphs.

2.2 Turf grass shall be mowed at uniform finished height removing no more than 1/3 of leaf blade length per mowing. The height of turf is measured from the soil. Mowing of turf shall be performed in a manner that prevents scalping, rutting, bruising, unevenness and rough cutting. Each successive mowing shall be at approximate right angles to the previous mowing where practical. If any bare ground within the limits of an area included in this contract becomes populate with turf or weeds through natural spread, i.e., not artificially planted, the Contractor shall maintain such area(s) as part of the basic contract. Portable objects in the turf area shall be removed and replaced before and after mowing. Prior to mowing, all rubbish, debris, trash, leaves, rocks, paper, limbs or branches on turf and lodges in shrubs, hedges, and fences and along foundation walls shall be picked up and disposed of in the proper manner. Adjacent paved areas shall be swept/vacuumed clean. Based on the turf grass and Contractor's expertise, the Contractor has the discretion of using either a reel or rotary mulching mowers, or a combination of both.

2.3 Perimeters of sidewalks, driveways, curbs and other paved surfaces shall be edged. Uniformly edge landscape to prevent encroachment and to provide a clear-cut division line between plant beds, turf, grass or ground cover. Edging is to be accomplished in a manner that prevents scalping, rutting, bruising unevenness and rough cutting. Edging shall be performed on the same day that turf is mowed and ground cover pruned.

2.4 Trimming around cultivated areas, fences, poles, walls, sprinkler heads, valves or other similar objects is to be accomplished to match the height and appearance of surrounding cut turf or grass growth. Trimming shall be performed on the same day the turf is mowed. Care shall be exercised to avoid "girdling" trees, shrubs, hedges or plants.

## 3. PLANT BED MAINTENANCE

3.1 Plant beds shall be weeded, dead flowers, or stalks, removed and mulched, or otherwise maintained in a manner that presents a professionally landscaped appearance. Plant beds shall be kept weed, grass and pest free. Ground cover shall not be allowed to grow into the plant, shrub or tree area. Plant beds shall be maintained in a manner that provides balance between the various types of vegetation and prevent dominance of any one species. The Contractor shall provide for the special needs of various species. Diseased or dead vegetation shall be removed and replaced with healthy plants of the same species. Due to the variety of vegetation in these areas, irrigation and fertilization schedules may be modified with the approval of the CO.

3.2 Ground cover (herbaceous and woody) shall be trimmed, pruned, irrigated, fertilized and mulched to present a healthy and manicured appearance. Ground cover shall not be allowed to encroach into turf area. A definite break shall be maintained between turf and ground cover. In areas where ground cover and other vegetation, i.e., shrubs, plantings and flowerbeds, are planted together, the ground cover shall not be allowed to grow onto, or otherwise dominate, the landscaped area. In such areas, the Contractor shall maintain a healthy and well-balanced landscape. Ground cover shall not be allowed to grow onto, or into, fences, ditches, gutters, paved areas, sidewalks, buildings, walls, trees, shrubs or storm drains. All ground cover of this nature shall be removed immediately. With the COR approval, specific herbaceous type ground cover will be allowed to grow onto crib walls.

3.3 Shrubs and hedges shall be trimmed and pruned for health, safety and aesthetic appearance. Hedges are categorized as formal and informal. Hedge type will be identified by the COR prior to pruning.

3.4 Shrubs shall be pruned to even form and balance to show its natural growth characteristics. Shoots, suckers and branches of shrubs not conforming to desired shapes and size shall be removed. Retain typical growth habits of individual plants with as much height and spread as practical.

3.5 A formal hedge shall be treated as a continuous row of plant material with no gaps or voids. Formal hedges shall be pruned to shape and control the size and growth pattern. Maximum height shall not exceed seven feet. The minimum height shall be determined by the COR. The base shall be slightly broader than the top; sides gradually sloped in from bottom to top. Hedge growth shall be maintained continuous from top to ground level with no voids or gaps. Skirting-up of plant material shall not be allowed. Where skirting or gaps and voids exist, the Contractor shall allow the plant to grow back to its natural sheared shape and size prior to trimming.

3.6 An informal hedge shall be treated as a continuous row of plant material with no gaps or voids. Informal hedges shall be pruned to shape and control the size and growth pattern. Maximum height shall not exceed seven feet. The minimum height shall be determined by the COR. Informal pruning shall leave hedges evenly formed and balanced to its growth characteristics. Shoot suckers and branches not conforming to desired shape and size shall be removed. Hedge growth shall be maintained continuous from top to ground level with not voids or gaps. Skirting up of hedge is not allowed. Where skirting, gaps or voids exist, the plant shall be allowed to grow back to its natural shape and size before pruning.

3.7 In addition to the above, shrubs and hedges shall be selectively pruned and shaped for health and safety when conditions 1 through 4 below exist. The COR shall identify hedges that require the following:

- 3.7.1 Removal of growth in front of windows, over entranceways or walks and any growth, which will obstruct vision at street intersections.
- 3.7.2 Removal of dead, damaged or diseased branches or limbs.
- 3.7.3 Removal of hedges and shrubs obstructing pedestrian walkways.
- 3.7.4 Removal of shrubs and/or hedges growing into and obstructing paths around perimeter of buildings or structures or growing against or over structures.

3.8 Any depression or mound (water basin) around the base of shrubs or hedges intended to retain water in place for proper irrigation shall be maintained in good condition to permit the most efficient application of water and reduce waste.

## 4.0 TREE MAINTENANCE

**4.1** Tree maintenance and care is considered routine ongoing maintenance and shall be accomplished as specified or as often as necessary during the term of contract. Tree maintenance and care includes, but is not limited to, staking trees, adjustment of ties and supports, removal of stakes, watering, fertilization, pest control, pruning for health and safety, turf clearance and fall cleanup.

**4.2** Weak trees up to three inches in diameter, or newly planted trees requiring support, shall be staked to prevent swaying by the wind and prevent root disturbance and hinder normal development. The use of guy wires or cables is prohibited unless protected or plainly marked to be visible day or night and installed with hose guards to prevent damage to the tree. Approval of guy wires or cables must be received from the COR.

**4.3** Stakes, ties and supports shall be inspected and adjusted to circumvent girdling and natural development of trees. Stakes, ties and supports shall be removed when the tree becomes capable of supporting itself.

**4.4** All trees shall be selectively pruned for human safety and health to a height of 12 feet from ground level. This includes, but is not limited to, removal of dead and broken branches, correction of structural defects or whenever a through e, below, exists. The Contractor shall endeavor to prune trees according to their natural growth characteristics leaving trees well shaped and balanced. Pruning shall be accomplished by, or in the presence of, a certified member of the National Arborist Association, Western Chapter, and in accordance with ANSI Z133.l.1988. The Contractor shall inspect and identify trees that require pruning. The dates of scheduled inspections and pruning shall be included in the annual or monthly plan.

4.4.1 Dead, damaged or diseased wood or structurally weak limbs that may cause a safety hazard.
4.4.2 Branches that extend over building and endanger roofs, eaves and windows or hang within eight feet of sidewalks, parking lot driveways and/or which obstruct traffic signs.
4.4.3 Clearance for buses, moving vans and similar vehicles along streets.
4.4.5 Growth of trees in front of windows, over entranceways or walks that will obstruct vision at street intersections.
4.4.6 Partially attached broken limbs and branches from trees, regardless of diameter or length. Provide stakes or braces for future protection.

**4.5** The Contractor shall immediately notify the COR for directions upon the discovery of bird nesting activity.

**4.6** Trees shall be maintained with a growth free clearance of 18 inches from the tree trunk base. The use of Mechanical weed whips to accomplish the growth free bed area is prohibited.

**4.7** Tree fertilization and irrigation schedules shall be shown in the FOMP. Any depression or mound around the base of trees, intended to retain water in place for proper irrigation, shall be maintained in good condition to permit the most efficient application of water and reduce waste.

**4.8** In compliance with paragraph 4.4, trees not included in the survey report that are 8 inches or less in diameter, measured at 24 inches from ground level and require replacement, shall be removed and replaced with the same species at no additional cost to the Government. Trees exceeding the 8-inch limitation may be ordered removed and replaced under the Indefinite Quantity portion of the contract. Listed below are the requirements for tree removal.

4.8.1 Chip stump to 12 inches below ground level and remove all roots to a depth of 4 inches. Treat to prevent re-growth.
4.8.2 Remove tree, cuttings and debris as work progresses and dispose of at an approved site.
4.8.3 All excavated areas shall be filled with clean topsoil, free of debris and/or rock, compacted to adjacent grade level and seeded with grass of the same species as surrounding areas.

## 5.0 DEBRIS REMOVAL AND DISPOSAL

**5.1** All shrub and tree cuttings resulting from Contractor operations are to be delivered to the Naval Station Recycling Yard the same day as operations are performed. At a 3:1 ratio of delivered raw material, the Contractor shall return composted mulch to planter beds, bare area in sparse ground cover areas and sloped areas with sparse to no vegetation growth (slopes not exceeding 3:1) to a depth not to exceed 3 inches as a means of soil improvement, erosion control and weed control. Contractor will provide all equipment and labor necessary to accomplish mulch spreading. Grass clippings, leaves and weeds shall be delivered to the Naval Station Recycling Yard the same day as operations are performed. At a 3:1 ratio of delivered raw materials, the Contractor shall return composted humus to be reused on base as a planting mix for replacement plantings and lawn renovation material. Monthly reports (with year-end total) shall be provided to the COR indicating amount of green waste material generated for composting operations and for mulching operations. The Contractor shall dispose of all other non-compostable green waste and non-green waste generated debris off base. The Contractor shall provide a monthly tonnage report of all non-compostable green waste and non-green waste disposed by the Contractor. The Contractor shall apply for the waiver of disposal fee from the City of San Diego.

## 6.0 SURVEY OF VEGETATION AND REMOVAL/REPLACEMENT REQUIREMENTS

**6.1** The Contractor is responsible for the maintenance of all vegetation included in these specifications upon award of this contract. During the first 2 weeks of the contract, the Contractor and COR shall jointly conduct a site survey. The Contractor shall notify the COR 48 hours prior to scheduling the site visit. The site survey is performed to jointly agree and identify by quantity, species and locations, all vegetation that is dead, dying or diseased and requires replacement. Trees and large shrubs in the report shall be identified by tying a yellow ribbon (1 inch wide) around the trunk. The survey report shall be submitted to the COR who will be the final authority in determining the condition of vegetation in the report. Vegetation that the COR determines is the Government's responsibility may be ordered replaced by modification or other means. All other vegetation shall be the responsibility of the Contractor. The Contractor shall assume maintenance of any vegetation that has been replaced and be responsible for the cost of removal and replacement thereafter throughout the term of the contract. Vegetation that is replaced shall be of the same type of species being removed and approved by the COR. Size requirements:

6.1.1 Trees shall be 15-gallon container size, minimum 8 feet in height, 1-1/4 diameter trunk.
6.1.2 Shrubs shall be 5-gallon container size, minimum 2 feet in height
6.1.3 All other vegetation shall be 1-gallon size, minimum 12 inches in height or groundcover flats based on plant species.

## 7.0 CONTROL/ERADICATION OF WEEDS

**7.1** Weed control shall be performed to control and eradicate the growth of unwanted and noxious weeds, prevent encroachment of growth into landscaped areas (fungus) in plant beds, shrubs, hedges, trees and fence perimeters. Unwanted vegetation and noxious weeds in sidewalks, curbs, parking lots, pavement cracks and other paved areas within a 10-foot perimeter adjacent to landscaped areas, including natural growth areas, shall be controlled/eradicated. **Weeds in unpaved areas under FFP of contract, like the boat lots, are to be controlled by any means and at the best time by Contractor. Contractor will be responsible for these decisions in order to minimize effort and cost to the Government.** Coordinate schedule with COR.

7.1.1 An individual licensed by the State of California Department of Food and Agriculture for the specific category of pest control work being performed shall perform all pesticide mixing and application.

7.1.2 All pesticides shall be procured, stored, handled and applied in strict accordance with the manufacturer's label, which shall be registered with the Environmental Protection Agency and the State of California.

7.1.3 Herbicide spraying shall be performed only on still days and shall be stopped when unfavorable weather or other conditions exist which would unduly increase the hazard to personnel or desirable vegetation by drift, run-off or leaching through the soil. Any Government property or desirable vegetation damaged by the Contractor shall be repaired or

replaced at no cost to the Government.

## 8.0 IRRIGATION AND IRRIGATION SYSTEM MAINTENANCE

**8.1** The Contractor's responsibility for the irrigation and maintenance of the irrigation systems begins on the contract start date. At that time, the Contractor shall submit his Irrigation Plan and begin irrigation and provide the necessary maintenance to ensure proper operation of the irrigation system. The Contractor shall perform irrigation in a manner that promotes the health, growth, color and appearance of cultivated vegetation and that complies with all Federal, state and local water agencies and authorities' directives. The Contractor shall be responsible to prevent over watering, water run-off, erosion and ponding due to excessive quantities or rate of application. The methods that are required to irrigate the grounds include automatic and manual valve operation and hand or portable watering. The Contractor shall provide the COR with a weekly list of broken and repaired irrigation system components. In the case of irrigation system components that cannot be repaired immediately, the Contractor shall indicate estimated repair date and plan of action to ensure watering is accomplished.

**8.2** The Contractor is responsible for the maintenance and repair of all components of the irrigation systems. A system consists of control valves (electric and manual), system controllers, wiring, backflow preventers, sprinkler heads, risers and incidental related components. The system starts at the first valve on the water service line from the street main supply line. The irrigation system on Navy property were designed so that only one irrigation control valve in a multiple valve connection can be in operation at one time. Operation of more than one valve at the same time, in any single system, will result in improper and insufficient irrigation. Water service lines are not a part of this contract.

**8.3** Permanently installed irrigation equipment shall be used to perform irrigation. Automatically controlled timers shall be set for proper operation and time in regards to use of CIMIS information. Systems with manual control valves shall be operated and secured after use. All valves and valve box covers shall be closed after each use. All hose, upon completion of water, shall be cleaned up and stored in a proper fashion.

**8.4** The Contractor shall be responsible for the irrigation of all areas whether an irrigation system is installed or not, or whether the irrigation equipment is inoperable, malfunctioning or does not adequately cover the area. In such case, the Contractor shall provide hoses or other portable irrigation equipment to properly irrigate the vegetation. All portable irrigation equipment shall be removed from the areas at the end of each workday, unless authorization to leave equipment in place has been granted by the COR. In the event that the main water supply connected to a system is completely shut down on a temporary, or permanent basis, the Contractor shall provide water by portable tanker or water truck of from the closest water source. Use of portable equipment shall be provided at no additional cost to the Government. Manual water is defined to mean that valve(s) in a system must be manually turned on and off or that hoses or other portable equipment are required for irrigation. If hose bibs from buildings are utilized for water sources, Contractor shall provide a hose bib backflow preventer for each connection between hose and hose bib. Manual watering operations and times shall be set in regards to use of CIMIS information.

**8.5** If the Contractor must use a fire hydrant for irrigation purposes, the Contractor shall obtain prior clearance from the COR and provide the tools and connections approved for use on fire hydrants. If a fire hydrant is used, the Contractor shall provide a reduced pressure backflow preventer for each connection between hose and fire hydrant. A certified backflow preventer tester shall test Backflow preventer used once per month. The Contractor shall use only the hydrant assigned to him.

**8.6** Sprinkler heads shall be adjusted and positioned to prevent water from spraying into doorways, windows, porches, building, parked cars, parking areas or to impede vehicular or pedestrian traffic. Automatic controllers not equipped with rain shut-off sensors shall be secured during periods of rain that exceeds twelve hours of continuous rainfall in one day or during rainstorms of one day or more. Once the rain has subsided, timers shall be reset. The controller shall also be reset after power outages. Dirt or other debris in the sprinkler heads shall be removed. Any foreign obstruction surrounding the sprinkler head that impairs or prevents proper coverage or operation of the sprinkler heads shall be removed. In the case of vegetation obstruction, the Contractor may prune/trim vegetation or modify risers or valves.

**8.7** The Contractor shall abide by any local, state laws, Law AB325, or other water conservation regulations in force during the term of this contract. The Government reserves the right to alter the Contractor's irrigation schedule to comply with water conservation directives. Automatic controllers shall be adjusted to comply with the revised schedule. No water, manual or automatic, shall occur between the hours of 0900 and 1630 (9:00

AM and 4:30 PM), except for the purpose of performing scheduled irrigation system checks and maintenance.

**8.8** Within the first two weeks after contract award, the Contractor and the COR shall survey the existing irrigation systems in each parcel. The Contractor shall notify the COR, in writing, 48 hours prior to the scheduled site survey. Systems shall be activated to ensure proper operation and water coverage and to identify defective components and other needed repair. Once repairs have been completed, the Contractor shall assume full responsibility for maintenance throughout the term of the contract. A written report of findings shall be given to the COR.

**8.9** The Contractor's routine maintenance under this contract shall include:

8.9.1 Repair or replacement of broken, missing or inoperative sprinkler heads or drip emitters, tubing and connectors. Clean and adjust obstructed sprinkler/emitter heads, pop-up mechanism and adjust spray pattern for proper coverage.

8.9.2 Repair broken risers, fittings, drip components, drip tubing and breaks in later lines eighteen inches on either side of the riser fitting. Adjust and align risers.

8.9.3 Clean and adjust manual, automatic control valves, wyes strainers, pressure regulators, auto flush valves and rain shut-off devices.

8.9.4 Trim grass and remove debris from and around sprinkler heads as required. Cutouts or well depressions are not permitted around sprinkler heads to aid performance.

8.9.5 Repair broken lateral lines eighteen inches from the discharge side of the main isolation valves, and eighteen inches on either side of control valves (manual and automatic), quick-coupler valves, hose bibs and ball or gate valves, stars and damaged stems.

8.9.6 Maintain, service and repair all automatic control systems. Adjust and maintain irrigation time schedules. Electrical connection between automatic control systems and components wiring shall be maintained to operate as intended.

8.9.7 All irrigation repairs and/or replacement parts furnished by the Contractor shall be equal or better in quality than item(s) being repaired or replaced and shall be fully compatible in finish and design.

8.9.8 Test back flow preventers annually and after repair or replacement.

8.9.9 One month prior to the end of the Base Year and each option year thereafter, the Contractor and COR shall jointly perform a site visit to inspect the entire irrigation system. The Contractor shall notify the COR, in writing, 48 hours prior to the site visit. The irrigation control systems shall be activated to ensure that the system is operating as intended. A written report noting all deficiencies will be given to the COR. All deficiencies, excluding items not repaired, shall be repaired by the Contractor prior to the final term of the Contract or prior to the next option period if exercised by the Government.

## 9.0 SOIL / PLANT TISSUE ANALYSIS

**9.1** The Contractor shall perform soil analysis to determine soil problems (soil nutrient breakdown, salt content, porosity and percolation rates) and be a guide for additional additives, amendments, fertilizers or soil conditioners. Ten (10) soil tests shall be accomplished within the first month of each contract year. A recognized soil-testing laboratory, using procedures that comply with the Department of Agriculture Soil Survey Investigation Report (DOASSIR), and the California Soil Test Procedures Program, shall perform the soil tests. The soil-testing laboratory shall analyze the soil for proper pH and balance and make recommendations on soil treatment. All results shall be submitted to the COR no later than the following workday after the Contractor receives them. Due to soil variations, 10 different sample areas shall be tested. Each location identified by the Contractor to be tested shall first be approved by the COR. Additional of substitute locations may be provided to the Contractor by the COR at the time of approval. Ten (1) plant tissue culture samples shall be accomplished within the first month of each contract year. Provide representative testing of the plant tissue of the plant material in selected areas that meet the following criteria:

9.1.1 Seasonal leaf tissue testing of plant material samples from representative plant types (i.e., grass and shrubs) within each parcel area.

9.1.2 Sampling data must be recorded and maintained in database and seasonally adjusted nutrient recommendations must be made within 72 hours of plant tissue sampling to correct the nutrient imbalances identified. Sampling must be completed in a timely and repeatable fashion by a technician trained in Agronomy. Test data must be recorded and reviewed per frequencies.

Submit a written log to COR on a monthly basis indicating test results and quantity of soil amendments/fertilizers applied.

**10.0 FERTILIZER APPLICATION**

**10.1** Apply fertilizer in a manner that promotes health, growth, color and appearance of cultivated vegetation. The method of application, fertilizer type, frequencies and dates of fertilizer application shall be identified in the Annual Grounds Maintenance and Monthly Work Plans per the soil analysis test results. Organic fertilizer shall be used. In the event that organic fertilizer is not producing the desired effect, the Contractor shall contact the COR for approval prior to the use of a non-organic type of fertilizer. Fertilizer shall be applied by approved methods in accordance with the manufacturer's recommendations. Fertilizer shall be delivered to the work site in unbroken containers for inspection by the Government, with each container fully labeled and bearing the trade name and warranty of the manufacturer. Each bag shall be marked in a manner satisfactory to the COR that will permit Government verification of fertilizer applications. Identifies the fertilizer type for trees, its application method and frequency at which the work is to be accomplished.

**11.0 SUPPORTIVE FIXTURES**

10.2 Provide or remove supportive fixtures so as to promote proper health, growth and appearance of cultivated vegetation. Examples of supportive fixtures are a trellis or lattice.

**12.0 SLOPE EROSION CONTROL**

**12.1** The Contractor shall provide a slope erosion control maintenance program to prevent undermining of all slopes in landscaped or natural growth areas. The work includes maintaining constant vigilance and providing immediate repairs to prevent erosion and secure weak spots in the slopes. Culverts, berms and terraces shall be maintained in a clean, clear and graded condition to intercept and direct water flow and prevent development of large gullies and slope erosion. During periods of extended rainfall, irrigation systems shall be secured. The Contractor shall be responsible for repairing 20% of any slope based on the total area of the slope. For example, if the total area of slope is 1,200 square feet, the Contractor is responsible for 240 square feet. The 240 square feet may be in one area or be an aggregate total of various sections of the slope. Eroded areas shall be filled with amended soil and replanted. Matting shall be installed to control and prevent future erosion. Areas with die back or dead vegetation shall be renovated. The work requires removal of dead vegetation, grading, adding soil and planting or sprigging area with the dominant species of the surrounding area. Grassed slopes that exceed the 20% repair limit may be ordered renovated under the indefinite quantity portion of the contract. Ground cover that exceeds the 20% repair limit will be subject to a negotiated change order.

**13.0 POLICING**

**13.1** The Contractor shall police designated areas each time he is at the site. Policing includes removal of leaves, branches and limbs regardless of length or diameter, dead vegetation, paper, trash, cigarette butts, garbage, rocks and/or other debris. Policing shall extend 10 feet beyond a designated maintenance area and on both sides of fencing on Government property. Private property running along the perimeter fencing is included unless determined otherwise by the COR. Collected waste shall be promptly removed and disposed of at an approved disposal site. Incorporate policing into the Quarterly and Monthly Grounds Maintenance Plan.

**14.0 FENCE LINE MAINTENANCE**

**14.1** Fence line maintenance shall consist of the removal of grass, weeds, trees (less than two inches in diameter at ground level) and all other vegetative growth to ground or pavement level within 60 inches inside of fence line and 12 inches outside of fence lines. Removal may be by either mechanical or approved chemical methods. Work shall be accomplished monthly.

**15.0 AERATION**

**15.1** Perform aerating each contract year of warm and cool season grasses in a manner that promotes proper health, growth, color and appearance of cultivated vegetation by using mechanical (deep tine) airifier

insuring minimum soil penetration and appearance of cultivated vegetation and achieving a minimum depth of 3-4 inches. Tractor lift or tractor drawn machines may be operated on the larger open areas if no damage is caused to the lawns or irrigation equipment. Aeration will be performed prior to spring fertilization. Contractor shall test the irrigation system and make any necessary repairs or replacement to provide for a functional, working system. Upon completion of aeration of each parcel, provide fertilization as required in basic contract, a maximum of five (5) days after completion of work.

**16.0 MOSS/ALGAE DISPOSAL**

16.1 Remove moss/algae on loading dock of North Island to include Buildings 656, 657, 658. 659, 660.

| LOCATION | Manual Irrigation | Plant Bed Maintenance | Fertilizer Application | Irrigation System Check | Control / Eradication of Weeds | Debris Removal/ Disposal | Moss / Algae Disposal |
|---|---|---|---|---|---|---|---|
| **BUILDING 3581** | | | | | | | |
| Building Perimeter | | | | | Quarterly | Daily | Quarterly |
| East Exterior, (2) Plant Beds | | Monthly | Monthly | Monthly | Monthly | Monthly | |
| **BUILDING 3322** | | | | | | | |
| Building Perimeter | | | | | Quarterly | Daily | Quarterly |
| **BUILDING 3483** | | | | | | | |
| Building Perimeter | | | | | Quarterly | Daily | Quarterly |
| **BUILDING 3641** | | | | | | | |
| Building Perimeter | | | | | Quarterly | Daily | Quarterly |
| North Exterior, (4) Plant Beds | | Monthly | Monthly | Monthly | Monthly | Daily | |
| **POTTED TREES/PLANTS** | | | | | | | |
| (22) Total (Listed Below) | | | | | | | |
| East Bldg 3581 (7) | Weekly | | Monthly | | Weekly | | Quarterly |
| North Bldg 3581 (6) | Weekly | | Monthly | | Weekly | Daily | Quarterly |
| South / West Bldg 3641 (6) | Weekly | | Monthly | | Weekly | Daily | Quarterly |
| Exit Guard Shack (1) | Weekly | | Monthly | | Weekly | Daily | Quarterly |
| Bldg 3483 (2) | Weekly | | Monthly | | Weekly | Daily | Quarterly |
| **N.S. COMPOUND FENCELINE** | | | | | Quarterly | Daily | |
| **N.S. OPEN COMPOUND** | | | | | Quarterly | Daily | Quarterly |
| **N.S. PARKING AREA** | | | | | Quarterly | Daily | |
| **BOAT LOT (WET SIDE)** | | | | | Quarterly | Daily | Quarterly |
| **BUILDING 656** | | | | | | | |
| Building Perimeter | | | | | Quarterly | Daily | Quarterly |
| Fenceline / Interior Compound (East to West and North to South) | | | | | Quarterly | Daily | |
| **BUILDING 657** | | | | | | | |
| Building Perimeter | | | | | Quarterly | Daily | Quarterly |
| Fenceline / Interior Compound (East to West and North to South) | | | | | Quarterly | Daily | |
| **BUILDING 658** | | | | | | | |
| Building Perimeter | | | | | Quarterly | Daily | Quarterly |
| Fenceline / Interior Compound (East to West and North to South) | | | | | Quarterly | Daily | |
| **BUILDING 659** | | | | | | | |
| Building Perimeter | | | | | Quarterly | Daily | Quarterly |
| Fenceline / Interior Compound (East to West and North to South) | | | | | Quarterly | Daily | |
| **BUILDING 660** | | | | | | | |
| Building Perimeter | | | | | Quarterly | Daily | Quarterly |
| Fenceline / Interior Compound (East to West and North to South) | | | | | Quarterly | Daily | |
| **N.I. COMPOUND FENCELINE** | | | | | Quarterly | Daily | |
| **N.I. OPEN COMPOUND** | | | | | Quarterly | Daily | Quarterly |
| **N.I. PARKING AREA** | | | | | Quarterly | Daily | |

# APPENDIX D – CUSTODIAL SERVICES

## 1. GENERAL

2.1 The Contractor shall furnish all labor, materials, supplies, equipment, tools, transportation, permits and insurance to perform all custodial services required under this agreement. At any time, the customer may delete, add, increase, or decrease any level of service, or quantity of buildings. Such changes will result in a contract modification.

2.2 Custodial service requirements are comprised of three specific functions, (1) Basic Service (classes of service), (2) Special Requirements and (3) Project Work Requirements. All custodial services, with the exception of Indefinite Quantity Work, shall be performed under this contract.

2.2.1 All references in this contract to locations and functions of spaces are as they exist at the contract start date. The Government may modify these references, when necessary, to adjust changes in workload, or types of service required and to discontinue service. If the cost of providing services is affected by these changes, a contract modification will be issued in accordance with the "CHANGES" clause (FAR 52-243-4).

2.2.2 Basic service performed under this contract is inclusive of, "Space Cleaning", "Floor Care", and "Restroom Cleaning and Servicing". These functions are incorporated to form a "Class of Service" which are identified by capital letters (A, B, C, D, E). Each class of service lists the individual work tasks and the frequency of performance. The Classes of Service are shown at the end of this section. All work tasks scheduled within a class of service within a particular building will be carried on without a break in service until the work is completed. For example, carpet shampooing shall be scheduled so that work will be completed during an eight-hour shift. Exceptions to the above are delays caused by the Government due to activity functions, restricted entry, holidays or other occurrences that would interfere with work performance. In such cases, work will be re-scheduled. A service schedule, indicating buildings, class of service and service frequency is at the end of this section.

2.2.3 The Government will normally schedule custodial service on weekdays (Monday through Friday). However, "Service Request" service(s) may be scheduled on Saturday, Sunday or holidays. Routine service(s) that fall on a holiday shall be performed the day before or the day after the holiday.

2.2.4 Modified service is a Class of Service that requires only the "daily" work tasks within a class of service to be performed 6 or 7 days per week. All other work tasks are not affected and shall be performed as specified.

2.2.5 Cleaning stains from any surface is considered part of routine space cleaning and is accomplished under this contract. Stains shall be removed by using approved industry methods and cleaning agents. When, in the judgment of the COR, the entire surface must be cleaned, the work will be ordered under the indefinite quantity portion of this contract or accomplished by other means.

## 3. SPACE CLEANING

3.1 Performance requirements for space cleaning are specified in the clauses that follow. The Contractor shall provide cost-effective and quality service to achieve a clean, soil free environment, including full stocking of restroom supplies.

3.2 Concrete/quarry tile, terrazzo, hardwood and resilient floors, stairways and landings shall be swept or dust mopped so as to remove all loose dirt, dust or debris, except floors in "Dust Free" spaces, which shall be vacuumed with a HEPA vacuum. Gum and like material shall be scraped from floor. Dust mops shall be treated with a soil attracting cleaning agent.

3.3 Carpeted floors, stairways and landings, including rugs shall be vacuumed free of all loose soil and debris. Spot stains and gum, or other such debris, in fabric shall be removed using approved industry methods and products

that will not cause fabric damage. The Contractor shall be liable for all damage caused by his equipment, use of improper cleaning agents or cleaning methods. Carpets in "Dust Free" spaces shall be vacuumed with a HEPA vacuum.

3.4 The Contractor shall spray clean and buff resilient floors to remove stains, soil, and gum and scuff marks and restore the high-gloss floor finish. Prior to spray cleaning, floors shall be dust mopped and damp mopped. Floor finish used shall be manufactured for use with high-speed machines, and contain a blend of detergents and polymers that emulsify soil and restore floor finish. When completed, a spray cleaned and buffed floor shall have a uniform, "wet look" finish from wall to wall, free of soil, stains, scuffs and heel marks. Baseboards, cove base and kick plates of office panels shall be clean and soil free.

3.5 Floors in "Dust Free" spaces shall be cleaned with products specifically formulated for laminated floors. Special care shall be taken in spaces with raised floors to prevent liquid from seeping into sub floor.

3.6 All waste containers, including small office receptacles and large "brute" type trash containers, shall be emptied and plastic liners installed. All plastic liners with food wastes, or that are soiled and/or leaking, shall be replaced with a new plastic liner. Waste containers that are soiled or emit rancid odors shall be washed inside and outside with disinfectant that cleans and removes odors. Waste containers that are removed for cleaning shall be replaced with substitute containers of the same style and capacity. A clean container shall be in a soil and odor-free state, with liner installed. All collected waste shall be disposed of in the nearest outside trash collection point. Waste that falls on the floor and outside grounds during waste removal shall be picked up and disposed of by the Contractor.

3.7 Shredded paper and recyclable paper waste in specially marked or colored receptacles shall be emptied and contents disposed of in refuse containers specifically used for recyclable paper waste.

3.8 Ash receptacles in designated outdoor smoking areas shall be emptied and cleaned. Sand in ash-filled receptacles will be sifted clean and replenished as required to fill receptacle to proper level.

3.9 Low dusting and cleaning is considered an integral part of space cleaning and is performed in designated spaces at the frequencies specified. Low dusting and cleaning shall be performed in a space to a height of 6'-0" measured from the floor level, except for (b) and (c) below. A complete service shall leave surfaces in a clean soil free state. Low dusting includes the following work:

3.9.1 All doors, including glass in doors, sills, blinds, equipment and partitions shall be dusted and wiped clean. Graffiti, if present, shall be removed. Drapes/curtains shall be vacuumed clean.

3.9.2 Walls, regardless of texture or finish, shall be cleaned to remove routine spills, stains, splatters, marks graffiti, etc, using approved industry methods and products.

3.9.3 Clean both sides of glass surfaces in interior and exterior doors and glass-paneled walls, from bottom to top, regardless of height. A clean clear appearance will be displayed. This task includes modular office spaces in warehouse environment.

3.9.4 Air exhaust and intake vent covers in walls and ceiling regardless of height shall be Vacuumed and wiped clean.

3.9.5 If present, chalkboards, trays and erasers shall be cleaned.

3.9.6 Drinking fountains shall be cleaned and disinfected. Cleaning shall remove stains, smudges and scale.

3.9.7 Remove lint, cobwebs, mud, dirt, graffiti and litter from interior walls of and in the immediate areas of entrances, lobbies and vestibules, including wall entrance light fixtures. Remove standing water and debris from floor area.

3.9.8 Pick up all trash in walkways and landscaped areas of patios, atriums and solariums. Wash down walkway floor areas and remove any standing water. Tables, chairs and other furniture shall be wiped clean. Both sides of glass doors and adjacent glass panels shall be washed and wiped clean to present a clear appearance.

3.9.9 The exterior surface of appliances, vending machines, furniture, sinks, fixtures, countertops, tables, and cabinets in lounges, canteens, lunchrooms and break rooms shall be wiped clean of dust, soil and foodstuff. As appropriate, surfaces shall be disinfected, sanitized and polished.

3.9.10 The interior surfaces of passenger and service elevators, including light figures, ventilator slots, doors and upper and lower door guide tracks, shall be cleaned. Only one car per elevator bank shall be out of service for cleaning at one time. Elevator cars shall be cleaned at the first floor level only.

**3.10** High dusting and cleaning is considered an integral part of space cleaning and is performed in designated spaces at the frequencies specified. High dusting and cleaning shall be performed in a space from a height of 6'-0", measured from floor level, to a maximum height of 15'-0". A complete service shall leave surfaces in a clean "free of soil" state. High dusting includes the following work.

3.10.1 Vacuum or wipe clean horizontal and vertical surfaces, including overhead pipes, walls, ceilings, intake and exhaust vent covers and light fixtures. A clean surface shall be free of dust, lint, soil and other foreign debris.

3.11 Floor care is considered an integral part of space cleaning and is performed at the frequencies specified in designated spaces. Not all work tasks under floor care are included in a "Class of Service" and may be ordered performed under the service request (Facility Maintenance portion of the contract). A complete floor care service shall leave surface in a clean soil free state. Floor care includes the following work:

3.11.1 Prior to damp mopping floors, stairways and landings shall be swept/dust mopped. Floors shall be damp mopped with an approved cleaning solution to remove dirt, scuffmarks, streaks, smears and stains. Floors in restrooms, showers and locker rooms shall be damp mopped with a germicidal agent. Gum and similar residue shall be removed.

3.11.2 Stripping and refinishing of resilient floors requires all floors to be burnished, unless composition of floors requires low speed buffing. Resilient flooring includes tile and linoleum floor coverings. Floors shall be dust mopped prior to stripping operations. Floor shall be stripped and machine scrubbed to remove built-up wax, scuff marks and imbedded dirt. After stripping, apply neutralizer to thoroughly remove traces of stripper and ready floor for application of floor sealer and finish. Floors shall be burnished to present a maximum gloss and uniform sheen from wall to wall, including corners and base cove. Furniture or other equipment moved prior to stripping shall be returned to their original positions. A completed service shall leave floors in a clean, "wet look", appearance, free from scuffmarks, dirt, "fish eyes" and mop smears.

3.11.3 Masonry floors, which include concrete, terrazzo and ceramic tile floor coverings, shall be swept/dust mopped and machine scrubbed to remove all surface dirt, stains, scuff marks, gum and other foreign debris. A floor sealer and finish recommended for the specific type of masonry floors being serviced shall be applied. A complete service shall leave the floor with a clean uniform sheen.

3.12 Carpet shampooing is an integral part of space cleaning. Prior to shampooing, carpets shall be vacuumed free of all loose soil and debris. Stains and spots shall be treated prior to shampooing. The final step, prior to shampooing, shall be a light spray of warm, clear water followed by a thorough vacuum to extract dirt, shampoo cleaners and moisture. The carpet will be slightly damp to the touch. A completed job shall leave the carpet free of streaks, stains and spots and present a bright uniform color. Shampooing methods used will allow full use of areas with a minimum down time to occupants. Carpet fans shall be used to shorten drying time. Furniture or other equipment moved during operations shall be returned to their original positions. The Contractor shall be responsible for testing carpet fabric to circumvent damage caused by chemical reaction and shall be liable for any damage caused by his equipment, use of improper cleaning agents or cleaning method.

3.13 The sub-floor in the computer room shall be vacuumed on occasion. Prior to lifting raised floor tiles, damp mop entire space. Carefully remove floor tiles in a systematic manner, taking care not to damage floor structure. Sub floor space shall be vacuumed using a HEPA vacuum. Care shall be taken to prevent damage to cables, wiring sensors and other equipment. After vacuuming is completed, floor tiles shall be installed and complete floor shall be damp mopped. Contractor shall provide all necessary equipment and tools used to remove and handle

floor tiles. Vacuuming of sub floor shall be scheduled so that work not completed in an eight-hour shift will be carried on by the on-coming shift until all work is complete.

3.14 Restroom service consists of "Cleaning and Servicing" and is an integral part of space cleaning. Service shall be performed at the specified frequencies. The Contractor shall use cleaning products specifically manufactured for cleaning and maintaining restroom, showers and locker rooms, leaving space in a clean, safe and germ-free environment. Restrooms shall be stocked with soap and paper products. Service includes the following work:

3.14.1 Restroom fixtures, including water closets, urinals, lavatories and sinks shall be washed inside and outside utilizing a disinfectant to remove stains, feces and offensive odors. Brushes, sponges and cloths that have been used to clean toilets and urinals shall not be used to clean other fixtures or areas.

3.14.1.1 Wainscoting, partitions, walls, lockers and doors shall be cleaned free of dirt, stains, mold, mildew, feces and graffiti. Mirrors shall be cleaned and polished. All fixtures, dispensers, plumbing and hardware shall be cleaned and polished. Floors shall be swept and damp mopped to remove water, soil and stains. All waste containers shall be emptied, disinfected and plastic liners replaced.

3.14.1.2 Showers and locker rooms shall be considered part of the restroom service. Walls, floors, ceilings, shower doors, curtains and shower fixtures shall be washed and disinfected to remove scum, soap, mildew and other foreign matter. Lockers and benches shall be wiped clean. Mirrors shall be free of smears and water stains.

3.14.1.3 Floor drain strainers shall be removed, cleaned and replaced. Drain systems shall be treated with a scented drain maintainer.

3.14.2 Servicing restrooms includes inspecting and replenishing dispensers. Restroom supplies shall include, but not be limited to, sanitary paper towels, toilet tissue, seat covers, powdered hand soap, liquid soap, toilet bowl deodorant blocks and deodorized floor drain maintainer. The Contractor shall stock each restroom with sufficient product, and monitor the use of products at each restroom, to insure that the supplies will last until the next scheduled service.

3.14.3 Material and supplies to be furnished shall be compatible with existing dispensers. In areas where a fixture or dispenser is found damaged or missing, the Contractor shall replenish supplies in the best manner possible.

3.14.4 A weekly inventory shall be submitted to the COR, listing the location and description of damaged, defective or missing dispensers, fixtures, trash receptacles or other furnishing found in restroom, showers and locker rooms. The Contractor shall immediately notify the COR representative when the following discrepancies are discovered, stopped-up or overflowing fixtures or water fixtures that will not shut off. In the case of stopped-up fixtures, the Contractor shall tag the fixture with an "Out of Service" sign.

3.15 Window washing shall be performed as a Special Requirement and ordered under as a service request (Facility Maintenance portion of the contract). The Contractor shall thoroughly clean both sides of glass surfaces, including window frames, sills and sashes. Window screens, if present, shall be removed, cleaned and replaced. All glass surfaces shall be cleaned, left free of streaks and stains and wiped dry. All paint, putty, film, bird droppings and foreign matter shall be removed, leaving window and associated components in a soil free state. This work may be performed on multi-story buildings.

3.16 Light fixture cleaning except dusting which is covered under "high dustings: shall be performed as a Special Requirement and ordered as a service request (Facility Maintenance portion of the contract). Globes, reflectors, covers, diffusers and plastic side panels shall be removed from light fixtures and washed. A clean fixture shall be free of bugs, dirt, dust, grease and other foreign matter. After cleaning and reassembling, replace fixtures. Defective lights, lamps and bulbs shall be reported to the CO Representative, in writing.

3.17 Upholstered furniture shall be vacuumed and shampooed to remove stains as a service request (Facility Maintenance portion of the contract). The contractor shall be responsible for testing fabric and determining

cleaning products to circumvent damage to fabric. Anti-stain and static treatment shall be included in the service. A complete service shall leave furniture with a fresh odor and clean appearance. The contractor shall be liable for any damage caused by his equipment, use of improper cleaning agents, or cleaning methods.

3.18 Outdoor Service – Vacuum/sweep the exterior concrete and asphalt surfaces along the perimeter of the building, including first floor stairways, landings, and patio, if present. Stairways and landings shall be washed down, mapped and squeegeed dry. Water puddles shall not be allowed to form in adjacent areas. Gum and like material shall be cleaned. Vegetation growing along the edge of the building perimeter and in cracks of asphalt and concrete surface shall be removed. Use of herbicides is prohibited unless authorized by the COR.

## 4. GOVERNMENT FURNISHED PROPERTY AND SERVICES

4.1 After award, facilities will be provided for the contractor to store supplies and non-hazardous cleaning materials, etc. The government will also furnish all receptacles used for trash and recyclable materials. Beyond this, the government will not provide any facilities, goods, or services to the contractor for performance of this task order.

## 5. CONTRACTOR FURNISHED MATERIALS AND EQUIPMENT

5.1 Custodial Material and Equipment – Materials and equipment shall be of the type and quality used in large scale commercial cleaning operations, shall meet the requirements specified herein, and shall be approved by the Contracting Officer before use.

5.2 Material Requirements – All toilet supplies and custodial materials and supplies provided by the Contractor shall conform to the requirements of the latest edition of the applicable industry standards, of commercial grade and quality. Within fifteen days after award of this contract, the contractor shall submit a list of the materials to be used for approval by the contracting officer. The list shall include the manufacturer's name, brand name, and statement certifying that materials supplied meet or exceed task order requirements.

5.2.1 Toilet Supplies – To be furnished by the contractor and shall conform to the following requirements:

5.2.2 Soaps Powdered soap for dispenser use shall be mildly scented, free flowing, non-caking powder.

5.2.2.1 Liquid soap for dispenser use shall be mildly scented, approximately 15% concentrate, conforming to one of the following manufacturer's brand names as specified, or approved equal: Vestal, Calgon, Saniflush

5.2.3 Paper Towels and Toilet Paper

5.2.3.1 Paper towels shall suit the existing paper towel dispensers. The contractor shall furnish adapters as required to suit existing paper towel dispensers at no additional cost to the Government. Approximate size of roll paper towel shall be 4 ½" diameter and 11" wide, commercial grade, highly absorbent, wet strength type. Factory rejects paper or seconds shall not be used in this contract. Towels shall be delivered in unopened cartons.

5.2.3.2 Toilet Tissue shall be medium soft. The approximate size of rolls shall be 4 ½" wide, 2 ply, commercial grade. Factory rejects or seconds type paper shall not be used in this task order. Paper shall be delivered in unopened cartons.

5.2.4 Deodorizers – Liquid deodorizer shall be standard commercial type as approved by the Contracting Officer. Cake deodorants shall not be used in toilets or urinals.

5.2.5 Waste container liners – shall be medium weight and sized to fit the container.

5.2.6 Floor Care Products shall be specifically formulated for use on resilient, wood, ceramic and concrete floors. Products include stripper, neutralizer, wax, sealer, and finish. Finish will be applicable for high-speed burnisher. Specifically designed laminated floors installed in computer spaces will utilize cleaning products that are non-butyl, non-ionic, and provide anti-static properties.

5.2.7 Hand Sanitizer Dispenser Supplies – to be furnished by the contractor as approved by the Contracting Officer.

## 6. EQUIPMENT

6.1 All power driven equipment for vacuuming, floor scrubbing, waxing, and polishing shall be of the industrial type, mechanically sound, safe to operate, and in a condition that will not harm or excessively wear existing

finished and floor coverings. Storage and use of the approved equipment shall be acceptable.

6.2 Vacuum cleaners used in “dust free” spaces (such as the computer room subfloor) shall be HEPA machines, equipped with a dual micro static filter system; that includes high density filter, efficient from 90 to 95% at 1 micron and HEPA filter, efficient to a minimum of 99.99% at 0.12 microns.

6.3 Floor machines shall be capable of ultra-high speeds (1100-2000 RPM) designed to burnish floor producing a “Wet Look” shine finish.

**7. CLASS OF SERVICE SCHEDULE**

| WORK TASK DESCRIPTION | CLASS OF SERVICE AND FREQUENCY | | | | |
|---|---|---|---|---|---|
| | **A** | **B** | **C** | **D** | **E** |
| **FLOORS** | | | | | |
| a. Damp Mop | 4W | 3W | D | 2W | W |
| b. Strip, Seal, and Refinish resilient floors | SA | SA | W/O | SA | W/O |
| c. Machine Scrub and Seal | SA | SA | N/A | SA | W/O |
| d. Strip and Wax Hardwood Floors | A | W/O | N/A | W/O | W/O |
| e. Shampoo Carpet | SA | SA | N/A | SA | W/O |
| f. Vacuum Subfloors | N/A | N/A | S/A | N/A | N/A |
| **SPACE CLEANING** | | | | | |
| ***Floors, Stairways and Landings*** | | | | | |
| a. Sweep/Dust Mop | D | 3W | N/A | 2W | W |
| b. Spot Clean and Vacuum Carpets* and Rugs | *2W | 2W | 2W | 2W | 2W |
| c. Spray, Buff and Clean | 4W | 3W | N/A | 2W | W |
| ***Waste Containers*** | | | | | |
| a. Empty Containers and replace liners | D | D | D | D | D |
| b. Wash and Sanitize Containers | A/R | A/R | A/R | A/R | A/R |
| ***Walk-Off Mats and Runners*** | | | | | |
| a. Vacuum Mats and Runners | *2W | 2W | 2W | 2W | 2W |
| b. Provide Report | M | M | N/A | M | M |
| c. Replace Mats and Runners | W/O | W/O | W/O | W/O | W/O |
| ***Low Dusting and Cleaning*** | | | | | |
| a. Dust or vacuum fabric and non-fabric furniture | W | SM | N/A | M | M |
| b. Clean and dust wood and metal furnishing and furniture | W | SM | N/A | M | N/A |
| c. Polish wood and metal furnishing and furniture | M | Q | N/A | Q | N/A |
| d. Clean wall, doors, blinds, partitions, panel, and associated glass | W | Q | M | M | Q |
| e. Vacuum drapes and curtains | SM | M | N/A | Q | SA |
| f. Clean both sides of glass doors, and glass wall panels | SM | M | M | M | Q |
| g. Clean air intake, and exhaust vents, railing and horizontal ledges | SA | A | N/A | A | A |
| h. Clean chalk board and trays | D | D | N/A | D | N/A |
| i. Clean and sanitize drinking fountains | D | D | N/A | D | D |
| ***Entrances, Lobbies, Vestibules*** | | | | | |
| i. Clean interior walls | W | SM | N/A | M | Q |
| j. Clean glass doors and panels | D | 3W | W | W | SM |
| ***Patio, Atrium and Solarium*** | | | | | |
| k. Police areas | D | D | N/A | D | D |
| l. Wash down area | W | SM | N/A | M | Q |
| m. Clean outdoor furniture | D | D | N/A | D | D |
| n. Clean glass doors and panels | W | SM | N/A | M | W/O |
| ***Lounges, Canteens and Lunch Rooms*** | | | | | |
| o. Clean and sanitize appliances, sink, furniture, countertop, and cabinets | D | D | N/A | D | D |
| p. Dust and polish appliances, countertops, and cabinets | D | W | N/A | SM | M |
| q. Dust vending machines | D | W | N/A | W | M |
| ***Elevators*** | | | | | |
| r. Clean interior surface | N/A | N/A | N/A | N/A | N/A |
| | | | | | |
| s. Polish metal surfaces | N/A | N/A | N/A | N/A | N/A |
| **RESTROOM CLEANING AND SERVICING** | | | | | |
| ***Restroom Cleaning*** | | | | | |

| | | | | | |
|---|---|---|---|---|---|
| a. Clean and sanitize fixtures | D | D | N/A | D | D |

| | | | | | |
|---|---|---|---|---|---|
| b. Empty trash containers | D | D | N/A | D | D |
| c. Clean walls, partitions and lockers | W | SM | N/A | M | M |
| d. Clean and sanitize showers | D | D | N/A | D | D |
| e. Clean mirrors | D | D | N/A | D | D |
| f. Clean and maintain floor drains | SM | SM | N/A | SM | SM |
| ***Restroom Servicing*** | | | | | |
| a. Clean dispensers | D | D | N/A | D | D |
| b. Replenish paper and soap products | D | D | N/A | D | D |
| c. Provide discrepancy report | W | W | N/A | W | W |

**Legend:**

| | | |
|---|---|---|
| D – Daily | W – Weekly | M – Month |
| SM – Semi Month | Q – Quarterly | A/R – As Required |
| A – Annually | SA – Semi Annually | N/A – Not Applicable |
| W/O – Work Order | | |

* SPACE CLEANING SPECIAL REQUIRMENTS – Vacuuming of carpet twice weekly and after 14:30 hours in Captains and Deputy Director Office.

SPECIFIC CUSTODIAL REQUIREMENTS – Floors Strip/Seal & Carpet Shampoo Semi-Annually

Building 3581 shall have semi-annual floor cleaning (shampoo and cleaning of carpet), daily garbage disposal, and daily vacuuming.

Quantity of hand sanitizing dispensers to be replaced per building are as follows:

| Building | Quantity of hand sanitizing dispensers to be replaced |
|---|---|
| 3581 | 2 |
| 3483 | 2 |
| ESOC | 1 |
| 656 | 3 |
| 657 | 1 |
| 658 | 1 |
| 659 | 1 |
| 660 | 2 |

| LOCATION | CLASS | | |
|---|---|---|---|
| | Tile | Carpet | Janitorial |
| ***BUILDING 3641*** | | | |
| Administration Cubicles / Reception Area | D | D | D |
| Break Area | D | | D |
| Men / Women's Restrooms | D | | D |
| Exterior Break Area and Designated Smoking Area | | | D |
| ***BUILDING 3322*** | | | |
| North Office | D | | D |
| Single Restroom | D | | D |
| ***BUILDING 3483*** | | | |
| Admin area/offices | A | A | A |
| Conference Room | A | A | A |
| Men / Women's Restrooms | A | | A |
| 10' x 10' Modular Office in Warehouse Area | A | | A |
| Installation services (4) Offices | A | A | A |
| Exterior Break Area and Designated Smoking Area | A | | A |
| ***BUILDING 3581*** | | | |
| East Administration (10) Offices | A | A | A |
| East Administration Cubicles and Open Areas | A | | A |
| East Administration Conference Room | A | A | A |
| East Administration Kitchen and Restrooms | A | | A |
| East Administration Restrooms, 2nd Cleaning | A | | A |
| East Admin Exterior Break Area and Designated Smoking Area | | | A |
| North End Men / Women's Restrooms | A | | A |
| Maintenance Shop (4) Offices / Corridor | A | | A |
| Maintenance Shop Modular Lunchroom | A | | A |
| Maintenance Shop (2) Modular Offices | A | | A |
| Maintenance Shop Men / Women's Restrooms | A | | A |
| Maintenance Shop Exterior Designated Smoking Area | | | A |
| ***N.S. ENTRANCE GUARD SHACK*** | D | | D |
| ***N.S. EXIT GUARD SHACK*** | D | | D |
| ***BUILDING 660*** | | | |
| Office Space | A | | A |
| Break Room | A | | A |
| Weight Room | A | | A |
| Men / Women's Restrooms | A | | A |
| North Exterior Break Area and Designated Smoking Area | | | A |
| ***BUILDING 659*** | | | |
| Office Space | A | | A |
| Men / Women's Restrooms | A | | A |
| ***BUILDING 658*** | | | |
| Office Space | A | | A |
| Men / Women's Restrooms | A | | A |
| ***BUILDING 657*** | | | |
| Office Space | A | | A |
| Men / Women's Restrooms | A | | A |
| ***BUILDING 656*** | | | |
| (2) Office Spaces in Admin Area Bay 2 | A | | A |
| Men / Women's Restrooms | A | | A |

| | | | |
|---|---|---|---|
| Lunchroom | A | | A |
| Training Room (2) Bay 3 55 | A | A | A |

| | | | |
|---|---|---|---|
| Modular Office 20’ x 20’ inside Cage, Bay 1 | A | | A |
| IT Support Office | A | A | A |
| Modular Office, Bay 3 | A | A | A |
| South Exterior Break Area and Designated Smoking Area | A | | A |
| MSO Modular | SA | | D |
| ***N.I. GUARD SHACK*** | A | | A |

# APPENDIX E - FACILITIES MAINTENANCE

## 1. GENERAL

1.1 Scope of Work. The contractor shall provide all personnel, equipment, materials, tools, supervision, transportation and facilities required to perform day-to-day maintenance alterations, and renovations to buildings occupied by Defense Distribution Depot, San Diego. Buildings are at Naval Air Station, North Island and Naval Station, San Diego. Provide individual trades or team of trades as needed. Services are to be on-call, by issuing service requests.

1.2 Services are to be on-call, indefinite delivery/indefinite quantity, know as service requests. Each maintenance call/service request will be negotiated prior to the Contractor performing work. Invoices will be required for all materials, and equipment.

1.3 Alterations are defined as small projects where you might change the configuration of a system or structure and might or might not have a detailed SOW. Alterations consist of improvements, changes, modifications, and additions to existing systems or structures. Renovations for more complex projects may require a statement of work and possibly have a sketch. In most cases, these will be addressed as modifications to the contract.

1.4 Minor construction activities include alterations, renovations, and modifications to existing facilities and shall be issued using service requests. Construction activities will be limited to $2,000.00. The Contractor must adhere to all applicable contract clauses for firm fixed price construction contracts. Construction activities will be subject to firm-fixed price negotiations. Approval will be subject to the Contracting Officer.

## 2. FACILITY MAINTENANCE – Service requests

**2.1** Individual service requests will be initiated throughout the contract. These service requests will be issued in writing. Service requests consist of various facility maintenance tasks such as installation, placement, improvements, additions, renovations, and upgrades to the facility. The complexity ranges from relatively minor work to labor extensive, long duration tasks. **THE CONTRACTOR MAY NOT PROCEED TO WORK ON THESE SERVICE REQUESTS WITHOUT WRITTEN APPROVAL FROM THE CONTRACTING OFFICER OR DULY DESIGNATED CONTRACTING OFFICER'S REPRESENTATIVE (COR).**

2.2 The Contractor must obtain approval from the COR prior to commencing work on the service request.

2.3 For each new service request, the Contractor will review and analyze the customer's request. The Contractor shall submit a proposal in sufficient detail for each service request. Labor rates will be subject to either Service Wage Rates or Davis-Bacon Wages, including established handling fee. The fixed hours for completing the service request work will be verified using Means or based on fair and reasonable hours associated with the service request. Service Requests exceeding $2,000.00 or 32 hours are subject to Davis-Bacon Wages if the work is construction-related. Service Requests less than 32 hours are subject to Service Wage Rates. Proposed hours will be evaluated using Means, past service request, and previous type of work. Hours will be subject to negotiations.

2.4 Payment for these service requests will be made under one contract line item for Service Requests, named (Facility Maintenance).

**NOTE**: The lump sum amount or "pool" is designated to pay for the indefinite delivery/indefinite quantity portion of Facility Maintenance following the contractual provisions. This "pool" is set for the payment of approved service requests. The Contractor is not automatically entitled to the set lump sum contract amount specified herein this contract or bid schedule. The Contractor must earn this pool of money by means of approved service requests.

2.5 Facility Maintenance/Service Request CLIN is for service requests not exceeding $2,000 for labor, equipment, and materials. These requests are subject to the Service Wage Rates. Service requests exceeding $2,000 and in which involve minor construction activities are subject to the Davis-Bacon Wage Determinations.

2.6 Material and Equipment are subject to a handling fee. Markups permitted for this category include the Materials Handling Cost pursuant to FAR 16.601(b)(2). Equipment fees will be based on equipment owned rate schedule, or rental invoices for the equipment. Rental fees and hours will be verified using Means or competitive bids. Material and Equipment will be subject to a negotiated handling fee only.

2.7 The Contractor is responsible for all materials and supplies necessary for Facility Maintenance Service Requests. Facility Material includes materials that the Contractor may have to provide to complete service requests. Typical materials associated with service calls includes, but not limited to complex parts to maintain existing equipment, large quantities of supplies associated with assessing a service request, and bulk items for renovations and/or modifications to existing equipment, or facility. Typical materials associated with service requests includes parts, light bulbs, custodial items, paint, Freon, belts, filters, lumber, glass, doors, nails, bolts, lighting fixtures, door knobs, tires, bicycle parts, plumbing fixtures, carpet, office supplies, and any other items necessary to maintain existing systems. A single material cost greater than $2,500.00 will require three (3) independent quotes for approval. Quotes include catalogs, invoices, subcontractor's quotations, flyers, phone calls, and faxes from reputable sources. Sources include, but not limited to, commercial vendors, contractor's suppliers, and contractor owned material.

2.8 Facility Equipment includes Contractor's provided equipment fees based on equipment owned rate schedule, or rental invoices for the equipment. Rental fees and hours will be verified using Means or competitive bids. Typical equipment may include various man lifts necessary for access to maintain, repair, install, or replace facility, air compressors, forklifts, pressure washer, sewer auger, pneumatic chipping tools, concrete cutting equipment, trench compactors, scaffolding, and hand held power tools. Other Contractor's equipment includes golf carts, leased vehicles, and any other equipment necessary to complete the work tasks. The Contractor shall provide their own golf cart.

2.9 The Contractor is accountable for maintaining, tracking, soliciting, and negotiating fair and reasonable cost associated with each service request. The Contractor must maintain, store, file, and if requested provide all copies of invoices, and/or receipts for costs associated with proposed service request. The Contractor must keep a copy of all such invoices on site at the customer's location.

2.10 Tasks will include, but not be limited to:

2.10.1 Building electrical systems: Repair or modifications to circuits, power panels, lighting, workstations, motorized cargo doors, etc.
2.10.2 Plumbing systems: Repairs to drains, automatic and manual flushometers and faucets
2.10.3 Mechanical systems: Repairs to HVAC, programmable temperature controls, roof fans, window type A/C units, and whole building refrigeration equipment
2.10.4 Structural systems: Carpentry and painting, building with steel stud construction, laying/replacing vinyl floor tile, adjusting doors to fit/close properly, move furniture, install workstations, repair drywall and dropped ceilings.
2.10.5 Modifications such as office renovations, installation of new equipment, removal of old equipment, alterations to inside floor plans.
2.10.6 Roll up doors: quarterly preventative maintenance (QT PM).
2.10.7 High speed doors: QT PM
2.10.8 15 warehouse fans: QT PM.

| Building Number | Quantity of Roll Up Doors needing QT PM | Quantity of High Speed Doors needing QT PM | Quantity Warehouse Fans needing QT PM |
|---|---|---|---|
| 656 | 15 | | 5 |
| 657 | 16 | | |
| 658 | 16 | | |
| 659 | 16 | | 3 |
| 660 | 16 | | 5 |
| 3322 | 2 | | |
| 3581 | 31 | 4 | 2 |
| 3483 | 9 | | |
| Totals | 121 | 4 | 15 |

2.11 Personnel: All personnel must be able to read, write, speak, and understand English. All personnel are to have a minimum of five years of experience in the respective trade and be competent to the journeyman level.

Response Time: Service calls may be categorized as

| | |
|---|---|
| Emergency: Threat to health and safety | Respond within four hours. Must be corrected/controlled immediately |
| Urgent: System failure/Operational Shutdown | Respond within 24 hours. Must be corrected same day |
| Routine | Response can be scheduled. Correction as determined at time of call |

**3. EMERGENCY SERVICES**

3.1 Emergency Service and Emergency Repair Service - The Contractor shall respond to service calls for these services only when placed by the Contracting Officer or persons identified as authorized to make calls. Emergency services include service between scheduled inspections, maintenance, and cleaning, and is for the purpose of diagnosis or repair of malfunctioning equipment and the resetting of controls. Repairs, as defined herein, also may be performed in response to an emergency service call. After hours will be performed on an as-needed basis with pre-approved points of contacts (POC) between the Contractor, customer, and Government.

3.2 Emergency services will be treated as a service request and may follow different approval procedure and payment. The Contractor is responsible with providing all necessary documentation, invoices, or quotes to verify emergency services and, if deemed appropriate by the Contracting Officer, may follow the time and material contract provisions.

**4. MISCELLANEOUS REOCCURRING FACILITY MAINTENCE EQUIPMENT**

4.1 The Contractor shall provide all labor, materials, and equipment to inspect, maintain, lubricate, and clean twenty-three (23) hydraulic and six (6) manual dock levelers on a semi-annual schedule. Preventive maintenance shall include at a minimum the following procedures:

## HYDRAULIC DOCK LEVELERS

SEMI-ANNUALLY:

- Inspect general conditions
- Lubrication (use 30 weight)
    - Dock levelers support cam and hinge
    - Lip hinge assembly

    - Ramp hinge pins
    - All other points as needed
- Inspect Hydraulic Fluid
    - Change if dirty or burnt
    - Replenish to fill status
- Cleaning
    - As required to remove any debris
    - Ensure labels are legible and in place
- Clean Strainer
    - Remove and clean hydraulic oil pump strainer and reservoir magnet

## MANUAL DOCK LEVELERS

SEMI-ANNUALLY:

- Inspect general conditions
- Lubrication (use 30 weight)
    - Dock levelers support cam and hinge
    - Lip hinge assembly
    - Ramp hinge pins
    - All other points as needed
- Cleaning
    - As required to remove any debris
    - Ensure labels are legible and in place

## DLA DOCK LEVELERS AS OF AUGUST 2007

| EJON | Manufacturer | Serial # | Location | Door # | Type | Model # | Capacity |
|---|---|---|---|---|---|---|---|
| DLFE11 | Kelley | 415812 | FEDEX | Y-1 | Manual | 7081 | 20,000 |
| DLFE12 | Kelley | 32678 | FEDEX | Y-2 | Manual | CMC81672 | 25,000 |
| DLFE13 | Kelley | 85558 | FEDEX | Y-3 | Manual | CMC81672 | 25,000 |
| DLFE14 | Ritehite | m6000776 | FEDEX | Y-4 | Manual | RH78 | 30,000 |
| DLFE15 | Ritehite | m6000557 | FEDEX | Y-5 | Manual | RH78 | 30,000 |
| DL8301 | Kelley | E020119 | 3483 | 3483-3 | Hydraulic | H96538 | 32,000 |
| DL8302 | Kelley | E020121 | 3483 | 3483-4 | Hydraulic | H96538 | 32,000 |
| DL8303 | Kelley | E020119 | 3483 | 3483-5 | Hydraulic | H96538 | 32,000 |
| DL8304 | Kelley | E020117 | 3483 | 3483-6 | Hydraulic | H96538 | 32,000 |
| DL8305 | Kelley | E020120 | 3483 | 3483-7 | Hydraulic | H96538 | 32,000 |

| | | | | | | | |
|---|---|---|---|---|---|---|---|
| **DL8306** | **Kelley** | **E020122** | **3483** | **3483-8** | **Hydraulic** | **H96538** | **32,000** |
| **dz2008** | **Serco** | **Unknown** | **3322** | **3322-2** | **Hydraulic** | **FC107** | **Unknown** |
| **dl8307** | **Kelley** | **11dd120686m** | **3483** | **3483 Dock** | **Hydraulic** | **H1981660** | **30,000** |
| **dl8308** | **Kelley** | **11dd120685m** | **3483** | **3483 Dock** | **Hydraulic** | **H1981660** | **30,000** |
| **dl8309** | **Kelley** | **11dd120687m** | **3483** | **3483 Dock** | **Hydraulic** | **H1981660** | **30,000** |
| **DL8101** | **Kelley Atlantic LTD** | **55261** | **3581** | **3581-1** | **Hydraulic** | **CH630** | **30,000** |
| **DL8102** | **Kelley Atlantic LTD** | **55259** | **3581** | **3581-2** | **Hydraulic** | **CH630** | **30,000** |
| **DL8103** | **Kelley Atlantic LTD** | **55264** | **3581** | **3581-3** | **Hydraulic** | **CH630** | **30,000** |
| **DL8105** | **Kelley Atlantic LTD** | **55265** | **3581** | **3581-5** | **Hydraulic** | **CH630** | **30,000** |
| **DL8106** | **Kelley Atlantic LTD** | **55263** | **3581** | **3581-6** | **Hydraulic** | **CH630** | **30,000** |
| **DL8107** | **Kelley Atlantic LTD** | **55258** | **3581** | **3581-7** | **Hydraulic** | **CH630** | **30,000** |
| **DL8108** | **Kelley Atlantic LTD** | **55260** | **3581** | **3581-8** | **Hydraulic** | **CH630** | **30,000** |
| **DL5611** | **Blue Giant** | **9945682** | **656** | **656-16** | **Manual** | **Unknown** | **30,000** |
| **DL5601** | **Kelley** | **10187153** | **656** | **656-15-1** | **Hydraulic** | **6X8XP** | **30,000** |
| **DL5602** | **Kelley** | **10187151** | **656** | **656-15-2** | **Hydraulic** | **6X8XP** | **30,000** |
| **DL5603** | **Kelley** | **10187154** | **656** | **656-15-3** | **Hydraulic** | **6X8XP** | **30,000** |
| **nz1008** | **Blue Giant** | **9945681** | **660** | **None** | **Hydraulic** | **Unknown** | **30,000** |
| **nz2002** | **McGuire** | **m183461** | **660** | **660-8** | **Hydraulic** | **Unknown** | **Unknown** |
| **nz2004** | **Blue Giant** | **8160192** | **660** | **660-8** | **Manual** | **Unknown** | **30,000** |

The Contractor shall provide all labor, materials, and equipment necessary to for recurring maintenance for two (2) Diesel Generators. Preventative maintenance includes cleaning, lubrication, inspection, and only trained and authorized personnel are permitted to maintain, repair, adjust, and inspect diesel generators. Preventative maintenance shall be performed regularly on a monthly, quarterly, and annual schedule.

## ONAN Diesel Generator
## DX1009 (BUILDING 3483)

MONTHLY:

1. Service Battery
    - 1.1 Check for proper charge and water level
    - 1.2 Check battery connections for corrosion and tightness
    - 1.3 Clean battery with a mixture of 1 pound backing soda to ½ gallon HOT water
2. Test System
    - 2.1 Test run generator. Ensure the Main Breaker (output to building is open)

**NOTE**: Upon completion of test run, ensure that the breaker is in the REMOTE RUN position and the breaker is closed for remote starting.

QUARTERLY:

1. Inspect, Service, Adjust
    - 1.1 Check all mounting bolts for tightness
    - 1.2 Inspect engine mounts for damage
    - 1.3 Inspect V-Belts for wear
    - 1.4 Check engine oil. Add if necessary.
    - 1.5 Check coolant. Add if necessary

1.6 Check fuel level. Notify Contracting Officer if less than ¾ full.

ANNUALLY:

1. Air Cleaner.
   1.1 Inspect air filter. Clean or replace if necessary
2. Lubrication.
   2.1 Change engine oil and filter

## Diesel Generator
## DX1005 (BUILDING 3581)

QUARTERLY:

**NOTE:** Switch main electrical circuit breaker to open. (It is located on the right side of the control access panel of the generator). Set the engine control switch located on the control panel to OFF/RESET

Inspect, Service, Adjust

1. Engine Oil
   1.1 Be sure to read the side of the dipstick marked ENGINE STOPPED.
   1.2 Fill with 30W oil. Do not overfill.
2. Belts
3. Coolant
   3.1 Maintain coolant to the bottom of the fill pipe. Use caution if engine is hot.
   3.2 Check coolant condition
4. Coolant/Block Heater
   4.1 Verify block heater is working. Block should be approximately 90 degrees Fahrenheit
5. Walk around inspection
   5.1 Check the engine, radiator, and generator for debris foreign objects, loose or broken fittings, guards, or other.
   5.2 Verify the exhaust fans are in working order
   5.3 Verify window louvers are in working order

   **NOTE**: Louvers should automatically open when generator is running.
   5.4 Check for other signs of damage or abnormal appearance to other equipment installed in the room.
6. Battery Charger
   6.1 Check for proper operation
   6.2 Ensure all terminals and connections are tight and free of corrosion.
   6.3 Inspect engine mounts for damage
7. Run Engine
   7.1 Verify that the main circuit breaker on the side of the generator open
   7.2 The oil pressure switch requires 75 seconds to reset between attempted starts or after shutdown.
   7.3 Caution. Hearing protection is required when running generator
   7.4 Start the engine via the engine control switch located on the control panel. Run the engine for about 15 minutes but no more than 30 minutes if not operating under a load.
8. Record readings and observations
   8.1 Verify that the oil pressure gauge registers in the normal range and does not fluctuate.
   8.2 Verify coolant temperature is approximately 170 degrees Fahrenheit unloaded.
   8.3 Caution. Verify frequency (RPM should be set at 1800 to obtain 60 Hertz). Generator voltage should be 480 Volts.
   8.4 Check for leaks and unusual noises while engine is running.
   8.5 Verify that the battery charger is working.
9. Automatic Switch
   9.1 Check and ensure that all switches are in the proper position for AUTO START
10. Fuel
   10.1 Check fuel filter. Replace if needed. NOTE: When the gauge shows in the red, wash out the primary filter. If the gauge still shows in the red, then replace the filter.
   10.2 Record the fuel level. Notify the Contracting Officer when fuel level falls below ¾ of a tank.
11. Service Batteries
   11.1 Check for proper charge and water level
   11.2 Check battery connections for corrosion and tightness.
   11.3 Clean battery with a mixture of backing soda and HOT water (1 pound of baking soda to ½ gallon of HOT water).

ANNUALLY:

Service Generator

1. Air Filter
   1.1 Inspect, clean, or replace if necessary.
2. Generator and Generator Room
   2.1 Clean
3. Linkages
   3.1 Check and adjust as necessary
   3.2 Lubricate all fittings.
4. Alarms and shutdown devices
   4.1 Inspect and test for proper operation.
5. Generator
   5.1 Vacuum clean and check wiring and terminals for the regulator, exciter, and megometer. Record readings.
   5.2 Lubricate bearings.
6. Lubrication
   6.1 Replace engine oil and filters.
7. Cooling System
   7.1 Drain, flush, and refill with proper amount of coolant and inhibitor. Dispose of used coolant as hazardous waste.
8. Turbocharger
   8.1 Inspect, repair, or replace as required

## UPS Systems
## PS0002 (BUIDLINGS 3581 and 656)

The Contractor shall provide all labor, materials, and equipment necessary for recurring UPS preventative maintenance. Preventative maintenance includes cleaning, inspection, and filter air replacement. Preventative maintenance shall be performed regularly on a monthly schedule.

MONTHLY:

1. Sweep out UPS rooms
2. Replace filters in UPS and on doors if installed.
3. Report all abnormalities.

## GEM SCOOTERS AND CLUB CARS

The Contractor shall provide all labor, materials, and equipment necessary for recurring scooter maintenance. Preventative maintenance includes cleaning, lubrication, inspection, and only trained and authorized personnel are permitted to maintain, repair, adjust, and inspect GEM scooters. Preventative maintenance shall be performed regularly on a monthly schedule.

MONTHLY:

1. Check all seven batteries for the following
   1.1 Check for proper water levels in all cells
   1.2 Wash tops and terminals of all batteries
   1.3 Check terminal connections
   1.4 Check hold down strap tension
   1.5 Check for worn insulation or frayed wires.
2 Check tires for correct PSI and wear. Adjust as required.
3 Check for proper operation of parking brake. Adjust as required.
4 Check brake fluid reservoir for proper level.
5 Grease and lubricate all grease points as needed.
6 Check seat belts for proper operation (GEM CARS ONLY; N/A FOR CLUB CARS).
7 Check headlights, horn, turn signal, windshield wiper and brake lights for proper operation (GEM CARS ONLY; N/A FOR CLUB CARS).
8 Clean interior of vehicles.
   8.1 Seats – use a clean damp cloth to clean vinyl seats or solvent type vinyl cleaner.

8.2 Plastic interior – use mild detergent and warm water.
8.3 Windshield – use liquid commercial grade glass cleaner. Do not use abrasive cleaners (GEM CARS ONLY; N/A FOR CLUB CARS).

9 Clean exterior of vehicle.
9.1 Wipe down exterior with warm water, mild detergent/cleaner and damp cloth.

10 Provide corrective maintenance as needed/recommended by manufacturer.

| Manufacturer | Serial Number | DLA EJON # | Location | Model | Color |
|---|---|---|---|---|---|
| GEM | 5ASAK47492F022736 | SF9649 | Bldg 322 | 4-Seater | Blue |
| GEM | 5ASAK47492F023461 | SF9650 | Bldg 322 | 4-Seater | Green |
| GEM | 5ASAK47492F018265 | SF9651 | Bldg 322 | 4-Seater | Yellow |

At any time through this contract, the customer may include various other facility reoccurring maintenance items be added and/or deleted to this installation support contract. In such, a formal modification will be issued between the Contractor and the Government using the Changes Clause, FAR 52.243-4.

The Contractor shall provide all labor, material and equipment to perform monthly inspection and test for proper operation of Emergency and Exit Lighting in 3581,3483, 3322, 3641, 656, 657, 658, 659, and 660. The Contractor shall ensure the annual battery powered emergency and exit lighting system remains operable for a minimum of 1.5 hours with the results documented for the annual emergency and exit lighting system functional testing and safety inspection. The Contractor needs to repair and replace the emergency and exit lighting system including but not limited to batteries to ensure continuous operation of emergency and exit lighting systems. Prepare and submit a report within 72 hours of completing the inspection indicating inspection results.

The Contractor shall provide all labor, materials, and equipment necessary to perform semi-annual maintenance for government forklift EJON #SF1749. Preventative maintenance includes cleaning, lubrication and inspection and only trained and authorized personnel are permitted to maintain, repair, adjust and inspect forklift. Preventative maintenance shall be performed on a semi-annual basis.

## 35’ JLG SCISSORLIFT
## EJON# DX9013, Serial No. 0200101363

The Contractor shall provide all labor, materials, and equipment necessary to perform semi-annual maintenance for government scissor lift EJON #DX9013. Preventative maintenance includes cleaning, lubrication and inspection and only trained and authorized personnel are permitted to maintain, repair, adjust and inspect scissor lift. Preventative maintenance shall be performed on a semi-annual basis.

SEMI-ANNUALLY: Check for
Structural
1. Check for manufacturer bulletins.
2. Appearance.
3. Chassis structure and grounding straps as required.
4. Platform structure.
5. Scissor arms, pins bushings, wear pads, and attach points.
6. Stabilizers / Pot-hole protection.

Components
7. Proper rim/tire size, lugs, condition and inflation.
8. Steer, drive, axle components and interlocks.
9. Component access doors.
10. Battery condition, terminal connections and fluid levels.
11. Charging system.
12. Maintenance safety bar.
13. Hydraulic level, hoses, cylinders, and components.

Engine
14. Engine fluid/filter intervals and service as required.

15. Fuel system components.
16. Air induction system / air reduction indicator.
17. Radiator / cooling system, fluid level free of debris.
18. Charging system.
19. Exhaust system.
20. Engine / components secure and performs properly.

Controls
21. Upper and lower controls functional and return to neutral.
22. Limit switches, cutouts, alarms, and level indicators.
23. Enable and emergency stop switches.
24. Emergency lowering system.
25. All gauges and hour meter.
26. Brake system.

Platform
27. Platform, rollers, pins, rails, gateway, and lanyard attach points.
28. Control box, decals, and boots.
29. Electrical cables / connections.
30. Power to platform and GFI as equipped.
31. Optional equipment.
32. No modifications unauthorized by the manufacturer.

General
33. Operational and safety decals present and legible.
34. Equipment # legible.
35. Operator, safety and ansi manuals present and legible.
36. Grease and lubrication, leaks check.
37. Inspection decal updated.
38. Fueled / batteries charged.

4.2 The Contractor shall provide all labor, materials, and equipment necessary to perform semi-annual maintenance for government boom lift EJON #_____. Preventative maintenance includes cleaning, lubrication and inspection and only trained and authorized personnel are permitted to maintain, repair, adjust and inspect boom lift. Preventative maintenance shall be performed on a semi-annual basis.

## GENIE BOOMLIFT, TRI-FUEL
## EJON# DX1010, SERIAL NO. Z45-004957

SEMI-ANNUALLY:
Functions and Controls
1. Condition of control enclosures and protective boots/guards. All controls return to neutral/off position when released. Detents properly lock controls in neutral/off position.
2. Footswitch operates properly and shuts off operation when released.
3. Emergency stop switches at the ground and platform control stations stop platform movement and all functions.
4. All function and speed cutouts operate properly.
5. Manual descent system and/or auxiliary power system operates properly.
6. Capacity indicator system operates properly.
7. Swing and drive brakes operate properly.
8. Machine controls operate properly at platform and ground control stations and meet manufacturer's performance recommendations (lift, swing, drive, telescope, etc).
9. Articulated boom synchronization and sequence system operates properly.

Platform Assembly
10. Platform installed and secure. Mounting hardware free of damage and secure.
11. Lanyard anchorage points secure and undamaged. Platform guardrails and floor in place, secure, and undamaged. Gate opens and latches properly.

Boom Assembly

12. Boom sections free of damage, distortion, and excessive wear.
13. All visible nuts, bolts, pins, shafts, shields, bearings, wear pads, locking devices, sheaves, and sheave pins properly installed and secure with no excessive wear, cracks or distortion.
14. Boom chains and cables are free of damage, properly installed, properly torqued, and properly lubricated. Disassemble for inspection at intervals per manufacturer requirements.
15. Powertrack is free of damage, distortion, and excessive wear. Cables/hoses are properly routed, no chafing or leaks.
16. Cylinder pins, pivot pins, attaching and retention hardware for damage, distortion, and excessive wear.

Turntable

17. Hood doors open and latch properly with props in place, secure, and functioning properly.
18. Turntable bearing, swing drive and gear secure and undamaged properly lubricated. No missing bearing bolts or signs of looseness. Turntable lock secure, undamaged and operable.
19. Check swing bearing bolt tolerance per appropriate service manual.

Chassis

20. Wheel rim nuts torqued properly.
21. Proper tires and rims installed, free of damage, properly seated and inflated.
22. Oscillating axle operates properly.
23. Outrigger/extendible axles operate properly. Interlocks function properly.

Power System

24. Engine idle, throttle, and RPM set properly.
25. Batteries accept charge and fluid levels correct.
26. Battery charger operating properly.
27. Air filter clean per restriction indicator.
28. All fluid levels correct.
29. Fuel cap tight and vent open.
30. Exhaust system free of leaks.

Hydraulic / Electrical System

31. All areas around hydraulic components (pump, motor, cylinders, reservoir, oil lines and fittings) free of oil with no evidence of leaks, and free of damage and chafing.
32. Hydraulic oil free of contaminants, hydraulic filter clean.
33. Hydraulic level in tank and torque hubs correct.
34. Hydraulic tank cap tight and vent open.
35. All electrical cords, cables, wires, and connections secure and free of corrosion, cuts and abrasions.
36. Instruments, switches, gauges, horn and lights operate properly.
37. All hydraulic pressures and settings properly adjusted according to manufacturer's specifications.

Manuals and Decals

38. ANSI/SIA Manual f Responsibilities, Operators and Safety Manual, and AEM Handbook in manual box.
39. All safety and instructional decals installed, secure, legible, and properly located. Capacity decals installed and legible at both platform and ground stations.

General

40. Structural condition and all welds in good condition.
41. Lift is free of unauthorized modifications or additions.
42. Grease and lubricate per applicable service manual.
43. Drive and operate machine to test all machine functions.
44. All Service Bulletins and Safety Campaigns completed.
45. All Preventative Maintenance (PM) steps completed.
46. Record inspection date on frame mounted decal.

## TEREX BOOMLIFT, Model Z34/22N

SEMI-ANNUALLY:

Functions and Controls

47. Condition of control enclosures and protective boots/guards. All controls return to neutral/off position when released. Detents properly lock controls in neutral/off position.
48. Footswitch operates properly and shuts off operation when released.
49. Emergency stop switches at the ground and platform control stations stop platform movement and all functions.
50. All function and speed cutouts operate properly.
51. Manual descent system and/or auxiliary power system operates properly.
52. Capacity indicator system operates properly.
53. Swing and drive brakes operate properly.
54. Machine controls operate properly at platform and ground control stations and meet manufacturer's performance recommendations (lift, swing, drive, telescope, etc.)
55. Articulated boom synchronization and sequence system operates properly.

Platform Assembly

56. Platform installed and secure. Mounting hardware free of damage and secure.
57. Lanyard anchorage points secure and undamaged. Platform guardrails and floor in place, secure, and undamaged. Gate opens latches properly.

Boom Assembly

58. Boom sections free of damage, distortion, and excessive wear.
59. All visible nuts, bolts, pins, shafts, shields, bearings, wear pads, locking devices, sheaves, sheave, pins properly installed and secure with no excessive wear, cracks or distortion.

## CRANES, Model #

The Contractor shall provide all labor, materials, and equipment necessary to perform quarterly maintenance for government cranes. Preventative maintenance includes cleaning, lubrication and inspection and only trained and authorized personnel are permitted to maintain, repair, adjust and inspect cranes. Preventative maintenance shall be performed on a quarterly basis. Four (4) cranes at Building 656 will have annual weight tests and quarterly preventative maintenance.

QUARTERLY:

Functions and Controls

60. Weight testing required to lift materials of 3000 and 6000 pounds at a height of 25 feet.

| Building Number | Item | Serial Number | Part Number | Manufacturer |
|---|---|---|---|---|
| 656 | HOIST/CRANE | 6KHMY92377B | CXT30140032P25FCL0S | KONECRANES |
| 656 | HOIST/CRANE | 4KHMY92375B | CXT20410020P15FAL0S | KONECRANES |
| 656 | HOIST/CRANE | 4KHMY92378B | CXT20410020P15FAL0S | KONECRANES |
| 656 | HOIST/CRANE | 4KHMY92379B | CXT20410020P15FAL0S | KONECRANES |

# APPENDIX F - QUALITY ASSURANCE SURVEILLANCE PLAN (QASP)

## 1.0 Overview

**1.1 Introduction.** This performance-based Quality Assurance Surveillance Plan (QASP) sets forth the procedures and guidance that the Contracting Officer's Representative (COR) will use in evaluating the technical performance of the Contractor in accordance with the terms and conditions of the PWS (PWS). A copy of the signed final QASP will be furnished to the Contractor so that the Contractor will be aware of the methods that the COR will use in evaluating performance for each task order under this contract.

**1.2 Purpose.** The QASP objective is to explain Government procedures to be used to verify that appropriate performance and quality assurance methods are used in the management of this performance-based contract. The purpose of the QASP is to assure that performance of specific activities and completion of milestones are accomplished in accordance with all requirements set forth in the PWS.

This QASP describes the mechanism for documenting noteworthy accomplishments or discrepancies for work performed by the Contractor. Information generated from COR's surveillance activities will directly feed into performance discussions with the Contractor. The intent is to ensure that the Contractor performs in accordance with performance metrics set forth in the PWS documents, the Army receives the quality of services called for in the contract, and the Army only pays for the acceptable level of services received.

The QASP details how and when the COR will monitor, evaluate, and document Contractor performance on the contract. The QASP is intended to accomplish the following:

1. Define the role and responsibilities of participating Army officials.
2. Define the key milestones/deliverables that will be assessed.
3. Define Exceptional, Very Good, Satisfactory, Marginal, and Unsatisfactory performance standards for key milestones/deliverables.
4. Describe the surveillance methodology that will be employed by the Army in assessing the Contractor's performance.
5. Describe the surveillance documentation process and provide copies of the form that the Army will use in evaluating the Contractor's performance.
6. Outline corrective action procedures.
7. Describe payment procedures.

This QASP will be revised and finalized by the COR and Contractor upon completion of the Project Management Plan (PMP) in accordance with Section 4.0, Project Management, of the PWS.

## 2.0 Roles and Responsibilities of Army Officials

**2.1 Contracting Officer.** The Contracting Officer (KO) has overall responsibility for overseeing the Contractor's performance. The KO is responsible for the day-to-day monitoring of the Contractor's performance in the areas of contract compliance, and contract administration; reviewing the COR's assessment of the Contractor's performance; and resolving all differences between the COR's assessment and the Contractor's assessment of performance. It is the KO that assures the Contractor receives impartial, fair, and equitable treatment under the contract. The KO is ultimately responsible for the final determination of the adequacy of the Contractor's performance. The KO is the only one authorized to obligate the Government on this contract.

**2.2 Contracting Officer's Representative (COR).** The COR is responsible for technical administration of the project and assures proper Army surveillance of the Contractor's performance. The COR is responsible for monitoring, assessing, recording, and reporting on the technical performance of the Contractor on a day-to-day basis.

**2.3 Technical Expertise and Subject Matter Experts.** The KO and COR may call upon the technical expertise of other Army officials and subject matter experts (SME) as required. These Army officials/SMEs may be called upon to review technical documents and products generated by the Contractor. Contracting Agency representatives will also conduct review of contract documentation such as invoices, monthly status reports, and work plans.

**3.0 Key Milestones/Deliverables to be Assessed**

**3.1** At a minimum, the following milestones and associated deliverables will be evaluated in accordance with this QASP:

Acceptance of the final Project Management Plan (PMP)
Achievement of performance objectives at each site specified in the PWS
Acceptance of annual monitoring report(s)
Acceptance of the final exit or ramp-down strategy for RA(O)-equivalent Verification Monitoring
Acceptance of final remedy review(s)
Correction of deficiencies noted in the remedy review(s)
Approved interim milestones identified in the final PMP

Additionally, the Army will evaluate performance on the key quality control activities and events specified by the Contractor through their Quality Assurance (QA) strategy (see Section 4.6: Quality Management, of the PWS).

**3.2 Performance Standards for Key Milestones/Deliverables**

Since price is fixed in the performance-based acquisitions utilized by the Army, the Contractor's performance will be evaluated by assessing the key milestones/deliverables described above according to five standards: quality, schedule, safety, management of key personnel and resources, and stakeholder concurrence. For each of these performance standards, the COR will assign one of five ratings of the Contractor's performance: exceptional, very good, satisfactory, marginal, or unsatisfactory as defined in Table 1 of the QASP. Note: These performance standards may be modified to meet the needs of the Army.

**Table 1: QASP Performance Standards and Ratings Definitions**

| **Performance Standard** | **Exceptional** | **Very Good** | **Satisfactory** | **Marginal** | **Unsatisfactory** |
|---|---|---|---|---|---|
| Basic Definition | Contractor exceeds the performance requirements for the milestone, deliverable, or standard, with no substantive input from the government. | Contractor exceeds the performance requirements for the milestone, deliverable, or standard, with minimal input from the government. | Contractor meets the performance requirements for the milestone, deliverable, or standard, with moderate input from the government. | Contractor meets the performance requirements for the milestone, deliverable, or standard, with significant input from the government. | Contractor does not meet the performance requirements for the milestone, deliverable, or standard, after significant input from the government. |
| ***Performance Category: Quality of Product or Service*** | | | | | |

| | | | | | |
|---|---|---|---|---|---|
| ***Quality*** | Draft Final and Final deliverables are of excellent quality, approved as submitted, or with no substantive comments limited to grammar, spelling, or terminology.<br><br>Army audit finds that the data collected and/or the work performed exceeds the requirement of the PWS. No deficiencies noted. | Draft Final deliverables are of high quality and comments are mostly minor. Final deliverables are approved after one (1) round of Army comments on the Draft Final through acceptance of response to comments table and back check of Final report against original comments. No further revisions are required.<br><br>Army audit of work does not identify any deficiencies that compromise the quality of the data collected or work performed. | Draft Final deliverables are of acceptable quality with only a few number of comments identifying major weaknesses. Final deliverables are approved after two (2) rounds of Army comments on Draft Final. No further revisions are required.<br><br>Army audit of work identifies deficiencies that do not compromise the quality of the data collected or work performed, and can be corrected. | Draft Final deliverables are of poor quality with a significant number of comments identifying major weaknesses or deficiencies. Final deliverables require more than two (2) rounds of Army comments on Draft Final before being approved. (e.g., changes are required to the Final document due to inadequate incorporation of comments).<br><br>Army audit of work identifies deficiencies that compromise the quality of the data collected or work performed, but was corrected. | Draft Final deliverables are of very poor quality and are rejected for re-submittal without comment. Final deliverables did not comply with contract requirements, or one or more document versions required more than three (3) rounds of Army comments before being approved.<br><br>Army audit of work identifies deficiencies that compromise the quality of the data collected or work performed, and cannot be corrected. |
| ***Performance Category: Schedule*** | | | | | |
| ***Schedule*** | Contractor Achieves milestone more | Contractor Achieves milestone less | Contractor achieves milestone | Contractor achieves milestone more than 30 days | Contractor achieves milestone more |

| Performance Standard | Exceptional | Very Good | Satisfactory | Marginal | Unsatisfactory |
|---|---|---|---|---|---|
| | than 90 days ahead of schedule (unless the COR waives this requirement), per criteria established in the PWS and the QASP. | than 90 days but more than 30 days ahead of schedule (unless the COR waives this requirement), per criteria established in the PWS and the QASP. | according to the schedule (unless the COR waives this requirement), per criteria established in the PWS and the QASP. | but less than 90 days behind schedule (unless the COR waives this requirement), per criteria established in the PWS and the QASP. | than 90 days behind schedule (unless the COR waives this requirement), per criteria established in the PWS and the QASP. |
| ***Performance Category: Safety*** | | | | | |
| ***Safety*** | No significant safety deficiencies are reported during QA inspection of fieldwork. No lost time accidents or injuries are recorded during the fieldwork. | No more than one (1) serious safety deficiencies are reported during QA inspection of fieldwork. If any serious safety deficiency is noted during the project, appropriate investigation, corrective action, implementation, and written verification of the corrective action are provided to the Army. No lost time accidents or injuries are recorded during the fieldwork. | No more than two (2) serious safety deficiencies are reported during QA inspection of fieldwork. If any serious safety deficiency is noted during the project, appropriate investigation, corrective action, implementation, and written verification of the corrective action are provided to the Army. No lost time accidents or injuries are recorded during the fieldwork. | No more than three (3) serious safety deficiencies are reported during QA inspection of fieldwork. If any serious safety deficiency is noted during the project, appropriate investigation, corrective action, implementation, and written verification of the corrective action are provided to the Army. No more than one lost time accident or injury is recorded during the fieldwork. | More than three (3) serious safety deficiencies are reported during QA inspection of field activities, or a serious safety deficiency is reported but not properly investigated and corrected, or two or more lost time accidents or injuries is recorded during the fieldwork. |
| ***Performance Category: Management of Key Personnel and Resources*** | | | | | |
| ***Management of Key Personnel and Resources*** | All personnel proposed by the contractor were assigned to the project. Some personnel were substituted by higher qualified individuals.<br><br>Zero (0) instances of resource management | All personnel proposed by the contractor were assigned to the project. Some personnel were substituted by higher qualified individuals.<br><br>No more than one | All personnel proposed by the contractor were assigned to the project. Some personnel were substituted by equally qualified individuals.<br><br>Informal poor | All personnel proposed by the contractor were assigned to the project. Some personnel were substituted by equally qualified individuals.<br><br>Formal letter of | All personnel proposed by the contractor were assigned to the project. Some personnel were substituted by lesser qualified individuals.<br><br>Written request |

| Performance Standard | Exceptional | Very Good | Satisfactory | Marginal | Unsatisfactory |
|---|---|---|---|---|---|
| | issues creating a negative impact to the activity. | (1) instance of resource management issues creating a negative impact to the activity. | performance feedback on conduct of personnel is provided by the COR but are corrected.<br><br>No more than two (2) instances of resource management issues creating a negative impact to the activity. | poor performance feedback on conduct of personnel is provided by the COR but are corrected.<br><br>No more than three (3) instances of resource management issues creating a negative impact to the activity. | from KO requesting removal of assigned personnel for poor performance or notification of poor performance is provided by the COR and is not corrected.<br><br>More than three (3) instances of resource management issues creating a negative impact to the activity. |
| ***Performance Category: Stakeholder Concurrence*** | | | | | |
| ***Stakeholder Concurrence*** | Contractor obtains concurrence on deliverables from all Army stakeholders to include USAEC and the installation and from Federal and/or State regulators. This concurrence is obtained independently with little involvement and coordination required by the Government. | Contractor obtains concurrence on deliverables from all Army stakeholders to include USAEC and the installation and from Federal and/or State regulators. This concurrence is obtained independently with limited involvement and coordination required by the Government. | Contractor obtains concurrence on deliverables from all Army stakeholders to include USAEC and the installation and from Federal and/or State regulators. This concurrence is obtained with moderate involvement and coordination required by the Government. | Contractor obtains concurrence on deliverables from all Army stakeholders to include USAEC and the installation and from Federal and/or State regulators. This concurrence is obtained with significant involvement and coordination required by the Government. | Contractor does not obtain concurrence on deliverables from Army stakeholders to include USAEC and the installation and/or from Federal and/or State regulators. |
| ***Performance Category: Cost Control (Applicable for Cost Reimbursement Contracts Only)*** | | | | | |
| NA | NA | NA | NA | NA | NA |

**3.3** If a milestone/deliverable as described in the QASP is rated as being of unsatisfactory quality at the time that the PMP deadline for the milestone/deliverable expires, the milestone/deliverable will automatically receive an unsatisfactory rating for timeliness. At no point will a milestone/deliverable receive an exceptional, very good, or satisfactory rating for timeliness if it is rated as being of unsatisfactory quality. Overall satisfactory performance on a milestone/deliverable requires ratings of satisfactory, very good or exceptional for the quality, timeliness, and safety standards.

## 4.0 Surveillance Methodology

The surveillance methods listed below will be used in the execution of this QASP.

***4.1*** *100% Inspection*
All key milestones and deliverables will be evaluated through 100% inspection (e.g., on-site inspection, document review). The COR will document performance for each completed milestone/deliverable prior to payment, as described in Section 5.0 of the QASP.

***4.2*** *Periodic Progress Inspection*
At the COR's discretion, periodic inspections may be conducted to evaluate progress toward and/or completion of key milestones and deliverables. The COR may complete a periodic progress inspection if s/he believes that deficiencies exist that must be addressed prior to milestone/deliverable completion. While corrective action or re-performance will be required if necessary, the Contractor will not be financially penalized for unacceptable performance recorded in periodic progress reports, provided that final performance evaluation of the milestone/deliverable is deemed acceptable.

***4.3*** *Customer Feedback*
Additional feedback will be obtained through random customer feedback. To be considered valid, input must set forth clearly and in writing the detailed nature of the feedback, must be signed, and must be forwarded to the KO. The KO will maintain a summary log of all formally received customer feedback as well as a copy of each feedback in a documentation file.

## 5.0 Surveillance Documentation

**5.1** Quality Assurance Monitoring Form. The COR will use a performance evaluation form to record evaluation of the Contractor's performance for each milestone and deliverable in accordance with the methodology described in Sections 3.0 and 4.0 of the QASP. The COR must substantiate, through narratives in the form, all exceptional, very good, marginal, and unsatisfactory ratings. Performance at the satisfactory level is expected from the Contractor. At a minimum, the evaluation form will indicate actual and scheduled delivery times and number of reviews required to achieve the final product. The COR will forward copies of all completed performance evaluation forms to the KO and Contractor within one week of performing the inspection.

**5.2** Corrective Action Process. When a milestone/deliverable receives an overall marginal or unsatisfactory rating, the Contractor will explain, within 15 days, in writing to COR why performance was marginal or unsatisfactory, how performance will be returned to satisfactory levels, and how recurrence of the problem will be prevented in the future.

**5.3** KO Role in the Surveillance Process. The KO will review each performance evaluation form prepared by the COR. When appropriate, the KO may investigate further to determine if all the facts and circumstances surrounding the event were considered in the COR opinions outlined on the form. The KO will immediately discuss any marginal or unsatisfactory rating with the Contractor to assure that corrective action is promptly initiated.

**5.4** Annual Performance Assessment. At the end of every year, the COR will prepare a written Contractor Performance Assessment Report (CPAR) for the KO summarizing the overall results of his/her surveillance of the Contractor's performance during the previous 12 months. This report will become part of the formal QA documentation.

**5.5** QA File. The COR will maintain a complete QA file. This file will contain copies of all performance evaluation forms and any other related documentation. The COR will forward these records to the KO at termination or completion of the contract. All performance assessment forms, attachments and working papers must be marked "FOR OFFICIAL USE ONLY/SOURCE SELECTION INFORMATION - SEE FAR 2.101 AND 3.104" according to Freedom of Information Act Program, FAR 3.104, and 41 USC Sect. 423. Assessment reports may also contain information that is proprietary to the contractor. Information contained on the CPAR, such as trade secrets and protected commercial or financial data obtained from the contractor in confidence, must be protected from

unauthorized disclosure. COR's shall annotate on the assessment report if it contains material that is a trade secret, etc., to ensure that future readers of the evaluations are informed and will protect as required. Contractor performance information is privileged source selection information. It is also protected by the Privacy Act and is not releasable under the Freedom of Information Act.

**6.0 Payment and Corrective Action**

**6.1** Satisfactory Performance. Full payment for a milestone/deliverable will be provided upon verification of overall satisfactory performance, as rated on quality and schedule. This verification will be recorded in a performance evaluation form submitted to the KO specifying overall Contractor performance as satisfactory, very good, or exceptional for the milestone/deliverable.

**6.2** Marginal or Unsatisfactory Performance. If a milestone/deliverable receives a marginal or unsatisfactory rating for the quality performance standard, re-performance is required until the milestone/deliverable receives a rating of satisfactory or better. This re-performance is required regardless of cost or schedule constraints that may result from the marginal or unsatisfactory performance, unless the KO has opted to terminate the contract. If a rating of satisfactory or better is not achieved, the Government may reduce the contract price to reflect the reduced value of the services in accordance with FAR 52.246-4(e).

**6.3** Table 2 in the QASP provides a sample of the minimum key elements planned for the QASP. The final QASP will be developed with the COR and the contractor and will be based on the final PMP.
Additional Government surveillance activities may include, but are not limited to, the following:

Work plan review and approval
Participation in Technical Project Planning (or equivalent) sessions
Oversight of geophysical survey & analysis activities
Oversight of drilling, field sampling activities
Oversight of all waste management functions/responsibilities
Review of all waste management documentation
Separate/split laboratory QA samples
Review and approval of all access agreements associated with off-site areas
Review and approval of meeting minutes from RAB/BCT meetings
Review and approval of all deliverables to regulatory agencies
Review and approval of FS options to be considered
Review of quality control documentation
Review of project safety record
Adherence to the approved work plan

**Table 2 (SAMPLE) QASP Performance Objectives, Acceptance Criteria, and Monitoring Methods**

| ***Performance Objectives*** | ***Performance Standards*** | ***Acceptable Quality Levels*** |
|---|---|---|
| Approved Project Management Plan (PMP) and Quality Assurance Surveillance Plan (QASP):<br>Draft PMP and QASP within 30 calendar days of contract award,<br>Final PMP within 30 calendar days of receipt of COR comments on the drafts. | Army approval through the Contracting Officer's Representative (COR). | Exceptional, Very Good, or Satisfactory performance, as defined in Table 2 of the PWS. |

**Monitoring Method:** 100% inspection of milestones / deliverables associated with objective

*What we're looking for:*

Detailed technical approach included in the PMP
Project Team and Roles and Responsibilities are included in the PMP
Interim Payment schedule included in the PMP
Activity-based schedule included in the PMP
Complete document submittal distribution list included in the PMP
Project Status reports provided as proposed
The Contractor keeps a record of each phone conversation, written correspondence, and meeting minutes affecting decisions related to the performance of this scope of work. Copies of this correspondence are submitted to the COR.

QUALITY ASSURANCE MONITORING FORM

Date: ___/___/_____

Work Task (Milestone/Activity): _____

Survey Period: ___/___/_____through___/___/_____
Method of Surveillance: COR Review

Evaluation of Contractor's Performance: _____

| Evaluation |
| --- |
| |

Corrective Action Required: ☐ Yes ☐ No

Narrative Discussion of Contractor's Performance During Survey Period:

| Discussion |
| --- |
| |

CORRECTIVE ACTION FORM FOR QASP

1) Work Task (Milestone/Activity): _____

2) Survey Period: ___/___/_____ through ___/___/_____

3) Description of the Failure/Deficiency that Precipitated the Corrective Action:

Description

4) Description of the Criterion that the Failure/Deficiency was Evaluated Against:

Description

5) Personnel Involved in the Identification of the Failure/Deficiency, Determination of the Appropriate Corrective Action, Approval of the Corrective Action, and Implementation of the Corrective Action:

Description

6) Description of the Corrective Action that was Required:

Description

7) Date/Time of Implementation of the Corrective Action: ___/___/_____

Description

8) Follow-Up Information to Prevent Recurrence of Failure/Deficiency (i.e., Need For Revision of Procedures or Specifications):

Description

9) Personnel Responsible for Follow-Up Work:

Description

10) Planned Date for Follow-Up Surveillance: ___/___/_____

11) Other: _____

## Appendix G - CMRA
## CONTRACTOR MANPOWER REPORTING
## APPLICATION INPUT AND REVIEW
## RESPONSIBILITIES

**CREATE CONTRACT:**

The contractor is responsible to create contract.
The contract should be reviewed by the COR/COTR in charge of overseeing the contract.
The KO should review and advise COR, if edits to correct data are necessary.

| Required Field | Input Data | Explanation of Required Field |
|---|---|---|
| **Contract Number:** | | n/a |
| **Task Order/Deliver Number:** | | 0000, if a purchase order is issued. |
| **Contract Fiscal Year:** | | |

**ORDER DATA:**

The contractor is responsible to enter the Order Data.
The Order Data elements should be reviewed by the COR/COTR in charge of overseeing the contract.
The COR/COTR should also edit any incorrect data if necessary.
The KO should review and advise COR, if edits to correct data are necessary.

| Required Field | Input Data | Explanation of Required Field |
|---|---|---|
| **Fiscal Year** | | The fiscal year is the accounting period of the federal government. It begins on October 1 and ends on September 30 of the next calendar year. Each fiscal year is identified by the calendar year in which it ends and commonly is referred to as “FY.” |
| **Order Number** | | The Order Number refers to the Task Order and/or Delivery Number of the Contract. For contracts without an Order Number, use “0000” as default. |
| **Requiring Activity Unit Identification Code** | W07501 - Civil<br>W2ST01 - Military | The Unit Identification Code (UIC) of the Requiring Activity (RA) that would be performing the mission if not for the contractor. This is not necessarily the Contracting Office, Contracting Administrative Office, or Funding Source. |
| **Command** | | Command of the Requiring Activity that would be performing the mission if not for the contractor. |
| **Total Invoiced Amount** | | The total dollar amount invoice during the fiscal year, at the Delivery Order and/or Task Order level. |

**CONTACT DATA:**

The contractor is responsible to input Contact Data.
The contract should be reviewed by the COR/COTR in charge of overseeing the contract. The COR/COTR should also edit any incorrect data if necessary.
The KO should review and advise COR, if edits to correct data are necessary.

| Required Field | Input Data | Explanation of Required Field |
|---|---|---|
| **Contracting Officer:** | | Name, Phone, and email |
| **Contracting Officer Representative** | | Name, Phone, and email |
| **Contractor** | | Name, Phone, and email |

**LOCATION DATA:**
The contractor is responsible to input Location Data.
The contract should be reviewed by the COR/COTR in charge of overseeing the contract. The COR/COTR should also edit any incorrect data if necessary.
The KO should review and advise COR, if edits to correct data are necessary.

| Required Field | Input Data (CAR) | Explanation of Required Field |
|---|---|---|
| **Federal Service Code** | | To enter the Federal Service Code (FSC), select the Service Performed in the first dropdown field and click **Search**. A listing of possible FSCs will appear in the **Results** dropdown field. Select the correct FSC based on the list of results.<br>To narrow down these FSCs, filter the query by Code or Description after selecting the Service Performed. Enter a value in the Code or Description data cells and then click **Search**. Again, a listing of possible FSCs will appear in the **Results** dropdown field. Select the correct FSC based on the list of results. |
| **City of Installation or Service** | | City or installation where the service is performed. |
| **State** | | State where the service is performed. |
| **Zip Code** | | Zip Code where the service is performed. |
| **Country** | | Country where the service is performed. |
| **Contractor Type** | | Indicate whether your user role is a Prime or Subcontractor. |
| **Direct Labor Hours** | | Total number of labor hours performed at this location for this Federal Service Code. |
| **Direct Labor Dollars** | | Total unburdened dollar amount for direct labor performed at this location for this FSC code. This is not the hourly rate. |
| **Weapons System Support** | | Indicate whether you are providing support to any Weapons Systems listed in the dropdown field. |
| **Questions about Contract Performance** | | Indicate if the contract and/or order includes the following services:<br>1. Clinical patient care services in a |

| | | |
|---|---|---|
| | | Department of Defense Medical Treatment facility<br><br>2. Expert or Consulting services<br><br>3. Support Defense Intelligence or Special Operations components OCONUS<br><br>4. Not Applicable |
| **Government Supervision** | | Are the contractor personnel subject to relatively continuous supervision and control by a government employee or officer? |
| **Government's Tools and Equipment** | | Does the government furnish the principal tools and equipment needed for contract performance? |
| **Government Facility** | | Are some or all of the contractor employees provided with a workspace in a government facility for use on a regular basis? |

**NDAA ELEMENTS:**

The COR/COTR is responsible to enter NDAA Elements.
The KO should review and advise COR, if edits to correct data are necessary.

| Required Field | Input Data (CAR) | Explanation of Required Field |
|---|---|---|
| **Form of Contract Action** | | |
| **Contract Type** | | |
| **Performance-Based Services Acquisition** | | |
| **Non-DOD Purchasing Agency** | | |
| **Competed Action** | | |
| **If Competed, Number of Offerors** | | |
| **Small Business** | | |
| **Small Disadvantaged Business** | | |
| **Woman-Owned Small Business** | | |
| **DoD Administering Component** | | |
| **Contracting Organization** | | |

**FUND CITE DATA:**

The COR/COTR is responsible to enter and review the Fund Cite data in the application.
The KO should review and advise COR, if edits to correct data are necessary.

| Required Field | Input Data | Explanation of Required Field |
|---|---|---|

| | (PR&C) | |
|---|---|---|
| **Basic Symbol** | | A four digit code indicating the type of funds or major purpose of the appropriation. |
| **Operating Agency** | | Organization responsible for managing funds to include receiving or issuing funds or organization under whose jurisdiction the installation or activity operates when making deposit fund transactions. |
| **Department Code** | | Code which identifies the department receiving the appropriation. |
| **Management Decision Package** | | Four digit code which is the controlling link between future year programs and the appropriation enacted by the Congress. |
| **Element of Resource** | | Four digit code which identifies the type of resource being employed or consumed. |
| **Army Management Structure Code** | | Code that interrelated programming, budgeting, accounting, and manpower control through a standard classification of Army activities and functions. |
| **Fiscal Year Dollars** | | Fiscal year that contract first appears on the inventory. |

## INSPECTION AND ACCEPTANCE TERMS

Supplies/services will be inspected/accepted at:

| CLIN | INSPECT AT | INSPECT BY | ACCEPT AT | ACCEPT BY |
|---|---|---|---|---|
| 0001 | N/A | N/A | N/A | N/A |
| 0001AA | N/A | N/A | N/A | Government |
| 0001AB | N/A | N/A | N/A | Government |
| 0001AC | N/A | N/A | N/A | Government |
| 0001AD | N/A | N/A | N/A | Government |
| 0001AE | N/A | N/A | N/A | Government |
| 0001AF | N/A | N/A | N/A | Government |
| 0002 | N/A | N/A | N/A | N/A |
| 0002AA | N/A | N/A | N/A | Government |
| 0002AB | N/A | N/A | N/A | Government |
| 0002AC | N/A | N/A | N/A | Government |
| 0002AD | N/A | N/A | N/A | Government |
| 0002AE | N/A | N/A | N/A | Government |
| 0002AF | N/A | N/A | N/A | Government |
| 0003 | N/A | N/A | N/A | N/A |
| 0003AA | N/A | N/A | N/A | Government |
| 0003AB | N/A | N/A | N/A | Government |
| 0003AC | N/A | N/A | N/A | Government |
| 0003AD | N/A | N/A | N/A | Government |
| 0003AE | N/A | N/A | N/A | Government |
| 0003AF | N/A | N/A | N/A | Government |
| 0004 | N/A | N/A | N/A | N/A |
| 0004AA | N/A | N/A | N/A | Government |
| 0004AB | N/A | N/A | N/A | Government |
| 0004AC | N/A | N/A | N/A | Government |
| 0004AD | N/A | N/A | N/A | Government |
| 0004AE | N/A | N/A | N/A | Government |
| 0004AF | N/A | N/A | N/A | Government |
| 0005 | N/A | N/A | N/A | N/A |
| 0005AA | N/A | N/A | N/A | Government |
| 0005AB | N/A | N/A | N/A | Government |
| 0005AC | N/A | N/A | N/A | Government |
| 0005AD | N/A | N/A | N/A | Government |
| 0005AE | N/A | N/A | N/A | Government |
| 0005AF | N/A | N/A | N/A | Government |

CLAUSES INCORPORATED BY FULL TEXT

52.246-4 INSPECTION OF SERVICES--FIXED-PRICE (AUG 1996)

(a) Definitions. "Services," as used in this clause, includes services performed, workmanship, and material furnished or utilized in the performance of services.

(b) The Contractor shall provide and maintain an inspection system acceptable to the Government covering the services under this contract. Complete records of all inspection work performed by the Contractor shall be maintained and made available to the Government during contract performance and for as long afterwards as the contract requires.

(c) The Government has the right to inspect and test all services called for by the contract, to the extent practicable at all times and places during the term of the contract. The Government shall perform inspections and tests in a manner that will not unduly delay the work.

(d) If the Government performs inspections or tests on the premises of the Contractor or a subcontractor, the Contractor shall furnish, and shall require subcontractors to furnish, at no increase in contract price, all reasonable facilities and assistance for the safe and convenient performance of these duties.

(e) If any of the services do not conform with contract requirements, the Government may require the Contractor to perform the services again in conformity with contract requirements, at no increase in contract amount. When the defects in services cannot be corrected by reperformance, the Government may (1) require the Contractor to take necessary action to ensure that future performance conforms to contract requirements and (2) reduce the contract price to reflect the reduced value of the services performed.

(f) If the Contractor fails to promptly perform the services again or to take the necessary action to ensure future performance in conformity with contract requirements, the Government may (1) by contract or otherwise, perform the services and charge to the Contractor any cost incurred by the Government that is directly related to the performance of such service or (2) terminate the contract for default.

(End of clause)

52.246-23 LIMITATION OF LIABILITY (FEB 1997)

(a) Except as provided in paragraphs (b) and (c) below, and except for remedies expressly provided else-where in this contract, the Contractor shall not be liable for loss of or damage to property of the Government (excluding the supplies delivered under this contract) that (1) occurs after Government acceptance of the supplies delivered under this contract, and (2) results from any defects or deficiencies in the supplies.

(b) The limitation of liability under paragraph (a) of this clause shall not apply when a defect or deficiency in, or the Government's acceptance of, the supplies results from willful misconduct or lack of good faith on the part of any of the Contractor's managerial personnel. The term "Contractor's managerial personnel," as used in this clause, means the Contractor's directors, officers, and any of the Contractor's managers, superintendents, or equivalent representatives who have supervision or direction of--

(1) All or substantially all of the Contractor's business;

(2) All or substantially all of the Contractor's operations at any one plant, laboratory, or separate location at which the contract is being performed; or

(3) A separate and complete major industrial operation connected with the performance of this contract.

(c) If the Contractor carries insurance, or has established a reserve for self-insurance, covering liability for loss or damage suffered by the Government through purchase or use of the supplies required to be delivered under this contract, the Contractor shall be liable to the Government, to the extent of such insurance or reserve, for loss of or damage to property of the Government occurring after Government acceptance of, and resulting from any defects or deficiencies in, the supplies delivered under this contract.

(End of clause)

252.246-7004 SAFETY OF FACILITIES, INFRASTRUCTURE, AND EQUIPMENT FOR MILITARY OPERATIONS (OCT 2010)

(a) Definition. Discipline Working Group, as used in this clause, means representatives from the DoD Components, as defined in MIL-STD-3007F, who are responsible for the unification and maintenance of the Unified Facilities Criteria (UFC) documents for a particular discipline area.

(b) The Contractor shall ensure, consistent with the requirements of the applicable inspection clause in this contract, that the facilities, infrastructure, and equipment acquired, constructed, installed, repaired, maintained, or operated under this contract comply with Unified Facilities Criteria (UFC) 1-200-01 for--

(1) Fire protection;

(2) Structural integrity;

(3) Electrical systems;

(4) Plumbing;

(5) Water treatment;

(6) Waste disposal; and

(7) Telecommunications networks.

(c) The Contractor may apply a standard equivalent to or more stringent than UFC 1-200-01 upon a written determination of the acceptability of the standard by the Contracting Officer with the concurrence of the relevant Discipline Working Group.

(End of clause)

252.246-7007 CONTRACTOR COUNTERFEIT ELECTRONIC PART DETECTION AND AVOIDANCE SYSTEM
(AUG 2016)

The following paragraphs (a) through (e) of this clause do not apply unless the Contractor is subject to the Cost Accounting Standards under 41 U.S.C. chapter 15, as implemented in regulations found at 48 CFR 9903.201-1.

(a) Definitions. As used in this clause--

Authorized aftermarket manufacturer means an organization that fabricates a part under a contract with, or with the express written authority of, the original component manufacturer based on the original component manufacturer's designs, formulas, and/or specifications.

Authorized supplier means a supplier, distributor, or an aftermarket manufacturer with a contractual arrangement with, or the express written authority of, the original manufacturer or current design activity to buy, stock, repackage, sell, or distribute the part.

Contract manufacturer means a company that produces goods under contract for another company under the label or brand name of that company.

Contractor-approved supplier means a supplier that does not have a contractual agreement with the original component manufacturer for a transaction, but has been identified as trustworthy by a contractor or subcontractor.

Counterfeit electronic part means an unlawful or unauthorized reproduction, substitution, or alteration that has been knowingly mismarked, misidentified, or otherwise misrepresented to be an authentic, unmodified electronic part from the original manufacturer, or a source with the express written authority of the original manufacturer or current design activity, including an authorized aftermarket manufacturer. Unlawful or unauthorized substitution includes used electronic parts represented as new, or the false identification of grade, serial number, lot number, date code, or performance characteristics.

Electronic part means an integrated circuit, a discrete electronic component (including, but not limited to, a transistor, capacitor, resistor, or diode), or a circuit assembly (section 818(f)(2) of Pub. L. 112-81).

Obsolete electronic part means an electronic part that is no longer available from the original manufacturer or an authorized aftermarket manufacturer.

Original component manufacturer means an organization that designs and/or engineers a part and is entitled to any intellectual property rights to that part.

Original equipment manufacturer means a company that manufactures products that it has designed from purchased components and sells those products under the company's brand name.

Original manufacturer means the original component manufacturer, the original equipment manufacturer, or the contract manufacturer.

(b) Acceptable counterfeit electronic part detection and avoidance system. The Contractor shall establish and maintain an acceptable counterfeit electronic part detection and avoidance system. Failure to maintain an acceptable counterfeit electronic part detection and avoidance system, as defined in this clause, may result in disapproval of the purchasing system by the Contracting Officer and/or withholding of payments and affect the allowability of costs of counterfeit electronic parts or suspect counterfeit electronic parts and the cost of rework or corrective action that may be required to remedy the use or inclusion of such parts (see DFARS 231.205-71).

(c) System criteria. A counterfeit electronic part detection and avoidance system shall include risk-based policies and procedures that address, at a minimum, the following areas:

(1) The training of personnel.

(2) The inspection and testing of electronic parts, including criteria for acceptance and rejection. Tests and inspections shall be performed in accordance with accepted Government- and industry-recognized techniques. Selection of tests and inspections shall be based on minimizing risk to the Government. Determination of risk shall be based on the assessed probability of receiving a counterfeit electronic part; the probability that the inspection or test selected will detect a counterfeit electronic part; and the potential negative consequences of a counterfeit electronic part being installed (e.g., human safety, mission success) where such consequences are made known to the Contractor.

(3) Processes to abolish counterfeit parts proliferation.

(4) Risk-based processes that enable tracking of electronic parts from the original manufacturer to product acceptance by the Government, whether the electronic parts are supplied as discrete electronic parts or are contained in assemblies, in accordance with paragraph (c) of the clause at 252.246-7008, Sources of Electronic Parts (also see paragraph (c)(2) of this clause).

(5) Use of suppliers in accordance with the clause at 252.246-7008.

(6) Reporting and quarantining of counterfeit electronic parts and suspect counterfeit electronic parts. Reporting is required to the Contracting Officer and to the Government-Industry Data Exchange Program (GIDEP) when the Contractor becomes aware of, or has reason to suspect that, any electronic part or end item, component, part, or assembly containing electronic parts purchased by the DoD, or purchased by a Contractor for delivery to, or on behalf of, the DoD, contains counterfeit electronic parts or suspect counterfeit electronic parts. Counterfeit electronic parts and suspect counterfeit electronic parts shall not be returned to the seller or otherwise returned to the supply chain until such time that the parts are determined to be authentic.

(7) Methodologies to identify suspect counterfeit parts and to rapidly determine if a suspect counterfeit part is, in fact, counterfeit.

(8) Design, operation, and maintenance of systems to detect and avoid counterfeit electronic parts and suspect counterfeit electronic parts. The Contractor may elect to use current Government- or industry-recognized standards to meet this requirement.

(9) Flowdown of counterfeit detection and avoidance requirements, including applicable system criteria provided herein, to subcontractors at all levels in the supply chain that are responsible for buying or selling electronic parts or assemblies containing electronic parts, or for performing authentication testing.

(10) Process for keeping continually informed of current counterfeiting information and trends, including detection and avoidance techniques contained in appropriate industry standards, and using such information and techniques for continuously upgrading internal processes.

(11) Process for screening GIDEP reports and other credible sources of counterfeiting information to avoid the purchase or use of counterfeit electronic parts.

(12) Control of obsolete electronic parts in order to maximize the availability and use of authentic, originally designed, and qualified electronic parts throughout the product's life cycle.

(d) Government review and evaluation of the Contractor's policies and procedures will be accomplished as part of the evaluation of the Contractor's purchasing system in accordance with 252.244-7001, Contractor Purchasing System Administration--Basic, or Contractor Purchasing System Administration--Alternate I.

(e) The Contractor shall include the substance of this clause, excluding the introductory text and including only paragraphs (a) through (e), in subcontracts, including subcontracts for commercial items, for electronic parts or assemblies containing electronic parts.

(End of clause)

252.246-7008 SOURCES OF ELECTRONIC PARTS (MAY 2018)

(a) Definitions. As used in this clause--

Authorized aftermarket manufacturer means an organization that fabricates a part under a contract with, or with the express written authority of, the original component manufacturer based on the original component manufacturer's designs, formulas, and/or specifications.

Authorized supplier means a supplier, distributor, or an aftermarket manufacturer with a contractual arrangement with, or the express written authority of, the original manufacturer or current design activity to buy, stock, repackage, sell, or distribute the part.

Contract manufacturer means a company that produces goods under contract for another company under the label or brand name of that company.

Contractor-approved supplier means a supplier that does not have a contractual agreement with the original component manufacturer for a transaction, but has been identified as trustworthy by a contractor or subcontractor.

Electronic part means an integrated circuit, a discrete electronic component (including, but not limited to, a transistor, capacitor, resistor, or diode), or a circuit assembly (section 818(f)(2) of Pub. L. 112-81).

Original component manufacturer means an organization that designs and/or engineers a part and is entitled to any intellectual property rights to that part.

Original equipment manufacturer means a company that manufactures products that it has designed from purchased components and sells those products under the company's brand name.

Original manufacturer means the original component manufacturer, the original equipment manufacturer, or the contract manufacturer.

(b) Selecting suppliers. In accordance with section 818(c)(3) of the National Defense Authorization Act for Fiscal Year 2012 (Pub. L. 112-81), as amended by section 817 of the National Defense Authorization Act for Fiscal Year 2015 (Pub. L. 113-291 and section 885 of the National Defense Authorization Act for Fiscal Year 2016 (Pub. L. 114-92)), the Contractor shall—

(1) First obtain electronic parts that are in production by the original manufacturer or an authorized aftermarket manufacturer or currently available in stock from--

(i) The original manufacturers of the parts;

(ii) Their authorized suppliers; or

(iii) Suppliers that obtain such parts exclusively from the original manufacturers of the parts or their authorized suppliers;

(2) If electronic parts are not available as provided in paragraph (b)(1) of this clause, obtain electronic parts that are not in production by the original manufacturer or an authorized aftermarket manufacturer, and that are not currently available in stock from a source listed in paragraph (b)(1) of this clause, from suppliers identified by the Contractor as contractor-approved suppliers, provided that--

(i) For identifying and approving such contractor-approved suppliers, the Contractor uses established counterfeit prevention industry standards and processes (including inspection, testing, and authentication), such as the DoD-adopted standards at https://assist.dla.mil;

(ii) The Contractor assumes responsibility for the authenticity of parts provided by such contractor-approved suppliers; and

(iii) The Contractor's selection of such contractor-approved suppliers is subject to review, audit, and approval by the Government, generally in conjunction with a contractor purchasing system review or other surveillance of purchasing practices by the contract administration office, or if the Government obtains credible evidence that a contractor-approved supplier has provided counterfeit parts. The Contractor may proceed with the acquisition of electronic parts from a contractor-approved supplier unless otherwise notified by DoD; or

(3)(i) Take the actions in paragraph (b)(3)(ii) of this clause if the Contractor--

(A) Obtains an electronic part from--

(1) A source other than any of the sources identified in paragraph (b)(1) or (b)(2) of this clause, due to nonavailability from such sources; or

(2) A subcontractor (other than the original manufacturer) that refuses to accept flowdown of this clause; or

(B) Cannot confirm that an electronic part is new or previously unused and that it has not been comingled in supplier new production or stock with used, refurbished, reclaimed, or returned parts.

(ii) If the contractor obtains an electronic part or cannot confirm an electronic part pursuant to paragraph (b)(3)(i) of this clause--

(A) Promptly notify the Contracting Officer in writing. If such notification is required for an electronic part to be used in a designated lot of assemblies to be acquired under a single contract, the Contractor may submit one notification for the lot, providing identification of the assemblies containing the parts (e.g., serial numbers);

(B) Be responsible for inspection, testing, and authentication, in accordance with existing applicable industry standards; and

(C) Make documentation of inspection, testing, and authentication of such electronic parts available to the Government upon request.

(c) Traceability. If the Contractor is not the original manufacturer of, or authorized supplier for, an electronic part, the Contractor shall--

(1) Have risk-based processes (taking into consideration the consequences of failure of an electronic part) that enable tracking of electronic parts from the original manufacturer to product acceptance by the Government, whether the electronic part is supplied as a discrete electronic part or is contained in an assembly;

(2) If the Contractor cannot establish this traceability from the original manufacturer for a specific electronic part, be responsible for inspection, testing, and authentication, in accordance with existing applicable industry standards; and

(3)(i) Maintain documentation of traceability (paragraph (c)(1) of this clause) or the inspection, testing, and authentication required when traceability cannot be established (paragraph (c)(2) of this clause) in accordance with FAR subpart 4.7; and

(ii) Make such documentation available to the Government upon request.

(d) Government sources. Contractors and subcontractors are still required to comply with the requirements of paragraphs (b) and (c) of this clause, as applicable, if--

(1) Authorized to purchase electronic parts from the Federal Supply Schedule;

(2) Purchasing electronic parts from suppliers accredited by the Defense Microelectronics Activity; or

(3) Requisitioning electronic parts from Government inventory/stock under the authority of 252.251-7000, Ordering from Government Supply Sources.

(i) The cost of any required inspection, testing, and authentication of such parts may be charged as a direct cost.

(ii) The Government is responsible for the authenticity of the requisitioned parts. If any such part is subsequently found to be counterfeit or suspect counterfeit, the Government will--

(A) Promptly replace such part at no charge; and

(B) Consider an adjustment in the contract schedule to the extent that replacement of the counterfeit or suspect counterfeit electronic parts caused a delay in performance.

(e) Subcontracts. The Contractor shall include the substance of this clause, including this paragraph (e), in subcontracts, including subcontracts for commercial items, that are for electronic parts or assemblies containing electronic parts, unless the subcontractor is the original manufacturer.

(End of clause)

## DELIVERY INFORMATION

| CLIN | DELIVERY DATE | QUANTITY | SHIP TO ADDRESS | DODAAC / CAGE |
|---|---|---|---|---|
| 0001 | N/A | N/A | N/A | N/A |
| 0001AA | POP 01-DEC-2020 TO 30-NOV-2021 | N/A | SAN DIEGO RESIDENT OFFICE<br>JARED ROWLEY<br>8775 AERO DRIVE, SUITE 232<br>SAN DIEGO CA 92123<br>858-569-5238<br>FOB: Destination | W912PL |
| 0001AB | POP 01-DEC-2020 TO 30-NOV-2021 | N/A | (SAME AS PREVIOUS LOCATION)<br>FOB: Destination | W912PL |
| 0001AC | POP 01-DEC-2020 TO 30-NOV-2021 | N/A | (SAME AS PREVIOUS LOCATION)<br>FOB: Destination | W912PL |
| 0001AD | POP 01-DEC-2020 TO 30-NOV-2021 | N/A | (SAME AS PREVIOUS LOCATION)<br>FOB: Destination | W912PL |
| 0001AE | POP 01-DEC-2020 TO 30-NOV-2021 | N/A | (SAME AS PREVIOUS LOCATION)<br>FOB: Destination | W912PL |
| 0001AF | POP 01-DEC-2020 TO 30-NOV-2021 | N/A | (SAME AS PREVIOUS LOCATION)<br>FOB: Destination | W912PL |
| 0002 | N/A | N/A | N/A | N/A |
| 0002AA | POP 01-DEC-2021 TO 30-NOV-2022 | N/A | SAN DIEGO RESIDENT OFFICE<br>JARED ROWLEY<br>8775 AERO DRIVE, SUITE 232<br>SAN DIEGO CA 92123<br>858-569-5238<br>FOB: Destination | W912PL |
| 0002AB | POP 01-DEC-2021 TO 30-NOV-2022 | N/A | (SAME AS PREVIOUS LOCATION)<br>FOB: Destination | W912PL |
| 0002AC | POP 01-DEC-2021 TO 30-NOV-2022 | N/A | (SAME AS PREVIOUS LOCATION)<br>FOB: Destination | W912PL |
| 0002AD | POP 01-DEC-2021 TO 30-NOV-2022 | N/A | (SAME AS PREVIOUS LOCATION)<br>FOB: Destination | W912PL |
| 0002AE | POP 01-DEC-2021 TO 30-NOV-2022 | N/A | (SAME AS PREVIOUS LOCATION)<br>FOB: Destination | W912PL |

| | | | | |
|---|---|---|---|---|
| 0002AF | POP 01-DEC-2021 TO 30-NOV-2022 | N/A | (SAME AS PREVIOUS LOCATION)<br>FOB: Destination | W912PL |
| 0003 | N/A | N/A | N/A | N/A |
| 0003AA | POP 01-DEC-2022 TO 30-NOV-2023 | N/A | SAN DIEGO RESIDENT OFFICE<br>JARED ROWLEY<br>8775 AERO DRIVE, SUITE 232<br>SAN DIEGO CA 92123<br>858-569-5238<br>FOB: Destination | W912PL |
| 0003AB | POP 01-DEC-2022 TO 30-NOV-2023 | N/A | (SAME AS PREVIOUS LOCATION)<br>FOB: Destination | W912PL |
| 0003AC | POP 01-DEC-2022 TO 30-NOV-2023 | N/A | (SAME AS PREVIOUS LOCATION)<br>FOB: Destination | W912PL |
| 0003AD | POP 01-DEC-2022 TO 30-NOV-2023 | N/A | (SAME AS PREVIOUS LOCATION)<br>FOB: Destination | W912PL |
| 0003AE | POP 01-DEC-2022 TO 30-NOV-2023 | N/A | (SAME AS PREVIOUS LOCATION)<br>FOB: Destination | W912PL |
| 0003AF | POP 01-DEC-2022 TO 30-NOV-2023 | N/A | (SAME AS PREVIOUS LOCATION)<br>FOB: Destination | W912PL |
| 0004 | N/A | N/A | N/A | N/A |
| 0004AA | POP 01-DEC-2023 TO 30-NOV-2024 | N/A | SAN DIEGO RESIDENT OFFICE<br>JARED ROWLEY<br>8775 AERO DRIVE, SUITE 232<br>SAN DIEGO CA 92123<br>858-569-5238<br>FOB: Destination | W912PL |
| 0004AB | POP 01-DEC-2023 TO 30-NOV-2024 | N/A | (SAME AS PREVIOUS LOCATION)<br>FOB: Destination | W912PL |
| 0004AC | POP 01-DEC-2023 TO 30-NOV-2024 | N/A | (SAME AS PREVIOUS LOCATION)<br>FOB: Destination | W912PL |
| 0004AD | POP 01-DEC-2023 TO 30-NOV-2024 | N/A | (SAME AS PREVIOUS LOCATION)<br>FOB: Destination | W912PL |
| 0004AE | POP 01-DEC-2023 TO 30-NOV-2024 | N/A | (SAME AS PREVIOUS LOCATION)<br>FOB: Destination | W912PL |
| 0004AF | POP 01-DEC-2023 TO 30-NOV-2024 | N/A | (SAME AS PREVIOUS LOCATION)<br>FOB: Destination | W912PL |
| 0005 | N/A | N/A | N/A | N/A |

| | | | | |
|---|---|---|---|---|
| 0005AA | POP 01-DEC-2024 TO 30-NOV-2025 | N/A | SAN DIEGO RESIDENT OFFICE<br>JARED ROWLEY<br>8775 AERO DRIVE, SUITE 232<br>SAN DIEGO CA 92123<br>858-569-5238<br>FOB: Destination | W912PL |
| 0005AB | POP 01-DEC-2024 TO 30-NOV-2025 | N/A | (SAME AS PREVIOUS LOCATION)<br>FOB: Destination | W912PL |
| 0005AC | POP 01-DEC-2024 TO 30-NOV-2025 | N/A | (SAME AS PREVIOUS LOCATION)<br>FOB: Destination | W912PL |
| 0005AD | POP 01-DEC-2024 TO 30-NOV-2025 | N/A | (SAME AS PREVIOUS LOCATION)<br>FOB: Destination | W912PL |
| 0005AE | POP 01-DEC-2024 TO 30-NOV-2025 | N/A | (SAME AS PREVIOUS LOCATION)<br>FOB: Destination | W912PL |
| 0005AF | POP 01-DEC-2024 TO 30-NOV-2025 | N/A | (SAME AS PREVIOUS LOCATION)<br>FOB: Destination | W912PL |

Section H - Special Contract Requirements

SECURITY REQUIERMENTS

SECURITY REQUIREMENTS

SECURITY

Part 1 – GENERAL

1. IDENTIFICATION OF EMPLOYEES. Contractors requesting access to Naval Base San Diego (NBSD) or Naval Air Station North Island (NASNI) shall follow all base security procedures. All contractor employees will be responsible to wear identification at all times. All prescribed identification shall immediately be delivered to the Contracting Officer for cancellation upon the release of any employee.

2. BASE ACCESS PROCEDURES. All contractor personnel requiring access to NBSD or NASNI are required to understand and comply with the current access procedures in place. Current procedures require that all employees requiring access apply for and receive RAPID Gate cards. The RAPID Gate application form is attached to the end of this specification. All personnel applying for a RAPID Gate card must be citizens of the United States, will be subject to a background check, and will be denied access if information in their background check is found that is not acceptable to NBSD or NASNI. The background check generally takes 3-7 days to complete. All approved personnel will then be required to pick up their RAPID Gate badge in person at the Pass and Decal Office. Badges not picked up within 5 days of approval are subject to being cancelled, and the application process will have to be started over. Contractors are advised to maintain records of the personnel that they request access for, as multiple requests for the same individual cause additional delays in processing.

The RAPID Gate card will provide days and times that the personnel are allowed access to NBSD and NASNI. Access to the Base outside of these times must be coordinated at least 7 days in advance with the Corps of Engineers and Base Security. If access outside of the allowable times is approved, a temporary change to each individual's card will be processed, allowing them the necessary access.

Base security procedures are enacted, maintained and modified by the individual installations (not the US Army Corps of Engineers) acting upon their sovereign authority as a Government agency to provide security and force protection to the installation and the military personnel and equipment associated with it. All contract personnel must understand that Base access procedures are subject to change at any time, and must remain flexible to these changes. In the possible but unlikely event that threat conditions require the closure of the Base to all but essential personnel, the contractor would be entitled to additional time for this closure period per the FAR.

3. ESCORT PRIVILEGES. Escort privileges will not be provided to contractor personnel. Contractors should plan accordingly and submit all required personnel for individual access sufficiently early so that the contract is not delayed. Corps of Engineers personnel can legally sign-in and escort personnel without a RAPID Gate card, but the local Resident Office is not staffed to provide this service and will generally not do so.

4. FOREIGN NATIONALS. Employees who are not United States citizens must be escorted at all times by a United States citizen with a valid military identification card.

2. AREA RESTRICTIONS. Certain areas of NBSD and NASNI are designated as controlled access areas, and personnel working in these areas may be required to obtain additional access badges in addition to the RAPID Gate badge. This process may take additional time, so the contractor must plan and prepare accordingly.

All contractor personnel are expected to stay within or near the designated contract work area or common area (eating establishments, disposal areas, etc.). Foreign nationals shall be accompanied by a United States citizen when outside the designated contract work area.

-- End of Section –

SPECIAL CONTRACT REQUIREMENTS

ACCRUALS: In accordance with USACE Engineer Financial Regulation (ER) 37-1-30, and other applicable Federal and DOD financial accounting standards, the Contractor is required to assist government personnel with providing reasonably accurate accrual estimates. The accrual is from the thru date of the period of performance (Eng Form 93, block 9) to the end for the month of the value of goods and/or services rendered/expected to be rendered to the Government pursuant to this contract. This is for each calendar month during which goods and services are delivered. Standard forms with instructions will be provided by the Government to assist with meeting this requirement. These monthly estimates, which facilitate timely entry of accruals, must be received by the Government on or before six (6) business days prior to each calendar month-end.

Please contact Mr. Richard Wagner 213-452-3307 or email at Richard.S.Wagner@usace.army.mil for further information.

## CONTRACTOR PERFORMANCE ASSESSMENT REPOSITORY SYSTEM (CPARS) (Other than Const/AE Svcs)

The United States Army Corps of Engineers (USACE) follows the procedures for contractor performance assessments as detailed in the following guidance; FAR 42.15, DFARS 215.304 and 242.15, as well as, AFARS 5117.9005 and 5142.15 and the UAI 42.1502-100(1). In accordance with the provisions stated above, the contractor's performance shall be evaluated throughout the performance of the contract, at least once annually and at the completion of the contract.

For service contracts other than construction and AE services at or above $1,000,000.00, the USACE will evaluate

contractor's performance and prepare a performance report using the Contractor Performance Assessment Repository System (CPARS), a web based system. The systems formerly known as Architect-Engineer Contract Administration Support System (ACASS) and Construction Contractor Appraisal Support System (CCASS) were incorporated into the CPARS (https://www.cpars.gov).

For evaluations of contractor performance on other services acquisition (other than construction or architect engineering), the responsible roles are: (a) Services Acquisition Assessing Official (AO): The AO shall be the KO (or when designated, the COR) responsible for the services acquisition and deliverables. Services Acquisition Reviewing Official (RO): The RO shall be one level above the KO (or where a COR is designated the COR's Supervisor) assigned to the services acquisition and responsible for the management of the services acquisition performance.

The USACE Los Angeles District local CPARS Point of Contact (POC) is Abegail Banaga, telephone 213-452-3320 email abegail.c.banaga@usace.army.mil

For this acquisition the designated COR will be the assessing official with the Reviewing Official the COR's supervisor. Evaluation Schedule: A performance evaluation shall be performed annually from the date of award and at the time of contract completion.

After an evaluation (interim or final) is completed by USACE, the contractor will have the ability to access, review and comment on the evaluation for a period of 30 days. The CPARS will notify the contractor with an electronic message when a completed performance evaluation is available for their retrieval from CPARS or the Past Performance Information Retrieval System (PPIRS) for finalized evaluation.

**NOTE: Within 30 days from the date of award the Contractor shall provide to the Contracting Officer thename and contact information for their firms CPARS POC.**

REQUIRED INSURANCE (July 2016)

In accordance with the contract clause 52.228-5, Insurance—Work on a Government Installation, the contractor shall procure and maintain during the entire period of contract performance under this contract the following minimum insurance:

| Type | Amount |
|---|---|
| Workmen's Compensation | coverage complying with applicable state statutes |
| Employer's Liability | minimum amount of $1,000,000 |
| General Liability on Comprehensive form of policy | minimum limits of $1,000,000 per occurrence for bodily injury, but a limit of $2,000,000 total; and $1,000,000 for property damage |
| Comprehensive Automobile Liability | minimum limits of $200,000 per person and $500,000 per occurrence for bodily injury and $20,000 per occurrence for property damage |

Prior to the commencement of work hereunder, the Contractor shall furnish to the Contracting Office a certificate or written statement of the above required insurance. The policies evidencing required nsurance shall contain an endorsement to the effect that cancellation or any material change in the policies adversely affecting the interests of the Government in such insurance shall not be effective until 10 days after written notice thereof to the Contracting Officer

The Contractor agrees to insert the substance of this clause, including this paragraph, in all subcontracts hereunder.

## SAFETY REQUIREMENTS

The bidder's attention is directed to the latest version of U.S Army Corps of Engineers Safety and Health Manual, EM 385-1-1, which will be strictly enforced. This publication may be obtained online and is available for download at:
http://www.publications.usace.army.mil/USACEPublications/EngineerManuals.aspx

Hard Copies are available from the Associated General Contractors of America, (Item #3607). The U.S. Government Printing Office is sold out of its inventory of the manual. Any other Safety and Occupational specific questions can be addressed to: US Army Engineer District - Los Angeles, ATTN: Safety Office, 915 Wilshire Blvd, Los Angeles CA 90017.

*(End of special contract requirement)*

## SECURITY CONTRACT LANGUAGE FOR ALL CORPS OF ENGINEERS' UNCLASSIFIED CONTRACTS

A. AUTOMATED INFORMATION SYSTEM (AIS) EFFORT
All Contractor employees (U.S. citizens and Non- U.S. citizens) working under this contract *(to include grants, cooperative agreements and task orders)* who require access to Automated Information Systems (AIS), (stand-alone computers, network computers/systems, e-mail) shall, at a minimum, be designated into an ADP-III position (non-sensitive) in accordance with DoD 5220-22-R, Industrial Security Regulation. The investigative requirements for an ADP-III position are a favorable National Agency Check (NAC), SF-85P, Public Trust Position. The contractor shall have each applicable employee complete a SF-85P and submit to the Los Angeles District, ATTN: Security Officer MAJ Reginald Seabrook, 915 Wilshire Blvd, Ste 1100, Los Angeles, California 90017 (213)-452-3669 within three (3) working days after award of any contract or task order, and shall be submitted prior to the individual being permitted access to an AIS. Contractors that have a commercial or government entity (CAGE) Code and Facility Security Clearance through the Defense Security Service shall process the NACs and forward visit requests/results of NAC to the Los Angeles District Security Officer. For those contractors that do not have a CAGE Code or Facility Security Clearance, the Los Angeles District Security Office will process the investigation in coordination with the Contractor and contract employees.
B. USACE HSPD-12 Compliance Information

1. PURPOSE: Ensure all USACE contractors (including sub-contractors) have USACE directed compliance with Homeland Security President Directive 12.

2. AUTHORITY: Presidential Directive – 12 (HSPD-12), Under Secretary of Defense (Intelligence) Directive-Type Memorandum (DTM) 09-12, Memorandum, Secretary of the Army 31 October 2013, subject: Uncleared Contractor Common Access Card Credentialing and Installation Access, and Army Regulation 190-13.

3. BACKGROUND: USACE Office of Provost Marshal Security and Law Enforcement Division must ensure all USACE contractors have gained compliance with USACE HSPD-12 implementation standards for work within Department of Defense Installations or facilities or USACE facilities and/or project sites.

4. CONTRACTORS: All USACE Contractors are required to register their company, their employees and their sub-contractors with USACE's HSPD-12 compliance system.

http://www.redtailsecurity.com/corp/usace

5. COMPLIANCE: In accordance with Homeland Security Presidential Directive 12 and Army Regulation 190-13, all visitors and uncleared contractors desiring unescorted access to Department of Defense Installation or facility, USACE facility or asset, must be vetted through the National Crime Information Center Interstate Identification Index (NCIC III). NCIC III is the Department of Defense baseline background check for entrance onto Department of Defense Installation or facility, USACE facility or asset for Non-Common Access Card (CAC) or Non-DoD card holders. Upon successful completion of a background check the individual(s) will be issued a Department of Defense Installation access badge (as governed by each installation) or a USACE Access Badge (if applicable).

This badge is only good for access onto the specific Department of Defense Installation or USACE facility and to be available for presentation to Department of Defense Law Enforcement/Security personnel or USACE Security personnel. It is not to be used as a form of identification for other purposes.

The Department of Defense Installation Commander and/or the USACE Commander will, in the absence of an approved waiver, deny uncleared contractors, subcontractors, and visitor's unescorted access to the installation or facility based on the results of the NCIC III check that contains credible derogatory information indicating the individual may present a threat to good order, discipline, or health and safety on the installation.

6. ACCESS CONTROL:

Visitors, contractors and vendors 18 years and older, entering Department of Defense Installation or USACE facilities or assets, who do not have a DoD identification card, will be subject to a background check before being allowed entry to the Department of Defense Installation USACE facility or asset. Those who present a common access card (CAC card), Military ID, Military Dependent ID, Gold Star ID, or other valid DoD credential won't be affected.

7. CONTRACTORS\VENDORS ACCESS:

The District Security Office uses a secure web-based system for the completion of screening checks (http://www.redtailsecurity.com/corp/usace). Contractors may log into this secure system from their office and compete the upload of information to complete the screening process. If the contractor would like to physically come into the District Security Office to complete the process, they may do so by making an appointment with the USACE POC (section 11). The contractor will be logging into the same secure system, they would only be performing this action from the District Office (which will be the same upload process).

If the contractor needs to be issued a Department of Defense Installation access badge or ID pass, the contractor needs to complete the secure screening and complete the Installation access badge process with the District Security Office. This process can take 72 – 96 hours after submission of information. Once the contractor is cleared, the information is sent over to the Installation of

issuance of a Badge or ID. The Installation process can up to 24 – 72 (excluding Saturday, Sunday and Federal Holidays) after submission by the District Security Office to the Installation.

If the contractor needs to be cleared for a Civil Works or an Off-Installation site or project, the contractor would complete the secure screening and the District process can take up to 72 – 96 hours (excluding Saturday, Sunday and Federal Holidays) to complete the process and validate the contractors employees for work on the Civil Work site and or project.

If a contractor requires a Common Access Card (CAC). That information must appear in the contractor's contract under 'Security Requirements." The District Security Office will work with that contractor's POC directly for the completion of the CAC process. Once the contractor submits the required information, the District process can take up to 72 – 96 hours (excluding Saturday, Sunday and Federal Holidays) before completing the CAC approval process. Once the CAC is approved, the contractor may pick up the CAC at any approved RAPIDS location.

8. VISITORS ACCESS:

Visitors, contractors and vendors 18 years and older, entering Department of Defense Installation or USACE facilities or assets, who do not have a DoD identification card, will be subject to a background check before being allowed entry to the Department of Defense Installation or USACE facility or asset. Those who present a common access card (CAC card), Military ID, Military Dependent ID, Gold Star ID, or other valid DoD credential won't be affected. This is to ensure that USACE is in compliance with Homeland Security Presidential Directive 12, which requires that 100 percent of visitors be vetted prior to entering the Department of Defense Installation or USACE facility or asset. While this is a DoD-wide initiative, we are doing all we can to streamline the process for accessing Department of Defense Installation or USACE facility or asset to ensure the safety and security of our employees and stakeholders.

The list of states/territories whose driver's licenses and identification cards are not compliant with the Real ID Act of 2005 include: Maine, Montana, Minnesota, Missouri, and Washington. Unless those States are granted extensions visitors to Department of Defense Installation or USACE with driver's licenses and identification cards from those states/territories will be required to provide a supplemental form of identification to receive a visitor or long term pass to enter the Department of Defense Installation or USACE facility or asset. Attached is a list of acceptable supplemental forms of identification, which is also on Los Angeles District home page "HSPD-12 Information." The following states/territories are compliant with the REAL ID Act: Alabama, Arizona, Arkansas, Colorado, Connecticut, Delaware, DC, Florida, Georgia, Hawaii, Indiana, Iowa, Kansas, Maryland, Mississippi, Nebraska, Nevada, New Mexico, Ohio, South Dakota, Tennessee, Utah, Vermont, West Virginia, Wisconsin, and Wyoming.

9. HERE ARE THE BELOW FACTORS THAT WOULD CONSTITUTE AN ACCESS DENIAL:

1. The NCIC III contains criminal arrest information about the individual that causes the Installation Commander and/or USACE to determine that individual presents a potential threat to the good order, discipline, or health and safety on the installation.
2. The installation is unable to verify the individual's claimed identity based on the reasonable belief that the individual has submitted fraudulent information concerning his or her identity in the attempt to gain access.
3. The individual has a current arrest warrant in NCIC, regardless of the offense or violation.
4. The individual is currently barred from entry or access to a federal installation of facility.
5. The individual has been convicted of crimes encompassing sexual assault, armed robbery, rape, child molestation, production or possession of child pornography trafficking in humans, drug possession with the intent to sell or drug distribution.
6. The individual has a US conviction for espionage, sabotage, treason, terrorism or murder.
7. The individual is a registered sex offender.
8. The individual has a felony conviction within the past 20 years, regardless of the offense or violation.
9. The individual has been convicted of a felony firearms or explosives violation.
10. The individual has engaged in acts or activities designed to overthrow the U.S. Government by force.
11. The individual is identified in the Terrorist Screening Database (TSDB) as known to be or suspected of being a terrorist or belonging to an organization with known links to terrorism or support of terrorist activity.

10. FEES:
Company Screening A ($399.00) - Designed for Contractor Companies who will be ordering Background Screening on >/= to 20 individual employees visiting ACE Sites. Price is per year/per Contractor Company
Company Screening B ($299.00) - Designed for Contractor Companies who will be ordering Background Screening on < than 20 individual employees visiting ACE Sites. Price is per year/per Contractor Company.
Contractor Screening C ($159.00) - Designed for Contractors/Individuals/Visitors who do NOT currently possess a CAC Card or plan to visit the ACE Sites >/= 10 visits per year. Price is per year/per Contractor Individual.
Contractor Screening D ($129.00) - Designed for Contractors/Individuals/Visitors who currently possess a CAC Card or plan to visit the ACE Sites < 10 visits per year. Price is per year/per Contractor Individual.
Time Line: The process for screening completion can be up to 72 – 96 hours (excluding Saturday, Sunday and Federal Holidays). This does not include the process of Installation Badge access request, which can take 24 – 72 hours or the CAC process, which can take 72 – 96 hours. The processing time starts once the contractor has submitted the information into the secure site. Additional submissions may be completed as the contractor continues their work. It is the choice of the contractor to submit all employees on the initial submission or throughout the contract period. Any new submissions have a new time of the 72 – 96 hours from each submission.
11. POINTS OF CONTACT FOR QUESTIONS:
USACE
MAJ Reginald K. Seabrook (USAR)
Military Police Corps

Chief of Security & Law Enforcement
Los Angeles District HQ
reginald.k.seabrook@usace.army.mil
213-452-3969 - Office
213-283-2220 - Law Enforcement Operations Center (LEOC) - West
213-507-9209 – Mobile
http://www.spl.usace.army.mil/

Datamaxx
Darrell Goodwin
Manager
Vetting & Screening Services
Datamaxx Group
850.558.8138 (Office)
850-212-3502 (Cell)
www.datamaxx.com

Veterans Employment Emphasis for U.S. Army Corps of Engineers Contracts

In addition to complying with the requirements outlined in FAR Part 22.13, FAR Provision 52.222-38, FAR Clause 52.222-35, FAR Clause 52.222-37, DFARS 222.13 and Department of Labor regulations, U.S. Army Corps of Engineers (USACE) contractors and subcontractors at all tiers are encouraged to promote the training and employment of U.S. veterans while performing under a USACE contract. While no set-aside, evaluation preference, or incentive applies to the solicitation or performance under the resultant contract, USACE contractors are encouraged to seek out highly qualified veterans to perform services under this contract. The following resources are available to assist USACE contractors in their outreach efforts:
Federal Veteran employment information at **http://www.fedshirevets.gov/index.aspx**
Department of Labor Veterans Employment Assistance **http://www.dol.gov/vets/**
Department of Veterans Affairs–VOW to Hire Heros Act **http://benefits.va.gov/vow/**
Army Wounded Warrior Program – **http://wtc.army.mil/modules/employers/index.html**
U.S. Chamber of Commerce Foundation–Hiring Our Heros **http://www.hiringourheroes.org/**
Guide to Hiring Veterans – Reference Material
**http://www.whitehouse.gov/sites/default/files/docs/white_house_business_council_-_guide_to_hiring_veterans_0.pdf**

(End of special contract requirement)

Section I - Contract Clauses

CLAUSES INCORPORATED BY REFERENCE

| | | |
|---|---|---|
| 52.202-1 | Definitions | JUN 2020 |
| 52.203-3 | Gratuities | APR 1984 |
| 52.203-5 | Covenant Against Contingent Fees | MAY 2014 |
| 52.203-6 | Restrictions On Subcontractor Sales To The Government | JUN 2020 |
| 52.203-7 | Anti-Kickback Procedures | JUN 2020 |
| 52.203-8 | Cancellation, Rescission, and Recovery of Funds for Illegal or Improper Activity | MAY 2014 |
| 52.203-10 | Price Or Fee Adjustment For Illegal Or Improper Activity | MAY 2014 |
| 52.203-12 | Limitation On Payments To Influence Certain Federal Transactions | JUN 2020 |
| 52.203-13 | Contractor Code of Business Ethics and Conduct | JUN 2020 |
| 52.203-17 | Contractor Employee Whistleblower Rights and Requirement To Inform Employees of Whistleblower Rights | JUN 2020 |
| 52.203-19 | Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements | JAN 2017 |
| 52.204-4 | Printed or Copied Double-Sided on Postconsumer Fiber Content Paper | MAY 2011 |
| 52.204-9 | Personal Identity Verification of Contractor Personnel | JAN 2011 |
| 52.204-10 | Reporting Executive Compensation and First-Tier Subcontract Awards | JUN 2020 |
| 52.204-13 | System for Award Management Maintenance | OCT 2018 |
| 52.204-18 | Commercial and Government Entity Code Maintenance | AUG 2020 |
| 52.204-19 | Incorporation by Reference of Representations and Certifications. | DEC 2014 |
| 52.204-21 | Basic Safeguarding of Covered Contractor Information Systems | JUN 2016 |
| 52.204-23 | Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab and Other Covered Entities. | JUL 2018 |
| 52.204-25 | Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. | AUG 2020 |
| 52.209-6 | Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, or Proposed for Debarment | JUN 2020 |
| 52.209-9 | Updates of Publicly Available Information Regarding Responsibility Matters | OCT 2018 |
| 52.209-10 | Prohibition on Contracting With Inverted Domestic Corporations | NOV 2015 |
| 52.214-26 | Audit and Records--Sealed Bidding | JUN 2020 |
| 52.214-27 | Price Reduction for Defective Certified Cost or Pricing Data - Modifications - Sealed Bidding | JUN 2020 |
| 52.214-28 | Subcontractor Certified Cost Or Pricing Data--Modifications--Sealed Bidding | JUN 2020 |
| 52.214-29 | Order Of Precedence--Sealed Bidding | JAN 1986 |
| 52.219-8 | Utilization of Small Business Concerns | OCT 2018 |
| 52.222-3 | Convict Labor | JUN 2003 |
| 52.222-4 | Contract Work Hours and Safety Standards - Overtime Compensation | MAY 2018 |
| 52.222-21 | Prohibition Of Segregated Facilities | APR 2015 |
| 52.222-26 | Equal Opportunity | SEP 2016 |

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|---|---|---|
| 52.222-35 | Equal Opportunity for Veterans | JUN 2020 |
| 52.222-36 | Equal Opportunity for Workers with Disabilities | JUN 2020 |
| 52.222-37 | Employment Reports on Veterans | JUN 2020 |
| 52.222-40 | Notification of Employee Rights Under the National Labor Relations Act | DEC 2010 |
| 52.222-41 | Service Contract Labor Standards | AUG 2018 |
| 52.222-43 | Fair Labor Standards Act And Service Contract Labor Standards - Price Adjustment (Multiple Year And Option Contracts) | AUG 2018 |
| 52.222-50 | Combating Trafficking in Persons | JAN 2019 |
| 52.222-54 | Employment Eligibility Verification | OCT 2015 |
| 52.222-55 | Minimum Wages Under Executive Order 13658 | DEC 2015 |
| 52.222-62 | Paid Sick Leave Under Executive Order 13706 | JAN 2017 |
| 52.223-5 | Pollution Prevention and Right-to-Know Information | MAY 2011 |
| 52.223-6 | Drug-Free Workplace | MAY 2001 |
| 52.223-11 | Ozone-Depleting Substances and High Global Warming Potential Hydrofluorocarbons. | JUN 2016 |
| 52.223-12 | Maintenance, Service, Repair, or Disposal of Refrigeration Equipment and Air Conditioners. | JUN 2016 |
| 52.223-15 | Energy Efficiency in Energy-Consuming Products | MAY 2020 |
| 52.223-17 | Affirmative Procurement of EPA-Designated Items in Service and Construction Contracts | AUG 2018 |
| 52.223-18 | Encouraging Contractor Policies To Ban Text Messaging While Driving | JUN 2020 |
| 52.223-19 | Compliance with Environmental Management Systems | MAY 2011 |
| 52.223-20 | Aerosols | JUN 2016 |
| 52.223-21 | Foams | JUN 2016 |
| 52.225-1 | Buy American--Supplies | MAY 2014 |
| 52.225-5 | Trade Agreements | OCT 2019 |
| 52.225-13 | Restrictions on Certain Foreign Purchases | JUN 2008 |
| 52.227-1 | Authorization and Consent | JUN 2020 |
| 52.227-3 | Patent Indemnity | APR 1984 |
| 52.228-5 | Insurance - Work On A Government Installation | JAN 1997 |
| 52.229-4 | Federal, State, And Local Taxes (State and Local Adjustments) | FEB 2013 |
| 52.232-1 | Payments | APR 1984 |
| 52.232-8 | Discounts For Prompt Payment | FEB 2002 |
| 52.232-9 | Limitation On Withholding Of Payments | APR 1984 |
| 52.232-11 | Extras | APR 1984 |
| 52.232-16 (Dev) | Progress Payments (DEVIATION 2020-O0010) | JUN 2020 |
| 52.232-17 | Interest | MAY 2014 |
| 52.232-23 | Assignment Of Claims | MAY 2014 |
| 52.232-25 | Prompt Payment | JAN 2017 |
| 52.232-39 | Unenforceability of Unauthorized Obligations | JUN 2013 |
| 52.232-40 | Providing Accelerated Payments to Small Business Subcontractors | DEC 2013 |
| 52.233-1 | Disputes | MAY 2014 |
| 52.233-3 | Protest After Award | AUG 1996 |
| 52.233-4 | Applicable Law for Breach of Contract Claim | OCT 2004 |
| 52.237-2 | Protection Of Government Buildings, Equipment, And Vegetation | APR 1984 |
| 52.242-13 | Bankruptcy | JUL 1995 |
| 52.242-15 | Stop-Work Order | AUG 1989 |
| 52.243-1 Alt I | Changes--Fixed Price (Aug 1987) - Alternate I | APR 1984 |
| 52.244-6 | Subcontracts for Commercial Items | AUG 2020 |

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|---|---|---|
| 52.249-2 | Termination For Convenience Of The Government (Fixed-Price) | APR 2012 |
| 52.249-8 | Default (Fixed-Price Supply & Service) | APR 1984 |
| 252.201-7000 | Contracting Officer's Representative | DEC 1991 |
| 252.203-7000 | Requirements Relating to Compensation of Former DoD Officials | SEP 2011 |
| 252.203-7001 | Prohibition On Persons Convicted of Fraud or Other Defense-Contract-Related Felonies | DEC 2008 |
| 252.203-7002 | Requirement to Inform Employees of Whistleblower Rights | SEP 2013 |
| 252.203-7004 | Display of Hotline Posters | AUG 2019 |
| 252.204-7000 | Disclosure Of Information | OCT 2016 |
| 252.204-7003 | Control Of Government Personnel Work Product | APR 1992 |
| 252.204-7004 | Antiterrorism Awareness Training for Contractors. | FEB 2019 |
| 252.204-7006 | Billing Instructions | OCT 2005 |
| 252.204-7008 | Compliance With Safeguarding Covered Defense Information Controls | OCT 2016 |
| 252.204-7009 | Limitations on the Use or Disclosure of Third-Party Contractor Reported Cyber Incident Information | OCT 2016 |
| 252.204-7012 | Safeguarding Covered Defense Information and Cyber Incident Reporting | DEC 2019 |
| 252.204-7018 | Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services | DEC 2019 |
| 252.222-7006 | Restrictions on the Use of Mandatory Arbitration Agreements | DEC 2010 |
| 252.223-7004 | Drug Free Work Force | SEP 1988 |
| 252.223-7006 | Prohibition On Storage, Treatment, and Disposal of Toxic or Hazardous Materials | SEP 2014 |
| 252.223-7006 Alt I | Prohibition on Storage, Treatment, and Disposal of Toxic or Hazardous Materials - Alternate I | SEP 2014 |
| 252.223-7008 | Prohibition of Hexavalent Chromium | JUN 2013 |
| 252.225-7001 | Buy American And Balance Of Payments Program-- Basic | DEC 2017 |
| 252.225-7015 | Restriction on Acquisition of Hand Or Measuring Tools | JUN 2005 |
| 252.225-7016 | Restriction On Acquisition Of Ball and Roller Bearings | JUN 2011 |
| 252.225-7017 (Dev) | Photovoltaic Devices (DEVIATION 2020-O0019) | JUL 2020 |
| 252.227-7000 | Non-estoppel | OCT 1966 |
| 252.232-7003 | Electronic Submission of Payment Requests and Receiving Reports | DEC 2018 |
| 252.232-7004 (Dev) | DoD Progress Payment Rates (DEVIATION 2020-O0010) | MAR 2020 |
| 252.232-7010 | Levies on Contract Payments | DEC 2006 |
| 252.243-7001 | Pricing Of Contract Modifications | DEC 1991 |
| 252.243-7002 | Requests for Equitable Adjustment | DEC 2012 |

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52.203-14 DISPLAY OF HOTLINE POSTER(S) (JUN 2020)

(a) Definition.

United States, as used in this clause, means the 50 States, the District of Columbia, and outlying areas.

(b) Display of fraud hotline poster(s). Except as provided in paragraph (c)--

(1) During contract performance in the United States, the Contractor shall prominently display in common work areas within business segments performing work under this contract and at contract work sites--

(i) Any agency fraud hotline poster or Department of Homeland Security (DHS) fraud hotline poster identified in paragraph (b)(3) of this clause; and

(ii) Any DHS fraud hotline poster subsequently identified by the Contracting Officer.

(2) Additionally, if the Contractor maintains a company website as a method of providing information to employees, the Contractor shall display an electronic version of the poster(s) at the website.

(3) Any required posters may be obtained as follows:

Poster(s) Obtain from www.oig.dhs.gov

(i) Appropriate agency name(s) and/or title of applicable Department of Homeland Security fraud hotline poster); and

(ii) The website(s) or other contact information for obtaining the poster(s).)

(c) If the Contractor has implemented a business ethics and conduct awareness program, including a reporting mechanism, such as a hotline poster, then the Contractor need not display any agency fraud hotline posters as required in paragraph (b) of this clause, other than any required DHS posters.

(d) Subcontracts. The Contractor shall include the substance of this clause, including this paragraph (d), in all subcontracts that exceed the threshold specified in Federal Acquisition Regulation 3.1004(b)(1) on the date of subcontract award, except when the subcontract--

(1) Is for the acquisition of a commercial item; or

(2) Is performed entirely outside the United States.

(End of clause)

52.217-8 OPTION TO EXTEND SERVICES (NOV 1999)

The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor within 3 calendar days of expiration of the contract.

(End of clause)

52.217-9 OPTION TO EXTEND THE TERM OF THE CONTRACT (MAR 2000)

(a) The Government may extend the term of this contract by written notice to the Contractor within 3 calendar days of expiration of the contract; provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least 30 days before the contract expires. The preliminary notice does not commit the Government to an extension.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed 66 months.
(End of clause)

52.219-14 LIMITATIONS ON SUBCONTRACTING (DEVIATION 2020-O0008) (MAR 2020)
(a) This clause does not apply to the unrestricted portion of a partial set-aside.
(b) Definition. "Similarly situated entity," as used in this clause, means a first-tier subcontractor, including an independent contractor, that—
(1) Has the same small business program status as that which qualified the prime contractor for the award (e.g., for a small business set-aside contract, any small business concern, without regard to its socioeconomic status); and
(2) Is considered small for the size standard under the North American Industry Classification System (NAICS) code the prime contractor assigned to the subcontract.
(c) Applicability. This clause applies only to—
(1) Contracts that have been set aside for small business concerns or 8(a) participants;
(2) Part or parts of a multiple-award contract that have been set aside for small business concerns or 8(a) participants;
(3) Contracts that have been awarded on a sole-source basis in accordance with subpart 19.8;
(4) Orders set aside for small business concerns under multiple-award contracts, as described in 8.405-5 and 16.505(b)(2)(i)(F), if the order amount is expected to exceed the simplified acquisition threshold;
(5) Orders competed among 8(a) participants in accordance with subpart 19.8 under multiple-award contracts, as described in 8.405-5 and 16.505(b)(2)(i)(F), regardless of dollar value;
(6) Contracts using the HUBZone price evaluation preference to award to a HUBZone small business concern unless the concern waived the evaluation preference; and
(7) Orders issued directly to small business concerns or 8(a) participants under multiple-award contracts as described in 19.504(c)(1)(ii).
(d) Independent contractors. An independent contractor shall be considered a subcontractor.
(e) Limitations on subcontracting. By submission of an offer and execution of a contract, the Contractor agrees that in performance of a contract assigned a NAICS code for—
(1) Services (except construction), it will not pay more than 50 percent of the amount paid by the Government for contract performance to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count toward the prime contractor's 50 percent subcontract amount that cannot be exceeded. When a contract includes both services and supplies, the 50 percent limitation shall apply only to the service portion of the contract. Other direct costs are excluded to the extent they are not the principal purpose of the contract and cannot be obtained from small business concerns;
(2) Supplies (other than procurement from a nonmanufacturer of such supplies), it will not pay more than 50 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count toward the prime contractor's 50 percent subcontract amount that cannot be exceeded. When a contract includes both supplies and services, the 50 percent limitation shall apply only to the supply portion of the contract;
(3) General construction, it will not pay more than 85 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count toward the prime contractor's 85 percent subcontract amount that cannot be exceeded; or
(4) Construction by special trade contractors, it will not pay more than 75 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count toward the prime contractor's 75 percent subcontract amount that cannot be exceeded.
(f) A joint venture agrees that, in the performance of the contract, the applicable percentage specified in paragraph (e) of this clause will be performed by the aggregate of the joint venture participants.
(g) The Contractor shall comply with the limitations on subcontracting as follows:

(1) For contracts, in accordance with paragraphs (c)(1) and (2) of this clause—
[Contracting Officer check as appropriate.]
XX___ By the end of the base term of the contract and then by the end of each subsequent option period; or
___ By the end of the performance period for each order issued under the contract.
(2) For orders, in accordance with paragraphs (c)(3) and (4) of this clause, by the end of the performance period for the order.

(End of clause)

52.225-9 BUY AMERICAN—CONSTRUCTION MATERIALS (MAY 2014)

(a) Definitions. As used in this clause--

Commercially available off-the-shelf (COTS) item—

(1) Means any item of supply (including construction material) that is--

(i) A commercial item (as defined in paragraph (1) of the definition at FAR 2.101);

(ii) Sold in substantial quantities in the commercial marketplace; and

(iii) Offered to the Government, under a contract or subcontract at any tier, without modification, in the same form in which it is sold in the commercial marketplace; and

(2) Does not include bulk cargo, as defined in 46 U.S.C. 40102(4) such as agricultural products and petroleum products.

Component means an article, material, or supply incorporated directly into a construction material.

Construction material means an article, material, or supply brought to the construction site by the Contractor or a subcontractor for incorporation into the building or work. The term also includes an item brought to the site preassembled from articles, materials, or supplies. However, emergency life safety systems, such as emergency lighting, fire alarm, and audio evacuation systems, that are discrete systems incorporated into a public building or work and that are produced as complete systems, are evaluated as a single and distinct construction material regardless of when or how the individual parts or components of those systems are delivered to the construction site. Materials purchased directly by the Government are supplies, not construction material.

Cost of components means--

(1) For components purchased by the Contractor, the acquisition cost, including transportation costs to the place of incorporation into the construction material (whether or not such costs are paid to a domestic firm), and any applicable duty (whether or not a duty-free entry certificate is issued); or

(2) For components manufactured by the Contractor, all costs associated with the manufacture of the component, including transportation costs as described in paragraph (1) of this definition, plus allocable overhead costs, but excluding profit. Cost of components does not include any costs associated with the manufacture of the construction material.

Domestic construction material means--

(1) An unmanufactured construction material mined or produced in the United States;

(2) A construction material manufactured in the United States, if--

(i) The cost of its components mined, produced, or manufactured in the United States exceeds 50 percent of the cost of all its components. Components of foreign origin of the same class or kind for which nonavailability determinations have been made are treated as domestic; or

(ii) The construction material is a COTS item.

Foreign construction material means a construction material other than a domestic construction material.

United States means the 50 States, the District of Columbia, and outlying areas.

(b) Domestic preference.

(1) This clause implements 41 U.S.C. chapter 83, Buy American, by providing a preference for domestic construction material. In accordance with 41 U.S.C. 1907, the component test of the Buy American statute is waived for construction material that is a COTS item. (See FAR 12.505(a)(2)). The Contractor shall use only domestic construction material in performing this contract, except as provided in paragraphs (b)(2) and (b)(3) of this clause.

(2) This requirement does not apply to information technology that is a commercial item or to the construction materials or components listed by the Government as follows:

(3) The Contracting Officer may add other foreign construction material to the list in paragraph (b)(2) of this clause if the Government determines that

(i) The cost of domestic construction material would be unreasonable. The cost of a particular domestic construction material subject to the requirements of the Buy American Act is unreasonable when the cost of such material exceeds the cost of foreign material by more than 6 percent;

(ii) The application of the restriction of the Buy American Act to a particular construction material would be impracticable or inconsistent with the public interest; or

(iii) The construction material is not mined, produced, or manufactured in the United States in sufficient and reasonably available commercial quantities of a satisfactory quality.

(c) Request for determination of inapplicability of the Buy American Act. (1)(i) Any Contractor request to use foreign construction material in accordance with paragraph (b)(3) of this clause shall include adequate information for Government evaluation of the request, including--

(A) A description of the foreign and domestic construction materials;

(B) Unit of measure;

(C) Quantity;

(D) Price;

(E) Time of delivery or availability;

(F) Location of the construction project;

(G) Name and address of the proposed supplier; and

(H) A detailed justification of the reason for use of foreign construction materials cited in accordance with paragraph (b)(3) of this clause.

(ii) A request based on unreasonable cost shall include a reasonable survey of the market and a completed price comparison table in the format in paragraph (d) of this clause.

(iii) The price of construction material shall include all delivery costs to the construction site and any applicable duty (whether or not a duty-free certificate may be issued).

(iv) Any Contractor request for a determination submitted after contract award shall explain why the Contractor could not reasonably foresee the need for such determination and could not have requested the determination before contract award. If the Contractor does not submit a satisfactory explanation, the Contracting Officer need not make a determination.

(2) If the Government determines after contract award that an exception to the Buy American statute applies and the Contracting Officer and the Contractor negotiate adequate consideration, the Contracting Officer will modify the contract to allow use of the foreign construction material. However, when the basis for the exception is the unreasonable price of a domestic construction material, adequate consideration is not less than the differential established in paragraph (b)(3)(i) of this clause.

(3) Unless the Government determines that an exception to the Buy American statute applies, use of foreign construction material is noncompliant with the Buy American statute.

(d) Data. To permit evaluation of requests under paragraph (c) of this clause based on unreasonable cost, the Contractor shall include the following information and any applicable supporting data based on the survey of suppliers:

Foreign and Domestic Construction Materials Price Comparison

| Construction material description | Unit of measure | Quantity | Price (dollars) \1\ |
|---|---|---|---|
| Item 1 | | | |
| Foreign construction material.... ..... | ___ ..... | ..... ..... | ___ ..... |
| Domestic construction material... ..... | ___ ..... | ..... ..... | ___ ..... |
| Item 2 | | | |
| Foreign construction material.... ..... | ___ ..... | ..... ..... | ___ ..... |
| Domestic construction material... ..... | ___ ..... | ..... ..... | ___ ..... |

Include all delivery costs to the construction site and any applicable duty (whether or not a duty-free entry certificate is issued).
List name, address, telephone number, and contact for suppliers surveyed. Attach copy of response; if oral, attach summary.
Include other applicable supporting information.

(End of clause)

52.232-16 PROGRESS PAYMENTS (JUN 2020) ALTERNATE I (MAR 2000)

The Government will make progress payments to the Contractor when requested as work progresses, but not more frequently than monthly, in amounts of $2,500 or more approved by the Contracting Officer, under the following conditions:

(a) Computation of amounts.

(1) Unless the Contractor requests a smaller amount, the Government will compute each progress payment as 85 percent of the Contractor's total costs incurred under this contract whether or not actually paid, plus financing payments to subcontractors (see paragraph (j) of this clause), less the sum of all previous progress payments made by the Government under this contract. The Contracting Officer will consider cost of money that would be allowable under Federal Acquisition Regulation (FAR) 31.205-10 as an incurred cost for progress payment purposes.

(2) The amount of financing and other payments for supplies and services purchased directly for the contract are limited to the amounts that have been paid by cash, check, or other forms of payment, or that are determined due and will be paid to subcontractors--

(i) In accordance with the terms and conditions of a subcontract or invoice; and

(ii) Ordinarily within 30 days of the submission of the Contractor's payment request to the Government.

(3) The Government will exclude accrued costs of Contractor contributions under employee pension plans until actually paid unless--

(i) The Contractor's practice is to make contributions to the retirement fund quarterly or more frequently; and

(ii) The contribution does not remain unpaid 30 days after the end of the applicable quarter or shorter payment period (any contribution remaining unpaid shall be excluded from the Contractor's total costs for progress payments until paid).

(4) The Contractor shall not include the following in total costs for progress payment purposes in paragraph (a)(1) of this clause:

(i) Costs that are not reasonable, allocable to this contract, and consistent with sound and generally accepted accounting principles and practices.

(ii) Costs incurred by subcontractors or suppliers.

(iii) Costs ordinarily capitalized and subject to depreciation or amortization except for the properly depreciated or amortized portion of such costs.

(iv) Payments made or amounts payable to subcontractors or suppliers, except for --

(A) Completed work, including partial deliveries, to which the Contractor has acquired title; and

(B) Work under cost-reimbursement or time-and-material subcontracts to which the Contractor has acquired title.

(5) The amount of unliquidated progress payments may exceed neither (i) the progress payments made against incomplete work (including allowable unliquidated progress payments to subcontractors) nor

(ii) the value, for progress payment purposes, of the incomplete work. Incomplete work shall be considered to be the supplies and services required by this contract, for which delivery and invoicing by the Contractor and acceptance by the Government are incomplete.

(6) The total amount of progress payments shall not exceed 85 percent of the total contract price.

(7) If a progress payment or the unliquidated progress payments exceed the amounts permitted by subparagraphs (a)(4) or (a)(5) of this clause, the Contractor shall repay the amount of such excess to the Government on demand.

(8) Notwithstanding any other terms of the contract, the Contractor agrees not to request progress payments in dollar amounts of less than $2,500. The Contracting Officer may make exceptions.

(9) The costs applicable to items delivered, invoiced, and accepted shall not include costs in excess of the contract price of the items.

(b) Liquidation. Except as provided in the Termination for Convenience of the Government clause, all progress payments shall be liquidated by deducting from any payment under this contract, other than advance or progress payments, the unliquidated progress payments, or 85 percent of the amount invoiced, whichever is less. The Contractor shall repay to the Government any amounts required by a retroactive price reduction, after computing liquidations and payments on past invoices at the reduced prices and adjusting the unliquidated progress payments accordingly. The Government reserves the right to unilaterally change from the ordinary liquidation rate to an alternate rate when deemed appropriate for proper contract financing.

(c) Reduction or suspension. The Contracting Officer may reduce or suspend progress payments, increase the rate of liquidation, or take a combination of these actions, after finding on substantial evidence any of the following conditions:

(1) The Contractor failed to comply with any material requirement of this contract (which includes paragraphs (f) and (g) of this clause).

(2) Performance of this contract is endangered by the Contractor's --

(i) Failure to make progress or

(ii) Unsatisfactory financial condition.

(3) Inventory allocated to this contract substantially exceeds reasonable requirements.

(4) The Contractor is delinquent in payment of the costs of performing this contract in the ordinary course of business.

(5) The fair value of the undelivered work is less than the amount of unliquidated progress payments for that work.

(6) The Contractor is realizing less profit than that reflected in the establishment of any alternate liquidation rate in paragraph (b) of this clause, and that rate is less than the progress payment rate stated in subparagraph (a)(1) of this clause.

(d) Title.

(1) Title to the property described in this paragraph (d) shall vest in the Government. Vestiture shall be immediately upon the date of this contract, for property acquired or produced before that date. Otherwise, vestiture shall occur when the property is or should have been allocable or properly chargeable to this contract.

(2) "Property," as used in this clause, includes all of the below-described items acquired or produced by the Contractor that are or should be allocable or properly chargeable to this contract under sound and generally accepted accounting principles and practices.

(i) Parts, materials, inventories, and work in process;

(ii) Special tooling and special test equipment to which the Government is to acquire title;

(iii) Nondurable (i.e., noncapital) tools, jigs, dies, fixtures, molds, patterns, taps, gauges, test equipment, and other similar manufacturing aids, title to which would not be obtained as special tooling under paragraph (d) (2)(ii) of this clause; and

(iv) Drawings and technical data, to the extent the Contractor or subcontractors are required to deliver them to the Government by other clauses of this contract.

(3) Although title to property is in the Government under this clause, other applicable clauses of this contract; e.g., the termination clauses, shall determine the handling and disposition of the property.

(4) The Contractor may sell any scrap resulting from production under this contract without requesting the Contracting Officer's approval, but the proceeds shall be credited against the costs of performance.

(5) To acquire for its own use or dispose of property to which title is vested in the Government under this clause, the Contractor must obtain the Contracting Officer's advance approval of the action and the terms. The Contractor shall (i) exclude the allocable costs of the property from the costs of contract performance, and (ii) repay to the Government any amount of unliquidated progress payments allocable to the property. Repayment may be by cash or credit memorandum.

(6) When the Contractor completes all of the obligations under this contract, including liquidation of all progress payments, title shall vest in the Contractor for all property (or the proceeds thereof) not--

(i) Delivered to, and accepted by, the Government under this contract; or

(ii) Incorporated in supplies delivered to, and accepted by, the Government under this contract and to which title is vested in the Government under this clause.

(7) The terms of this contract concerning liability for Government-furnished property shall not apply to property to which the Government acquired title solely under this clause.

(e) Risk of loss. Before delivery to and acceptance by the Government, the Contractor shall bear the risk of loss for property, the title to which vests in the Government under this clause, except to the extent the Government expressly assumes the risk. The Contractor shall repay the Government an amount equal to the unliquidated progress payments that are based on costs allocable to property that is lost (see 45.101).

(f) Control of costs and property. The Contractor shall maintain an accounting system and controls adequate for the proper administration of this clause.

(g) Reports, forms, and access to records. (1) The Contractor shall promptly furnish reports, certificates, financial statements, and other pertinent information (including estimates to complete) reasonably requested by the Contracting Officer for the administration of this clause. Also, the Contractor shall give the Government reasonable opportunity to examine and verify the Contractor's books, records, and accounts.

(2) The Contractor shall furnish estimates to complete that have been developed or updated within six months of the date of the progress payment request. The estimates to complete shall represent the Contractor's best estimate of total costs to complete all remaining contract work required under the contract. The estimates shall include sufficient detail to permit Government verification.

(3) Each Contractor request for progress payment shall:

(i) Be submitted on Standard Form 1443, Contractor's Request for Progress Payment, or the electronic equivalent as required by agency regulations, in accordance with the form instructions and the contract terms; and

(ii) Include any additional supporting documentation requested by the Contracting Officer.

(h) Special terms regarding default. If this contract is terminated under the Default clause, (i) the Contractor shall, on demand, repay to the Government the amount of unliquidated progress payments and (ii) title shall vest in the Contractor, on full liquidation of progress payments, for all property for which the Government elects not to require delivery under the Default clause. The Government shall be liable for no payment except as provided by the Default clause.

(i) Reservations of rights.

(1) No payment or vesting of title under this clause shall --

(i) Excuse the Contractor from performance of obligations under this contract or

(ii) Constitute a waiver of any of the rights or remedies of the parties under the contract.

(2) The Government's rights and remedies under this clause

(i) Shall not be exclusive but rather shall be in addition to any other rights and remedies provided by law or this contract and

(ii) Shall not be affected by delayed, partial, or omitted exercise of any right, remedy, power, or privilege, nor shall such exercise or any single exercise preclude or impair any further exercise under this clause or the exercise of any other right, power, or privilege of the Government.

(j) Financing payments to subcontractors. The financing payments to subcontractors mentioned in paragraphs (a)(1) and (a)(2) of this clause shall be all financing payments to subcontractors or divisions, if the following conditions are met:

(1) The amounts included are limited to--

(i) The unliquidated remainder of financing payments made; plus

(ii) Any unpaid subcontractor requests for financing payments.

(2) The subcontract or interdivisional order is expected to involve a minimum of approximately 6 months between the beginning of work and the first delivery; or, if the subcontractor is a small business concern, 4 months.

(3) If the financing payments are in the form of progress payments, the terms of the subcontract or interdivisional order concerning progress payments--

(i) Are substantially similar to the terms of this clause for any subcontractor that is a large business concern, or this clause with its Alternate I for any subcontractor that is a small business concern;

(ii) Are at least as favorable to the Government as the terms of this clause;

(iii) Are not more favorable to the subcontractor or division than the terms of this clause are to the Contractor;

(iv) Are in conformance with the requirements of FAR 32.504(e); and

(v) Subordinate all subcontractor rights concerning property to which the Government has title under the subcontract to the Government's right to require delivery of the property to the Government if--

(A) The Contractor defaults; or

(B) The subcontractor becomes bankrupt or insolvent.

(4) If the financing payments are in the form of performance-based payments, the terms of the subcontract or interdivisional order concerning payments--

(i) Are substantially similar to the Performance-Based Payments clause at FAR 52.232-32 and meet the criteria for, and definition of, performance-based payments in FAR Part 32;

(ii) Are in conformance with the requirements of FAR 32.504(f); and

(iii) Subordinate all subcontractor rights concerning property to which the Government has title under the subcontract to the Government's right to require delivery of the property to the Government if--

(A) The Contractor defaults; or

(B) The subcontractor becomes bankrupt or insolvent.

(5) If the financing payments are in the form of commercial item financing payments, the terms of the subcontract or interdivisional order concerning payments--

(i) Are constructed in accordance with FAR 32.206(c) and included in a subcontract for a commercial item purchase that meets the definition and standards for acquisition of commercial items in FAR Parts 2 and 12;

(ii) Are in conformance with the requirements of FAR 32.504(g); and

(iii) Subordinate all subcontractor rights concerning property to which the Government has title under the subcontract to the Government's right to require delivery of the property to the Government if--

(A) The Contractor defaults; or

(B) The subcontractor becomes bankrupt or insolvent.

(6) If financing is in the form of progress payments, the progress payment rate in the subcontract is the customary rate used by the contracting agency, depending on whether the subcontractor is or is not a small business concern.

(7) Concerning any proceeds received by the Government for property to which title has vested in the Government under the subcontract terms, the parties agree that the proceeds shall be applied to reducing any unliquidated financing payments by the Government to the Contractor under this contract.

(8) If no unliquidated financing payments to the Contractor remain, but there are unliquidated financing payments that the Contractor has made to any subcontractor, the Contractor shall be subrogated to all the rights the Government obtained through the terms required by this clause to be in any subcontract, as if all such rights had been assigned and transferred to the Contractor.

(9) To facilitate small business participation in subcontracting under this contract, the Contractor shall provide financing payments to small business concerns, in conformity with the standards for customary contract financing payments stated in Subpart 32.113. The Contractor shall not consider the need for such financing payments as a handicap or adverse factor in the award of subcontracts.

(k) Limitations on undefinitized contract actions. Notwithstanding any other progress payment provisions in this contract, progress payments may not exceed 85 percent of costs incurred on work accomplished under undefinitized contract actions. A "contract action" is any action resulting in a contract, as defined in Subpart 2.1, including contract modifications for additional supplies or services, but not including contract modifications that are within the scope and under the terms of the contract, such as contract modifications issued pursuant to the Changes clause, or funding and other administrative changes. This limitation shall apply to the costs incurred, as computed in accordance with paragraph (a) of this clause, and shall remain in effect until the contract action is definitized. Costs incurred which are subject to this limitation shall be segregated on Contractor progress payment requests and invoices from those costs eligible for higher progress payment rates. For purposes of progress payment liquidation, as described in paragraph (b) of this clause, progress payments for undefinitized contract actions shall be liquidated at 85 percent of the amount invoiced for work performed under the undefinitized contract action as long as the contract action remains undefinitized. The amount of unliquidated progress payments for undefinitized contract actions shall not exceed 85 percent of the maximum liability of the Government under the undefinitized contract

action or such lower limit specified elsewhere in the contract. Separate limits may be specified for separate actions.

(l) Due date. The designated payment office will make progress payments on the 30th day after the designated billing office receives a proper progress payment request. In the event that the Government requires an audit or other review of a specific progress payment request to ensure compliance with the terms and conditions of the contract, the designated payment office is not compelled to make payment by the specified due date. Progress payments are considered contract financing and are not subject to the interest penalty provisions of the Prompt Payment Act.

(m) Progress payments under indefinite--delivery contracts. The Contractor shall account for and submit progress payment requests under individual orders as if the order constituted a separate contract, unless otherwise specified in this contract.

(End of clause)

52.249-5000 BASIS FOR SETTLEMENT OF PROPOSALS

Actual costs will be used to determine equipment costs for a settlement proposal submitted on the total cost basis under FAR 49.206-2(b). In evaluating a terminations settlement proposal using the total cost basis, the following principles will be applied to determine allowable equipment costs:

(1) Actual costs for each piece of equipment, or groups of similar serial or series equipment, need not be available in the contractor's accounting records to determine total actual equipment costs.

(2) If equipment costs have been allocated to a contract using predetermined rates , those charges will be adjusted to actual costs.

(3) Recorded job costs adjusted for unallowable expenses will be used to determine equipment operating expenses.

(4) Ownership costs (depreciation) will be determined using the contractor's depreciation schedule (subject to the provisions of FAR 31.205-11).

(5) License, taxes, storage and insurance costs are normally recovered as an indirect expense and unless the contractor charges these costs directly to contracts, they will be recovered through the indirect expense rate.

(End of Clause)

52.252-2 CLAUSES INCORPORATED BY REFERENCE (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

www.acquisition.gov

(End of clause)

52.252-6 AUTHORIZED DEVIATIONS IN CLAUSES (APR 1984)

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the clause.

(b) The use in this solicitation or contract of any Defense Federal Acquisition Regulation Supplement (48 CFR chaper 1) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of clause)

Section J - List of Documents, Exhibits and Other Attachments

WAGE RATES

"REGISTER OF WAGE DETERMINATIONS UNDER | U.S. DEPARTMENT OF LABOR
THE SERVICE CONTRACT ACT | EMPLOYMENT STANDARDS ADMINISTRATION
By direction of the Secretary of Labor | WAGE AND HOUR DIVISION
| WASHINGTON D.C. 20210
|
|
|
| Wage Determination No.: 2015-5635
Daniel W. Simms Division of | Revision No.: 13
Director Wage Determinations| Date Of Last Revision: 07/14/2020

Note: Under Executive Order (EO) 13658 an hourly minimum

wage of $10.80 for calendar year 2020 applies to all contracts subject to the Service Contract Act for which the contract is awarded (and any solicitation was issued) on or after January 1 2015. If this contract is covered by the EO the contractor must pay all workers in any classification listed on this wage determination at least $10.80 per hour (or the applicable wage rate listed on this wage determination if it is higher) for all hours spent performing on the contract in calendar year 2020. The EO minimum wage rate will be adjusted annually. Additional information on contractor requirements and worker protections under the EO is available at www.dol.gov/whd/govcontracts.

State: California

Area: California County of San Diego

**Fringe Benefits Required Follow the Occupational Listing**

| OCCUPATION CODE - TITLE | FOOTNOTE | RATE |
|---|---|---|
| 01000 - Administrative Support And Clerical Occupations | | |
| 01011 - Accounting Clerk I | | 17.51 |
| 01012 - Accounting Clerk II | | 19.66 |
| 01013 - Accounting Clerk III | | 21.99 |
| 01020 - Administrative Assistant | | 32.03 |
| 01035 - Court Reporter | | 30.17 |
| 01041 - Customer Service Representative I | | 14.77 |
| 01042 - Customer Service Representative II | | 16.61 |
| 01043 - Customer Service Representative III | | 18.13 |
| 01051 - Data Entry Operator I | | 15.25 |
| 01052 - Data Entry Operator II | | 16.65 |
| 01060 - Dispatcher Motor Vehicle | | 21.88 |
| 01070 - Document Preparation Clerk | | 17.13 |
| 01090 - Duplicating Machine Operator | | 17.13 |
| 01111 - General Clerk I | | 15.15 |

01112 - General Clerk II 16.54
01113 - General Clerk III 18.57
01120 - Housing Referral Assistant 22.44
01141 - Messenger Courier 15.89
01191 - Order Clerk I 17.13
01192 - Order Clerk II 18.68
01261 - Personnel Assistant (Employment) I 18.29
01262 - Personnel Assistant (Employment) II 20.67
01263 - Personnel Assistant (Employment) III 23.10
01270 - Production Control Clerk 25.39
01290 - Rental Clerk 16.09
01300 - Scheduler Maintenance 18.00
01311 - Secretary I 18.00
01312 - Secretary II 20.13
01313 - Secretary III 22.44
01320 - Service Order Dispatcher 19.56
01410 - Supply Technician 32.03
01420 - Survey Worker 19.16
01460 - Switchboard Operator/Receptionist 15.96
01531 - Travel Clerk I 17.99
01532 - Travel Clerk II 19.65
01533 - Travel Clerk III 21.57
01611 - Word Processor I 16.74
01612 - Word Processor II 18.80
01613 - Word Processor III 21.02
05000 - Automotive Service Occupations
05005 - Automobile Body Repairer Fiberglass 22.28
05010 - Automotive Electrician 22.37
05040 - Automotive Glass Installer 21.55
05070 - Automotive Worker 21.55
05110 - Mobile Equipment Servicer 19.83
05130 - Motor Equipment Metal Mechanic 23.16
05160 - Motor Equipment Metal Worker 21.55
05190 - Motor Vehicle Mechanic 22.75
05220 - Motor Vehicle Mechanic Helper 18.60
05250 - Motor Vehicle Upholstery Worker 20.75
05280 - Motor Vehicle Wrecker 21.55
05310 - Painter Automotive 22.79
05340 - Radiator Repair Specialist 21.55
05370 - Tire Repairer 15.81
05400 - Transmission Repair Specialist 23.16
07000 - Food Preparation And Service Occupations
07010 - Baker 14.18
07041 - Cook I 16.32
07042 - Cook II 18.56
07070 - Dishwasher 12.09
07130 - Food Service Worker 13.50
07210 - Meat Cutter 15.71
07260 - Waiter/Waitress 12.60
09000 - Furniture Maintenance And Repair Occupations
09010 - Electrostatic Spray Painter 21.65
09040 - Furniture Handler 15.11
09080 - Furniture Refinisher 21.93
09090 - Furniture Refinisher Helper 17.69
09110 - Furniture Repairer Minor 20.29

09130 - Upholsterer 21.93
11000 - General Services And Support Occupations
11030 - Cleaner Vehicles 13.13
11060 - Elevator Operator 15.85
11090 - Gardener 18.60
11122 - Housekeeping Aide 15.85
11150 - Janitor 15.85
11210 - Laborer Grounds Maintenance 14.79
11240 - Maid or Houseman 14.02
11260 - Pruner 13.48
11270 - Tractor Operator 17.32
11330 - Trail Maintenance Worker 14.79
11360 - Window Cleaner 17.39
12000 - Health Occupations
12010 - Ambulance Driver 18.34
12011 - Breath Alcohol Technician 24.48
12012 - Certified Occupational Therapist Assistant 32.43
12015 - Certified Physical Therapist Assistant 32.56
12020 - Dental Assistant 19.60
12025 - Dental Hygienist 48.71
12030 - EKG Technician 34.84
12035 - Electroneurodiagnostic Technologist 34.84
12040 - Emergency Medical Technician 18.34
12071 - Licensed Practical Nurse I 23.84
12072 - Licensed Practical Nurse II 26.66
12073 - Licensed Practical Nurse III 29.72
12100 - Medical Assistant 18.58
12130 - Medical Laboratory Technician 27.60
12160 - Medical Record Clerk 20.11
12190 - Medical Record Technician 22.50
12195 - Medical Transcriptionist 25.43
12210 - Nuclear Medicine Technologist 54.59
12221 - Nursing Assistant I 12.76
12222 - Nursing Assistant II 14.35
12223 - Nursing Assistant III 15.65
12224 - Nursing Assistant IV 17.57
12235 - Optical Dispenser 22.06
12236 - Optical Technician 19.36
12250 - Pharmacy Technician 19.77
12280 - Phlebotomist 23.10
12305 - Radiologic Technologist 40.87
12311 - Registered Nurse I 29.75
12312 - Registered Nurse II 35.92
12313 - Registered Nurse II Specialist 35.92
12314 - Registered Nurse III 42.67
12315 - Registered Nurse III Anesthetist 42.67
12316 - Registered Nurse IV 51.14
12317 - Scheduler (Drug and Alcohol Testing) 33.02
12320 - Substance Abuse Treatment Counselor 21.00
13000 - Information And Arts Occupations
13011 - Exhibits Specialist I 21.96
13012 - Exhibits Specialist II 27.20
13013 - Exhibits Specialist III 33.28
13041 - Illustrator I 23.23
13042 - Illustrator II 28.78

13043 - Illustrator III 35.20
13047 - Librarian 35.87
13050 - Library Aide/Clerk 16.56
13054 - Library Information Technology Systems Administrator 32.38
13058 - Library Technician 20.85
13061 - Media Specialist I 23.37
13062 - Media Specialist II 26.14
13063 - Media Specialist III 29.14
13071 - Photographer I 18.11
13072 - Photographer II 20.25
13073 - Photographer III 25.09
13074 - Photographer IV 30.69
13075 - Photographer V 37.14
13090 - Technical Order Library Clerk 20.79
13110 - Video Teleconference Technician 21.38
14000 - Information Technology Occupations
14041 - Computer Operator I 18.72
14042 - Computer Operator II 20.94
14043 - Computer Operator III 23.34
14044 - Computer Operator IV 25.94
14045 - Computer Operator V 28.72
14071 - Computer Programmer I (see 1)
14072 - Computer Programmer II (see 1)
14073 - Computer Programmer III (see 1)
14074 - Computer Programmer IV (see 1)
14101 - Computer Systems Analyst I (see 1)
14102 - Computer Systems Analyst II (see 1)
14103 - Computer Systems Analyst III (see 1)
14150 - Peripheral Equipment Operator 18.72
14160 - Personal Computer Support Technician 25.94
14170 - System Support Specialist 34.56
15000 - Instructional Occupations
15010 - Aircrew Training Devices Instructor (Non-Rated) 31.62
15020 - Aircrew Training Devices Instructor (Rated) 38.26
15030 - Air Crew Training Devices Instructor (Pilot) 45.86
15050 - Computer Based Training Specialist / Instructor 31.62
15060 - Educational Technologist 36.14
15070 - Flight Instructor (Pilot) 45.86
15080 - Graphic Artist 26.04
15085 - Maintenance Test Pilot Fixed Jet/Prop 45.86
15086 - Maintenance Test Pilot Rotary Wing 45.86
15088 - Non-Maintenance Test/Co-Pilot 45.86
15090 - Technical Instructor 27.52
15095 - Technical Instructor/Course Developer 33.68
15110 - Test Proctor 22.23
15120 - Tutor 22.23
16000 - Laundry Dry-Cleaning Pressing And Related Occupations
16010 - Assembler 14.22
16030 - Counter Attendant 14.22
16040 - Dry Cleaner 16.26
16070 - Finisher Flatwork Machine 14.22
16090 - Presser Hand 14.22
16110 - Presser Machine Drycleaning 14.22
16130 - Presser Machine Shirts 14.22

16160 - Presser Machine Wearing Apparel Laundry 14.22
16190 - Sewing Machine Operator 16.94
16220 - Tailor 17.62
16250 - Washer Machine 14.90
19000 - Machine Tool Operation And Repair Occupations
19010 - Machine-Tool Operator (Tool Room) 25.24
19040 - Tool And Die Maker 29.57
21000 - Materials Handling And Packing Occupations
21020 - Forklift Operator 21.90
21030 - Material Coordinator 25.39
21040 - Material Expediter 25.39
21050 - Material Handling Laborer 14.00
21071 - Order Filler 15.33
21080 - Production Line Worker (Food Processing) 21.90
21110 - Shipping Packer 16.70
21130 - Shipping/Receiving Clerk 16.70
21140 - Store Worker I 14.35
21150 - Stock Clerk 18.86
21210 - Tools And Parts Attendant 21.90
21410 - Warehouse Specialist 21.90
23000 - Mechanics And Maintenance And Repair Occupations
23010 - Aerospace Structural Welder 32.98
23019 - Aircraft Logs and Records Technician 26.60
23021 - Aircraft Mechanic I 31.76
23022 - Aircraft Mechanic II 32.98
23023 - Aircraft Mechanic III 34.14
23040 - Aircraft Mechanic Helper 23.19
23050 - Aircraft Painter 30.05
23060 - Aircraft Servicer 26.60
23070 - Aircraft Survival Flight Equipment Technician 30.05
23080 - Aircraft Worker 28.33
23091 - Aircrew Life Support Equipment (ALSE) Mechanic I 28.33
23092 - Aircrew Life Support Equipment (ALSE) Mechanic II 31.76
23110 - Appliance Mechanic 23.50
23120 - Bicycle Repairer 18.78
23125 - Cable Splicer 42.03
23130 - Carpenter Maintenance 26.51
23140 - Carpet Layer 23.88
23160 - Electrician Maintenance 28.97
23181 - Electronics Technician Maintenance I 27.55
23182 - Electronics Technician Maintenance II 29.24
23183 - Electronics Technician Maintenance III 30.90
23260 - Fabric Worker 26.39
23290 - Fire Alarm System Mechanic 25.31
23310 - Fire Extinguisher Repairer 22.78
23311 - Fuel Distribution System Mechanic 37.96
23312 - Fuel Distribution System Operator 29.77
23370 - General Maintenance Worker 20.37
23380 - Ground Support Equipment Mechanic 31.76
23381 - Ground Support Equipment Servicer 26.60
23382 - Ground Support Equipment Worker 28.33
23391 - Gunsmith I 22.78
23392 - Gunsmith II 25.90

23393 - Gunsmith III 29.05
23410 - Heating Ventilation And Air-Conditioning Mechanic 28.25
23411 - Heating Ventilation And Air Contidioning Mechanic (Research Facility) 29.33
23430 - Heavy Equipment Mechanic 28.70
23440 - Heavy Equipment Operator 31.97
23460 - Instrument Mechanic 28.24
23465 - Laboratory/Shelter Mechanic 27.49
23470 - Laborer 14.00
23510 - Locksmith 23.41
23530 - Machinery Maintenance Mechanic 27.92
23550 - Machinist Maintenance 22.95
23580 - Maintenance Trades Helper 16.57
23591 - Metrology Technician I 28.24
23592 - Metrology Technician II 29.32
23593 - Metrology Technician III 30.36
23640 - Millwright 30.05
23710 - Office Appliance Repairer 21.74
23760 - Painter Maintenance 21.93
23790 - Pipefitter Maintenance 26.56
23810 - Plumber Maintenance 25.13
23820 - Pneudraulic Systems Mechanic 29.05
23850 - Rigger 27.28
23870 - Scale Mechanic 25.69
23890 - Sheet-Metal Worker Maintenance 30.04
23910 - Small Engine Mechanic 21.12
23931 - Telecommunications Mechanic I 28.79
23932 - Telecommunications Mechanic II 29.90
23950 - Telephone Lineman 34.41
23960 - Welder Combination Maintenance 24.77
23965 - Well Driller 28.10
23970 - Woodcraft Worker 29.05
23980 - Woodworker 22.59
24000 - Personal Needs Occupations
24550 - Case Manager 18.47
24570 - Child Care Attendant 13.59
24580 - Child Care Center Clerk 19.94
24610 - Chore Aide 12.51
24620 - Family Readiness And Support Services Coordinator 18.47
24630 - Homemaker 20.77
25000 - Plant And System Operations Occupations
25010 - Boiler Tender 35.83
25040 - Sewage Plant Operator 32.68
25070 - Stationary Engineer 35.83
25190 - Ventilation Equipment Tender 26.16
25210 - Water Treatment Plant Operator 32.68
27000 - Protective Service Occupations
27004 - Alarm Monitor 28.71
27007 - Baggage Inspector 14.34
27008 - Corrections Officer 34.46
27010 - Court Security Officer 33.81
27030 - Detection Dog Handler 23.51
27040 - Detention Officer 34.46

27070 - Firefighter 33.81
27101 - Guard I 14.34
27102 - Guard II 23.51
27131 - Police Officer I 40.17
27132 - Police Officer II 44.63
28000 - Recreation Occupations
28041 - Carnival Equipment Operator 16.69
28042 - Carnival Equipment Repairer 17.93
28043 - Carnival Worker 12.99
28210 - Gate Attendant/Gate Tender 16.67
28310 - Lifeguard 16.66
28350 - Park Attendant (Aide) 18.64
28510 - Recreation Aide/Health Facility Attendant 13.60
28515 - Recreation Specialist 23.09
28630 - Sports Official 14.84
28690 - Swimming Pool Operator 20.39
29000 - Stevedoring/Longshoremen Occupational Services
29010 - Blocker And Bracer 31.92
29020 - Hatch Tender 31.92
29030 - Line Handler 31.92
29041 - Stevedore I 29.96
29042 - Stevedore II 33.87
30000 - Technical Occupations
30010 - Air Traffic Control Specialist Center (HFO) (see 2) 44.64
30011 - Air Traffic Control Specialist Station (HFO) (see 2) 30.79
30012 - Air Traffic Control Specialist Terminal (HFO) (see 2) 33.89
30021 - Archeological Technician I 20.59
30022 - Archeological Technician II 22.84
30023 - Archeological Technician III 28.30
30030 - Cartographic Technician 28.30
30040 - Civil Engineering Technician 28.48
30051 - Cryogenic Technician I 31.23
30052 - Cryogenic Technician II 34.49
30061 - Drafter/CAD Operator I 20.42
30062 - Drafter/CAD Operator II 22.84
30063 - Drafter/CAD Operator III 25.47
30064 - Drafter/CAD Operator IV 31.34
30081 - Engineering Technician I 18.88
30082 - Engineering Technician II 21.19
30083 - Engineering Technician III 23.70
30084 - Engineering Technician IV 29.36
30085 - Engineering Technician V 35.91
30086 - Engineering Technician VI 43.45
30090 - Environmental Technician 25.64
30095 - Evidence Control Specialist 28.19
30210 - Laboratory Technician 23.32
30221 - Latent Fingerprint Technician I 33.83
30222 - Latent Fingerprint Technician II 37.36
30240 - Mathematical Technician 30.57
30361 - Paralegal/Legal Assistant I 21.71
30362 - Paralegal/Legal Assistant II 26.91
30363 - Paralegal/Legal Assistant III 32.91
30364 - Paralegal/Legal Assistant IV 39.82
30375 - Petroleum Supply Specialist 34.49
30390 - Photo-Optics Technician 28.30

30395 - Radiation Control Technician 34.49
30461 - Technical Writer I 28.05
30462 - Technical Writer II 34.31
30463 - Technical Writer III 41.52
30491 - Unexploded Ordnance (UXO) Technician I 28.37
30492 - Unexploded Ordnance (UXO) Technician II 34.33
30493 - Unexploded Ordnance (UXO) Technician III 41.14
30494 - Unexploded (UXO) Safety Escort 28.37
30495 - Unexploded (UXO) Sweep Personnel 28.37
30501 - Weather Forecaster I 31.23
30502 - Weather Forecaster II 37.98
30620 - Weather Observer Combined Upper Air Or Surface Programs (see 2) 25.47
30621 - Weather Observer Senior (see 2) 28.30
31000 - Transportation/Mobile Equipment Operation Occupations
31010 - Airplane Pilot 34.33
31020 - Bus Aide 15.06
31030 - Bus Driver 20.19
31043 - Driver Courier 16.53
31260 - Parking and Lot Attendant 12.36
31290 - Shuttle Bus Driver 17.75
31310 - Taxi Driver 14.50
31361 - Truckdriver Light 17.75
31362 - Truckdriver Medium 19.92
31363 - Truckdriver Heavy 22.58
31364 - Truckdriver Tractor-Trailer 22.58
99000 - Miscellaneous Occupations
99020 - Cabin Safety Specialist 16.74
99030 - Cashier 12.33
99050 - Desk Clerk 14.18
99095 - Embalmer 24.43
99130 - Flight Follower 28.37
99251 - Laboratory Animal Caretaker I 15.28
99252 - Laboratory Animal Caretaker II 16.41
99260 - Marketing Analyst 30.03
99310 - Mortician 24.43
99410 - Pest Controller 17.26
99510 - Photofinishing Worker 21.35
99710 - Recycling Laborer 26.40
99711 - Recycling Specialist 31.57
99730 - Refuse Collector 24.57
99810 - Sales Clerk 13.45
99820 - School Crossing Guard 18.44
99830 - Survey Party Chief 32.22
99831 - Surveying Aide 21.05
99832 - Surveying Technician 29.30
99840 - Vending Machine Attendant 14.19
99841 - Vending Machine Repairer 16.90
99842 - Vending Machine Repairer Helper 14.09

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Note: Executive Order (EO) 13706 Establishing Paid Sick Leave for Federal Contractors applies to all contracts subject to the Service Contract Act for which the contract is awarded (and any solicitation was issued) on or after January 1 2017. If this contract is covered by the EO the contractor must provide employees

with 1 hour of paid sick leave for every 30 hours they work up to 56 hours of paid sick leave each year. Employees must be permitted to use paid sick leave for their own illness injury or other health-related needs including preventive care; to assist a family member (or person who is like family to the employee) who is ill injured or has other health-related needs including preventive care; or for reasons resulting from or to assist a family member (or person who is like family to the employee) who is the victim of domestic violence sexual assault or stalking. Additional information on contractor requirements and worker protections under the EO is available at www.dol.gov/whd/govcontracts.

ALL OCCUPATIONS LISTED ABOVE RECEIVE THE FOLLOWING BENEFITS:

HEALTH & WELFARE: $4.54 per hour up to 40 hours per week or $181.60 per week or $786.93 per month

HEALTH & WELFARE EO 13706: $4.22 per hour up to 40 hours per week or $168.80 per week or $731.47 per month*

*This rate is to be used only when compensating employees for performance on an SCA-covered contract also covered by EO 13706 Establishing Paid Sick Leave for Federal Contractors. A contractor may not receive credit toward its SCA obligations for any paid sick leave provided pursuant to EO 13706.

VACATION: 2 weeks paid vacation after 1 year of service with a contractor or successor 3 weeks after 5 years and 4 weeks after 15 years. Length of service includes the whole span of continuous service with the present contractor or successor wherever employed and with the predecessor contractors in the performance of similar work at the same Federal facility. (Reg. 29 CFR 4.173)

HOLIDAYS: A minimum of ten paid holidays per year: New Year's Day Martin Luther King Jr.'s Birthday Washington's Birthday Memorial Day Independence Day Labor Day Columbus Day Veterans' Day Thanksgiving Day and Christmas Day. (A contractor may substitute for any of the named holidays another day off with pay in accordance with a plan communicated to the employees involved.) (See 29 CFR 4.174)

THE OCCUPATIONS WHICH HAVE NUMBERED FOOTNOTES IN PARENTHESES RECEIVE THE FOLLOWING:

1) COMPUTER EMPLOYEES: Under the SCA at section 8(b) this wage determination does not apply to any employee who individually qualifies as a bona fide executive administrative or professional employee as defined in 29 C.F.R. Part 541. Because most Computer System Analysts and Computer Programmers who are compensated at a rate not less than $27.63 (or on a salary or fee basis at a rate not less than $455 per week) an hour would likely qualify as exempt computer professionals (29 C.F.R. 541. 400) wage rates may not be listed on this wage determination for all occupations within those job families. In addition because this wage determination may not list a wage rate for some or all occupations within those job families if the survey data indicates that the prevailing wage rate for the occupation equals or exceeds $27.63 per hour conformances may be necessary for certain nonexempt employees. For example if an individual employee is nonexempt but nevertheless performs duties within the scope of one of the Computer Systems Analyst or Computer Programmer occupations for which this wage determination does not specify an SCA wage rate then the wage rate for that employee must be conformed in accordance with the conformance procedures described in the conformance note included on this wage determination.

Additionally because job titles vary widely and change quickly in the computer industry job titles are not determinative of the application of the computer professional exemption. Therefore the exemption applies only to computer employees who satisfy the compensation requirements and whose primary duty consists of:

(1) The application of systems analysis techniques and procedures including consulting with users to determine hardware software or system functional specifications;

(2) The design development documentation analysis creation testing or modification of computer systems or programs including prototypes based on and related to user or system design specifications;

(3) The design documentation testing creation or modification of computer programs related to machine operating systems; or

(4) A combination of the aforementioned duties the performance of which requires the same level of skills. (29 C.F.R. 541.400).

2) AIR TRAFFIC CONTROLLERS AND WEATHER OBSERVERS - NIGHT PAY & SUNDAY PAY: If you work at night as part of a regular tour of duty you will earn a night differential and receive an additional 10% of basic pay for any hours worked between 6pm and 6am. If you are a full-time employed (40 hours a week) and Sunday is part of your regularly scheduled workweek you are paid at your rate of basic pay plus a Sunday premium of 25% of your basic rate for each hour of Sunday work which is not overtime (i.e. occasional work on Sunday outside the normal tour of duty is considered overtime work).

** HAZARDOUS PAY DIFFERENTIAL **

An 8 percent differential is applicable to employees employed in a position that represents a high degree of hazard when working with or in close proximity to ordnance explosives and incendiary materials. This includes work such as screening blending dying mixing and pressing of sensitive ordnance explosives and pyrotechnic compositions such as lead azide black powder and photoflash powder. All dry-house activities involving propellants or explosives. Demilitarization modification renovation demolition and maintenance operations on sensitive ordnance explosives and incendiary materials. All operations involving re-grading and cleaning of artillery ranges.

A 4 percent differential is applicable to employees employed in a position that represents a low degree of hazard when working with or in close proximity to ordnance (or employees possibly adjacent to) explosives and incendiary materials which involves potential injury such as laceration of hands face or arms of the employee engaged in the operation irritation of the skin minor burns and the like; minimal damage to immediate or adjacent work area or equipment being used. All operations involving unloading storage and hauling of ordnance explosive and incendiary ordnance material other than small arms ammunition. These differentials are only applicable to work that has been specifically designated by the agency for ordnance explosives and incendiary material differential pay.

** UNIFORM ALLOWANCE **

If employees are required to wear uniforms in the performance of this contract

(either by the terms of the Government contract by the employer by the state or local law etc.) the cost of furnishing such uniforms and maintaining (by laundering or dry cleaning) such uniforms is an expense that may not be borne by an employee where such cost reduces the hourly rate below that required by the wage determination. The Department of Labor will accept payment in accordance with the following standards as compliance:

The contractor or subcontractor is required to furnish all employees with an adequate number of uniforms without cost or to reimburse employees for the actual cost of the uniforms. In addition where uniform cleaning and maintenance is made the responsibility of the employee all contractors and subcontractors subject to this wage determination shall (in the absence of a bona fide collective bargaining agreement providing for a different amount or the furnishing of contrary affirmative proof as to the actual cost) reimburse all employees for such cleaning and maintenance at a rate of $3.35 per week (or $.67 cents per day). However in those instances where the uniforms furnished are made of ""wash and wear"" materials may be routinely washed and dried with other personal garments and do not require any special treatment such as dry cleaning daily washing or commercial laundering in order to meet the cleanliness or appearance standards set by the terms of the Government contract by the contractor by law or by the nature of the work there is no requirement that employees be reimbursed for uniform maintenance costs.

** SERVICE CONTRACT ACT DIRECTORY OF OCCUPATIONS **

The duties of employees under job titles listed are those described in the ""Service Contract Act Directory of Occupations"" Fifth Edition (Revision 1) dated September 2015 unless otherwise indicated.

** REQUEST FOR AUTHORIZATION OF ADDITIONAL CLASSIFICATION AND WAGE RATE Standard Form 1444 (SF-1444) **

Conformance Process:

The contracting officer shall require that any class of service employee which is not listed herein and which is to be employed under the contract (i.e. the work to be performed is not performed by any classification listed in the wage determination) be classified by the contractor so as to provide a reasonable relationship (i.e. appropriate level of skill comparison) between such unlisted classifications and the classifications listed in the wage determination (See 29 CFR 4.6(b)(2)(i)). Such conforming procedures shall be initiated by the contractor prior to the performance of contract work by such unlisted class(es) of employees (See 29 CFR 4.6(b)(2)(ii)). The Wage and Hour Division shall make a final determination of conformed classification wage rate and/or fringe benefits which shall be paid to all employees performing in the classification from the first day of work on which contract work is performed by them in the classification. Failure to pay such unlisted employees the compensation agreed upon by the interested parties and/or fully determined by the Wage and Hour Division retroactive to the date such class of employees commenced contract work shall be a violation of the Act and this contract. (See 29 CFR 4.6(b)(2)(v)). When multiple wage determinations are included in a contract a separate SF-1444 should be prepared for each wage determination to which a class(es) is to be conformed.

The process for preparing a conformance request is as follows:

1) When preparing the bid the contractor identifies the need for a conformed

occupation(s) and computes a proposed rate(s).

2) After contract award the contractor prepares a written report listing in order the proposed classification title(s) a Federal grade equivalency (FGE) for each proposed classification(s) job description(s) and rationale for proposed wage rate(s) including information regarding the agreement or disagreement of the authorized representative of the employees involved or where there is no authorized representative the employees themselves. This report should be submitted to the contracting officer no later than 30 days after such unlisted class(es) of employees performs any contract work.

3) The contracting officer reviews the proposed action and promptly submits a report of the action together with the agency's recommendations and pertinent information including the position of the contractor and the employees to the U.S. Department of Labor Wage and Hour Division for review (See 29 CFR 4.6(b)(2)(ii)).
4) Within 30 days of receipt the Wage and Hour Division approves modifies or disapproves the action via transmittal to the agency contracting officer or notifies the contracting officer that additional time will be required to process the request.

5) The contracting officer transmits the Wage and Hour Division's decision to the contractor.

6) Each affected employee shall be furnished by the contractor with a written copy of such determination or it shall be posted as a part of the wage determination (See 29 CFR 4.6(b)(2)(iii)).

Information required by the Regulations must be submitted on SF-1444 or bond paper.

When preparing a conformance request the ""Service Contract Act Directory of Occupations"" should be used to compare job definitions to ensure that duties requested are not performed by a classification already listed in the wage determination. Remember it is not the job title but the required tasks that determine whether a class is included in an established wage determination. Conformances may not be used to artificially split combine or subdivide classifications listed in the wage determination (See 29 CFR 4.152(c)(1))."

Section K - Representations, Certifications and Other Statements of Offerors

CLAUSES INCORPORATED BY FULL TEXT

52.203-18 PROHIBITION ON CONTRACTING WITH ENTITIES THAT REQUIRE CERTAIN INTERNAL CONFIDENTIALITY AGREEMENTS OR STATEMENTS--REPRESENTATION (JAN 2017)
(a) Definition. As used in this provision--
Internal confidentiality agreement or statement, subcontract, and subcontractor, are defined in the clause at 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements.
(b) In accordance with section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions), Government agencies are not permitted to use funds appropriated (or otherwise made available) for contracts with an entity that requires employees or subcontractors of such entity seeking to report waste, fraud, or abuse to sign internal confidentiality agreements or statements prohibiting or otherwise restricting such employees or subcontractors from lawfully reporting such waste, fraud, or abuse to a designated investigative or law enforcement representative of a Federal department or agency authorized to receive such information.
(c) The prohibition in paragraph (b) of this provision does not contravene requirements applicable to Standard Form 312, (Classified Information Nondisclosure Agreement), Form 4414 (Sensitive Compartmented Information Nondisclosure Agreement), or any other form issued by a Federal department or agency governing the nondisclosure of classified information.
(d) Representation. By submission of its offer, the Offeror represents that it will not require its employees or subcontractors to sign or comply with internal confidentiality agreements or statements prohibiting or otherwise restricting such employees or subcontractors from lawfully reporting waste, fraud, or abuse related to the performance of a Government contract to a designated investigative or law enforcement representative of a Federal department or agency authorized to receive such information (e.g., agency Office of the Inspector General).

(End of provision)

52.204-8 ANNUAL REPRESENTATIONS AND CERTIFICATIONS (MAR 2020)

(a)(1) The North American Industry Classification System (NAICS) code for this acquisition is 561210.

(2) The small business size standard is $41,500,000.

(3) The small business size standard for a concern which submits an offer in its own name, other than on a construction or service contract, but which proposes to furnish a product which it did not itself manufacture, is 500 employees.

(b)(1) If the provision at 52.204-7, System for Award Management, is included in this solicitation, paragraph (d) of this provision applies.

(2) If the provision at 52.204-7, System for Award Management, is not included in this solicitation, and the Offeror has an active registration in the System for Award Management (SAM), the Offeror may
choose to use paragraph (d) of this provision instead of completing the corresponding individual representations and certifications in the solicitation. The Offeror shall indicate which option applies by
checking one of the following boxes:

(  ) Paragraph (d) applies.

(  ) Paragraph (d) does not apply and the offeror has completed the individual representations and certifications in the solicitation.

(c) (1) The following representations or certifications in SAM are applicable to this solicitation as indicated:

(i) 52.203-2, Certificate of Independent Price Determination. This provision applies to solicitations when a firm-fixed-price contract or fixed-price contract with economic price adjustment is contemplated, unless—

(A) The acquisition is to be made under the simplified acquisition procedures in Part 13;

(B) The solicitation is a request for technical proposals under two-step sealed bidding procedures; or

(C) The solicitation is for utility services for which rates are set by law or regulation.

(ii) 52.203-11, Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions. This provision applies to solicitations expected to exceed $150,000.

(iii) 52.203-18, Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements--Representation. This provision applies to all solicitations.

(iv) 52.204-3, Taxpayer Identification. This provision applies to solicitations that do not include the provision at 52.204-7, System for Award Management.

(v) 52.204-5, Women-Owned Business (Other Than Small Business). This provision applies to solicitations that—

(A) Are not set aside for small business concerns;

(B) Exceed the simplified acquisition threshold; and

(C) Are for contracts that will be performed in the United States or its outlying areas.

(vi) 52.204-26, Covered Telecommunications Equipment or Services--Representation. This provision applies to all solicitations.

(vii) 52.209-2, Prohibition on Contracting with Inverted Domestic Corporations--Representation.

(viii) 52.209-5, Certification Regarding Responsibility Matters. This provision applies to solicitations where the contract value is expected to exceed the simplified acquisition threshold.

(ix) 52.209-11, Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law. This provision applies to all solicitations.

(x) 52.214-14, Place of Performance--Sealed Bidding. This provision applies to invitations for bids except those in which the place of performance is specified by the Government.

(xi) 52.215-6, Place of Performance. This provision applies to solicitations unless the place of performance is specified by the Government.

(xii) 52.219-1, Small Business Program Representations (Basic, Alternates I, and II). This provision applies to solicitations when the contract will be performed in the United States or its outlying areas.

(A) The basic provision applies when the solicitations are issued by other than DoD, NASA, and the Coast Guard.

(B) The provision with its Alternate I applies to solicitations issued by DoD, NASA, or the Coast Guard.

(C) The provision with its Alternate II applies to solicitations that will result in a multiple-award contract with more than one NAICS code assigned.

(xiii) 52.219-2, Equal Low Bids. This provision applies to solicitations when contracting by sealed bidding and the contract will be performed in the United States or its outlying areas.

(xiv) 52.222-22, Previous Contracts and Compliance Reports. This provision applies to solicitations that include the clause at 52.222-26, Equal Opportunity.

(xv) 52.222-25, Affirmative Action Compliance. This provision applies to solicitations, other than those for construction, when the solicitation includes the clause at 52.222-26, Equal Opportunity.

(xvi) 52.222-38, Compliance with Veterans' Employment Reporting Requirements. This provision applies to solicitations when it is anticipated the contract award will exceed the simplified acquisition threshold and the contract is not for acquisition of commercial items.

(xvii) 52.223-1, Biobased Product Certification. This provision applies to solicitations that require the delivery or specify the use of USDA-designated items; or include the clause at 52.223-2, Affirmative Procurement of Biobased Products Under Service and Construction Contracts.

(xviii) 52.223-4, Recovered Material Certification. This provision applies to solicitations that are for, or specify the use of, EPA- designated items.

(xix) 52.223-22, Public Disclosure of Greenhouse Gas Emissions and Reduction Goals--Representation. This provision applies to solicitations that include the clause at 52.204-7.)

(xx) 52.225-2, Buy American Certificate. This provision applies to solicitations containing the clause at 52.225-1.

(xxi) 52.225-4, Buy American--Free Trade Agreements--Israeli Trade Act Certificate. (Basic, Alternates I, II, and III.) This provision applies to solicitations containing the clause at 52.225- 3.

(A) If the acquisition value is less than $25,000, the basic provision applies.

(B) If the acquisition value is $25,000 or more but is less than $50,000, the provision with its Alternate I applies.

(C) If the acquisition value is $50,000 or more but is less than $83,099, the provision with its Alternate II applies.

(D) If the acquisition value is $83,099 or more but is less than $100,000, the provision with its Alternate III applies.

(xxii) 52.225-6, Trade Agreements Certificate. This provision applies to solicitations containing the clause at 52.225-5.

(xxiii) 52.225-20, Prohibition on Conducting Restricted Business Operations in Sudan--Certification. This provision applies to all solicitations.

(xxiv) 52.225-25, Prohibition on Contracting with Entities Engaging in Certain Activities or Transactions Relating to Iran—Representation and Certification. This provision applies to all solicitations.

(xxv) 52.226-2, Historically Black College or University and Minority Institution Representation. This provision applies to solicitations for research, studies, supplies, or services of the type normally acquired from higher educational institutions.

(2) The following representations or certifications are applicable as indicated by the Contracting Officer:

[Contracting Officer check as appropriate.]

(i) 52.204-17, Ownership or Control of Offeror.

(ii) 52.204-20, Predecessor of Offeror.

(iii) 52.222-18, Certification Regarding Knowledge of Child Labor for Listed End Products.

(iv) 52.222-48, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment--Certification.

(v) 52.222-52 Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services--Certification.

(vi) 52.223-9, with its Alternate I, Estimate of Percentage of Recovered Material Content for EPA-Designated Products (Alternate I only).

(vii) 52.227-6, Royalty Information.

(A) Basic.

(B) Alternate I.

(viii) 52.227-15, Representation of Limited Rights Data and Restricted Computer Software.

(d) The Offeror has completed the annual representations and certifications electronically in SAM accessed through https://www.sam.gov. After reviewing the SAM information, the Offeror verifies by submission of the offer that the representations and certifications currently posted electronically that apply to this solicitation as indicated in paragraph (c) of this provision have been entered or updated within the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard applicable to the NAICS code referenced for this solicitation), as of the date of this offer and are incorporated in this offer by reference (see FAR 4.1201); except for the changes identified below [ offeror to insert changes, identifying change by clause number, title, date]. These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.

| FAR Clause | Title | Date | Change |
|---|---|---|---|
| ------ | ---------- | ------ | ------ |

Any changes provided by the offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications posted on SAM.

(End of provision)

52.204-17 OWNERSHIP OR CONTROL OF OFFEROR (AUG 2020)

(a) Definitions. As used in this provision--

Commercial and Government Entity (CAGE) code means—

(1) An identifier assigned to entities located in the United States or its outlying areas by the Defense Logistics Agency (DLA) Commercial and Government Entity (CAGE) Branch to identify a commercial or government entity by unique location; or

(2) An identifier assigned by a member of the North Atlantic Treaty Organization (NATO) or by the NATO Support and Procurement Agency (NSPA) to entities located outside the United States and its outlying areas that the DLA Commercial and Government Entity (CAGE) Branch records and maintains in the CAGE master file. This type of code is known as a NATO CAGE (NCAGE) code.

Highest-level owner means the entity that owns or controls an immediate owner of the offeror, or that owns or controls one or more entities that control an immediate owner of the offeror. No entity owns or exercises control of the highest level owner.

Immediate owner means an entity, other than the offeror, that has direct control of the offeror. Indicators of control include, but are not limited to, one or more of the following: Ownership or interlocking management, identity of interests among family members, shared facilities and equipment, and the common use of employees.

(b) The Offeror represents that it [ ___ ] has or [ ___ ] does not have an immediate owner. If the Offeror has more than one immediate owner (such as a joint venture), then the Offeror shall respond to paragraph (c) and if applicable, paragraph (d) of this provision for each participant in the joint venture.

(c) If the Offeror indicates ``has" in paragraph (b) of this provision, enter the following information:

Immediate owner CAGE code:

___

Immediate owner legal name: ___

(Do not use a ``doing business as" name)

Is the immediate owner owned or controlled by another entity?:
[ ___ ] Yes or [ ___ ] No.

(d) If the Offeror indicates ``yes" in paragraph (c) of this provision, indicating that the immediate owner is owned or controlled by another entity, then enter the following information:

Highest-level owner CAGE code:

___

Highest-level owner legal name:

___

(Do not use a ``doing business as" name)

(End of provision)

52.204-20 Predecessor of Offeror (AUG 2020)

(a) Definitions. As used in this provision--

Commercial and Government Entity (CAGE) code means--

(1) An identifier assigned to entities located in the United States or its outlying areas by the Defense Logistics Agency (DLA) Commercial and Government Entity (CAGE) Branch to identify a commercial or government entity by unique location; or

(2) An identifier assigned by a member of the North Atlantic Treaty Organization (NATO) or by the NATO Support and Procurement Agency (NSPA) to entities located outside the United States and its outlying areas that the DLA Commercial and Government Entity (CAGE) Branch records and maintains in the CAGE master file. This type of code is known as a NATO CAGE (NCAGE) code.

Predecessor means an entity that is replaced by a successor and includes any predecessors of the predecessor.

Successor means an entity that has replaced a predecessor by acquiring the assets and carrying out the affairs of the predecessor under a new name (often through acquisition or merger). The term “successor” does not include new offices/divisions of the same company or a company that only changes its name. The extent of the responsibility of the successor for the liabilities of the predecessor may vary, depending on State law and specific circumstances.

(b) The Offeror represents that it [____] is or [____ ] is not a successor to a predecessor that held a Federal contract or grant within the last three years.

(c) If the Offeror has indicated “is” in paragraph (b) of this provision, enter the following information for all predecessors that held a Federal contract or grant within the last three years (if more than one predecessor, list in reverse chronological order):

Predecessor CAGE code: ____ (or mark “Unknown”).

Predecessor legal name: ____.

(Do not use a “doing business as” name).

(End of provision)

52.204-24 REPRESENTATION REGARDING CERTAIN TELECOMMUNICATIONS AND VIDEO SURVEILLANCE SERVICES OR EQUIPMENT (AUG 2020)

The Offeror shall not complete the representation at paragraph (d)(1) of this provision if the Offeror has represented that it "does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument" in the provision at 52.204-26, Covered Telecommunications Equipment or Services--Representation, or in paragraph (v) of the provision at 52.212-3, Offeror Representations and Certifications-Commercial Items.

(a) Definitions. As used in this provision-

Backhaul, covered telecommunications equipment or services, critical technology, interconnection arrangements, reasonable inquiry, roaming, and substantial or essential component have the meanings provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

(b) Prohibition.

(1) Section 889(a)(1)(A) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2019, from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. Nothing in the prohibition shall be construed to--

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(2) Section 889(a)(1)(B) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2020, from entering into a contract or extending or renewing a contract with an entity that uses any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. This prohibition applies to the use of covered telecommunications equipment or services, regardless of whether that use is in performance of work under a Federal contract. Nothing in the prohibition shall be construed to--

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(c) Procedures. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (https://www.sam.gov) for entities excluded from receiving federal awards for "covered telecommunications equipment or services."

(d) Representations. The Offeror represents that--

(1) It [ ] will, [ ] will not provide covered telecommunications equipment or services to the Government in the performance of any contract, subcontract or other contractual instrument resulting from this solicitation. The Offeror shall provide the additional disclosure information required at paragraph (e)(1) of this section if the Offeror responds "will" in paragraph (d)(1) of this section; and

(2) After conducting a reasonable inquiry, for purposes of this representation, the Offeror represents that--

It [ ] does, [ ] does not use covered telecommunications equipment or services, or use any equipment, system, or service that uses covered telecommunications equipment or services. The Offeror shall provide the additional disclosure information required at paragraph (e)(2) of this section if the Offeror responds "does" in paragraph (d)(2) of this section.

(e) Disclosures.

(1) Disclosure for the representation in paragraph (d)(1) of this provision. If the Offeror has responded "will" in the representation in paragraph (d)(1) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment--

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the original equipment manufacturer (OEM) or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(ii) For covered services--

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the Product Service Code (PSC) of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(2) Disclosure for the representation in paragraph (d)(2) of this provision. If the Offeror has responded "does" in the representation in paragraph (d)(2) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment--

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(ii) For covered services--

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the PSC of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(End of provision)

52.204-26 COVERED TELECOMMUNICATIONS EQUIPMENT OR SERVICES--REPRESENTATION (DEC 2019)

(a) Definitions. As used in this provision, “covered telecommunications equipment or services” has the meaning provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

(b) Procedures. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (https://www.sam.gov) for entities excluded from receiving federal awards for “covered telecommunications equipment or services”.

(c) Representation. The Offeror represents that it [ ___ ] does, [ ___ ] does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

(End of provision)

52.209-2 PROHIBITION ON CONTRACTING WITH INVERTED DOMESTIC CORPORATIONS--REPRESENTATION (NOV 2015)

(a) Definitions. Inverted domestic corporation and subsidiary have the meaning given in the clause of this contract entitled Prohibition on Contracting with Inverted Domestic Corporations (52.209-10).

(b) Government agencies are not permitted to use appropriated (or otherwise made available) funds for contracts with either an inverted domestic corporation, or a subsidiary of an inverted domestic corporation, unless the exception at 9.108-2(b) applies or the requirement is waived in accordance with the procedures at 9.108-4.

(c) Representation. The Offeror represents that--

(1) It [ ___ ] is, [ ___ ] is not an inverted domestic corporation; and

(2) It [ ___ ] is, [ ___ ] is not a subsidiary of an inverted domestic corporation.

(End of provision)

52.209-7 INFORMATION REGARDING RESPONSIBILITY MATTERS (OCT 2018)

(a) Definitions. As used in this provision--

Administrative proceeding means a non-judicial process that is adjudicatory in nature in order to make a determination of fault or liability (e.g., Securities and Exchange Commission Administrative Proceedings, Civilian Board of Contract Appeals Proceedings, and Armed Services Board of Contract Appeals Proceedings). This includes administrative proceedings at the Federal and State level but only in connection with performance of a Federal contract or grant. It does not include agency actions such as contract audits, site visits, corrective plans, or inspection of deliverables.

Federal contracts and grants with total value greater than $10,000,000 means--

(1) The total value of all current, active contracts and grants, including all priced options; and

(2) The total value of all current, active orders including all priced options under indefinite-delivery, indefinite-quantity, 8(a), or requirements contracts (including task and delivery and multiple-award Schedules).

Principal means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (e.g., general manager; plant manager; head of a division or business segment; and similar positions).

(b) The offeror ( ) has ( ) does not have current active Federal contracts and grants with total value greater than $10,000,000.

(c) If the offeror checked "has" in paragraph (b) of this provision, the offeror represents, by submission of this offer, that the information it has entered in the Federal Awardee Performance and Integrity Information System (FAPIIS) is current, accurate, and complete as of the date of submission of this offer with regard to the following information:

(1) Whether the offeror, and/or any of its principals, has or has not, within the last five years, in connection with the award to or performance by the offeror of a Federal contract or grant, been the subject of a proceeding, at the Federal or State level that resulted in any of the following dispositions:

(i) In a criminal proceeding, a conviction.

(ii) In a civil proceeding, a finding of fault and liability that results in the payment of a monetary fine, penalty, reimbursement, restitution, or damages of $5,000 or more.

(iii) In an administrative proceeding, a finding of fault and liability that results in--

(A) The payment of a monetary fine or penalty of $5,000 or more; or

(B) The payment of a reimbursement, restitution, or damages in excess of $100,000.

(iv) In a criminal, civil, or administrative proceeding, a disposition of the matter by consent or compromise with an acknowledgment of fault by the Contractor if the proceeding could have led to any of the outcomes specified in paragraphs (c)(1)(i), (c)(1)(ii), or (c)(1)(iii) of this provision.

(2) If the offeror has been involved in the last five years in any of the occurrences listed in (c)(1) of this provision, whether the offeror has provided the requested information with regard to each occurrence.

(d) The offeror shall post the information in paragraphs (c)(1)(i) through (c)(1)(iv) of this provision in FAPIIS as required through maintaining an active registration in the System for Award Management, which can be accessed via https://www.sam.gov (see 52.204-7).

(End of provision)

52.209-11 REPRESENTATION BY CORPORATIONS REGARDING DELINQUENT TAX LIABILITY OR A FELONY CONVICTION UNDER ANY FEDERAL LAW (FEB 2016)

(a) As required by sections 744 and 745 of Division E of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235), and similar provisions, if contained in subsequent appropriations acts, the Government will not enter into a contract with any corporation that--

(1) Has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability, where the awarding agency is aware of the unpaid tax liability,

unless an agency has considered suspension or debarment of the corporation and made a determination that suspension or debarment is not necessary to protect the interests of the Government; or

(2) Was convicted of a felony criminal violation under any Federal law within the preceding 24 months, where the awarding agency is aware of the conviction, unless an agency has considered suspension or debarment of the corporation and made a determination that this action is not necessary to protect the interests of the Government.

(b) The Offeror represents that--

(1) It is [ ] is not [ ] a corporation that has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability; and

(2) It is [ ] is not [ ] a corporation that was convicted of a felony criminal violation under a Federal law within the preceding 24 months.

(End of provision)

52.209-12 CERTIFICATION REGARDING TAX MATTERS (FEB 2016)

(a) This provision implements section 523 of Division B of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235), and similar provisions, if contained in subsequent appropriations acts.

(b) If the Offeror is proposing a total contract price that will exceed $5,000,000 (including options), the Offeror shall certify that, to the best of its knowledge and belief, it--

(1) Has [ ] filed all Federal tax returns required during the three years preceding the certification;

(2) Has not [ ] been convicted of a criminal offense under the Internal Revenue Code of 1986; and

(3) Has not [ ], more than 90 days prior to certification, been notified of any unpaid Federal tax assessment for which the liability remains unsatisfied, unless the assessment is the subject of an installment agreement or offer in compromise that has been approved by the Internal Revenue Service and is not in default, or the assessment is the subject of a non-frivolous administrative or judicial proceeding.

(End of provision)

52.209-13 VIOLATION OF ARMS CONTROL TREATIES OR AGREEMENTS--CERTIFICATION (JUL 2020)

(a) This provision does not apply to acquisitions below the simplified acquisition threshold or to acquisitions of commercial items as defined at FAR 2.101.

(b) Certification. [Offeror shall check either (1) or (2).]

____ (1) The Offeror certifies that--

(i) It does not engage and has not engaged in any activity that contributed to or was a significant factor in the President's or Secretary of State's determination that a foreign country is in violation of its obligations undertaken in any arms control, nonproliferation, or disarmament agreement to which the United States is a party, or is not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. The determinations are described in the most recent unclassified annual report provided to Congress pursuant to section 403 of the Arms Control and Disarmament Act (22 U.S.C. 2593a). The report is available via the internet at https://www.state.gov/bureaus-offices/under-secretary-for-arms-control-and-international-security-affairs/bureau-of-arms-control-verification-and-compliance/; and

(ii) No entity owned or controlled by the Offeror has engaged in any activity that contributed to or was a significant factor in the President's or Secretary of State's determination that a foreign country is in violation of its obligations undertaken in any arms control, nonproliferation, or disarmament agreement to which the United States is a party, or is not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. The determinations are described in the most recent unclassified annual report provided to Congress pursuant to section 403 of the Arms Control and Disarmament Act (22 U.S.C. 2593a). The report is available via the internet at https://www.state.gov/bureaus-offices/under-secretary-for-arms-control-and-international-security-affairs/bureau-of-arms-control-verification-and-compliance/; or

____ (2) The Offeror is providing separate information with its offer in accordance with paragraph (d)(2) of this provision.

(c) Procedures for reviewing the annual unclassified report (see paragraph (b)(1) of this provision). For clarity, references to the report in this section refer to the entirety of the annual unclassified report, including any separate reports that are incorporated by reference into the annual unclassified report.

(1) Check the table of contents of the annual unclassified report and the country section headings of the reports incorporated by reference to identify the foreign countries listed there. Determine whether the Offeror or any person owned or controlled by the Offeror may have engaged in any activity related to one or more of such foreign countries.

(2) If there may have been such activity, review all findings in the report associated with those foreign countries to determine whether or not each such foreign country was determined to be in violation of its obligations undertaken in an arms control, nonproliferation, or disarmament agreement to which the United States is a party, or to be not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. For clarity, in the annual report an explicit certification of non-compliance is equivalent to a determination of violation. However, the following statements in the annual report are not equivalent to a determination of violation:

(i) An inability to certify compliance.

(ii) An inability to conclude compliance.

(iii) A statement about compliance concerns.

(3) If so, determine whether the Offeror or any person owned or controlled by the Offeror has engaged in any activity that contributed to or is a significant factor in the determination in the report that one or more of these foreign countries is in violation of its obligations undertaken in an arms control, nonproliferation, or disarmament agreement to which the United States is a party, or is not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. Review the narrative for any such findings reflecting a determination of violation or non-adherence related to those foreign countries in the report, including the finding itself, and to the extent necessary, the conduct giving rise to the compliance or adherence concerns, the analysis of compliance or adherence concerns, and efforts to resolve compliance or adherence concerns.

(4) The Offeror may submit any questions with regard to this report by email to NDAA1290Cert@state.gov. To the extent feasible, the Department of State will respond to such email inquiries within 3 business days.

(d) Do not submit an offer unless--

(1) A certification is provided in paragraph (b)(1) of this provision and submitted with the offer; or

(2) In accordance with paragraph (b)(2) of this provision, the Offeror provides with its offer information that the President of the United States has--

(i) Waived application under U.S.C. 2593e(d) or (e); or

(ii) Determined under 22 U.S.C. 2593e(g)(2) that the entity has ceased all activities for which measures were imposed under 22 U.S.C.2593e(b).

(e) Remedies. The certification in paragraph (b)(1) of this provision is a material representation of fact upon which reliance was placed when making award. If it is later determined that the Offeror knowingly submitted a false certification, in addition to other remedies available to the Government, such as suspension or debarment, the Contracting Officer may terminate any contract resulting from the false certification.

(End of provision)

52.219-1 SMALL BUSINESS PROGRAM REPRESENTATIONS (MAR 2020) - ALTERNATE I (SEPT 2015)

(a) Definitions. As used in this provision--

Economically disadvantaged women-owned small business (EDWOSB) concern means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States and who are economically disadvantaged in accordance with 13 CFR part 127. It automatically qualifies as a women-owned small business concern eligible under the WOSB Program.

Service-disabled veteran-owned small business concern--

(1) Means a small business concern--

(i) Not less than 51 percent of which is owned by one or more service-disabled veterans or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more service-disabled veterans; and

(ii) The management and daily business operations of which are controlled by one or more service-disabled veterans or, in the case of a service-disabled veteran with permanent and severe disability, the spouse or permanent caregiver of such veteran.

(2) Service-disabled veteran means a veteran, as defined in 38 U.S.C. 101(2), with a disability that is service-connected, as defined in 38 U.S.C. 101(16).

Small business concern means a concern, including its affiliates, that is independently owned and operated, not dominant in the field of operation in which it is bidding on Government contracts, and qualified as a small business under the criteria in 13 CFR Part 121 and the size standard in paragraph (b) of this provision.

Small disadvantaged business concern, consistent with 13 CFR 124.1002, means a small business concern under the size standard applicable to the acquisition, that--

(1) Is at least 51 percent unconditionally and directly owned (as defined at 13 CFR 124.105) by--

(i) One or more socially disadvantaged (as defined at 13 CFR 124.103) and economically disadvantaged (as defined at 13 CFR 124.104) individuals who are citizens of the United States, and

(ii) Each individual claiming economic disadvantage has a net worth not exceeding $750,000 after taking into account the applicable exclusions set forth at 13 CFR 124.104(c)(2); and

(2) The management and daily business operations of which are controlled (as defined at 13 CFR 124.106) by individuals who meet the criteria in paragraphs (1)(i) and (ii) of this definition.

Veteran-owned small business concern means a small business concern--

(1) Not less than 51 percent of which is owned by one or more veterans (as defined at 38 U.S.C. 101(2)) or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more veterans; and

(2) The management and daily business operations of which are controlled by one or more veterans.

Women-owned small business concern means a small business concern--

(1) That is at least 51 percent owned by one or more women; or, in the case of any publicly owned business, at least 51 percent of the stock of which is owned by one or more women; and

(2) Whose management and daily business operations are controlled by one or more women.

Women-owned small business (WOSB) concern eligible under the WOSB Program (in accordance with 13 CFR part 127), means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States.

(b)(1) The North American Industry Classification System (NAICS) code for this acquisition is 561210 Facilities Support Services.

(2) The small business size standard is $41,500,000.00 .

(3) The small business size standard for a concern which submits an offer in its own name, other than on a construction or service contract, but which proposes to furnish a product which it did not itself manufacture (i.e., nonmanufacturer), is 500 employees.

(c) Representations. (1) The offeror represents as part of its offer that it [ ___ ] is, [ ___ ] is not a small business concern. (2) [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents that it [ ___ ] is, [ ___ ] is not, a small disadvantaged business concern as defined in 13 CFR 124.1002.

(3) [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents as part of its offer that it [ ___ ] is, [ ___ ] is not a women-owned small business concern.

(4) Women-owned small business (WOSB) concern eligible under the WOSB Program. [Complete only if the offeror represented itself as a women-owned small business concern in paragraph (c)(3) of this provision.] The offeror represents as part of its offer that--

(i) It [ ___ ] is, [ ___ ] is not a WOSB concern eligible under the WOSB Program, has provided all the required documents to the WOSB Repository, and no change in circumstances or adverse decisions have been issued that affects its eligibility; and

(ii) It [ ___ ] is, [ ___ ] is not a joint venture that complies with the requirements of 13 CFR part 127, and the representation in paragraph (c)(4)(i) of this provision is accurate for each WOSB concern eligible under the WOSB Program participating in the joint venture. [The offeror shall enter the name or names of the WOSB concern eligible under the WOSB Program and other small businesses that are participating in the joint venture: ___ --.] Each WOSB concern eligible under the WOSB Program participating in the joint venture shall submit a separate signed copy of the WOSB representation.

(5) Economically disadvantaged women-owned small business (EDWOSB) concern. [Complete only if the offeror represented itself as a women-owned small business concern eligible under the WOSB Program in (c)(4) of this provision.] The offeror represents as part of its offer that--

(i) It [ ___ ] is, [ ___ ] is not an EDWOSB concern eligible under the WOSB Program, has provided all the required documents to the WOSB Repository, and no change in circumstances or adverse decisions have been issued that affects its eligibility; and

(ii) It [ ___ ] is, [ ___ ] is not a joint venture that complies with the requirements of 13 CFR part 127, and the representation in paragraph (c)(5)(i) of this provision is accurate for each EDWOSB concern participating in the joint venture. [The offeror shall enter the name or names of the EDWOSB concern and other small businesses that are participating in the joint venture: ___ --.] Each EDWOSB concern participating in the joint venture shall submit a separate signed copy of the EDWOSB representation.

(6) [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents as part of its offer that it [ ___ ] is, [ ___ ] is not a veteran-owned small business concern.

(7) [Complete only if the offeror represented itself as a veteran-owned small business concern in paragraph (c)(6) of this provision.] The offeror represents as part of its offer that it [ ___ ] is, [ ___ ] is not a service-disabled veteran-owned small business concern.

(8) [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents, as part of its offer, that--

(i) It [ ___ ] is, [ ___ ] is not a HUBZone small business concern listed, on the date of this representation, on the List of Qualified HUBZone Small Business Concerns maintained by the Small Business Administration, and no material changes in ownership and control, principal office, or HUBZone employee percentage have occurred since it was certified in accordance with 13 CFR Part 126; and

(ii) It [ ___ ] is, [ ___ ] is not a HUBZone joint venture that complies with the requirements of 13 CFR Part 126, and the representation in paragraph (c)(8)(i) of this provision is accurate for each HUBZone small business concern participating in the HUBZone joint venture. [The offeror shall enter the names of each of the HUBZone small business concerns participating in the HUBZone joint venture: ___ --.] Each HUBZone small business concern participating in the HUBZone joint venture shall submit a separate signed copy of the HUBZone representation.

(d) Notice. Under 15 U.S.C. 645(d), any person who misrepresents a firm's status as a business concern that is small, HUBZone small, small disadvantaged, service-disabled veteran-owned small, economically disadvantaged women-owned small, or women-owned small eligible under the WOSB Program in order to obtain a contract to be awarded under the preference programs established pursuant to section 8, 9, 15, 31, and 36 of the Small Business Act or any other provision of Federal law that specifically references section 8(d) for a definition of program eligibility, shall—

(1) Be punished by imposition of fine, imprisonment, or both;

(2) Be subject to administrative remedies, including suspension and debarment; and

(3) Be ineligible for participation in programs conducted under the authority of the Act.

(9) [Complete if offeror represented itself as disadvantaged in paragraph (c)(2) of this provision.] The offeror shall check the category in which its ownership falls:

___ Black American.

___ Hispanic American.

___ Native American (American Indians, Eskimos, Aleuts, or Native Hawaiians).

___ Asian-Pacific American (persons with origins from Burma, Thailand, Malaysia, Indonesia, Singapore, Brunei, Japan, China, Taiwan, Laos, Cambodia (Kampuchea), Vietnam, Korea, The Philippines, Republic of Palau, Republic of the Marshall Islands, Federated States of Micronesia, the Commonwealth of the Northern Mariana Islands, Guam, Samoa, Macao, Hong Kong, Fiji, Tonga, Kiribati, Tuvalu, or Nauru).

___ Subcontinent Asian (Asian-Indian) American (persons with origins from India, Pakistan, Bangladesh, Sri Lanka, Bhutan, the Maldives Islands, or Nepal).

___ Individual/concern, other than one of the preceding.

(End of provision)

52.223-22 PUBLIC DISCLOSURE OF GREENHOUSE GAS EMISSIONS AND REDUCTION GOALS--REPRESENTATION (DEC 2016)

(a) This representation shall be completed if the Offeror received $7.5 million or more in Federal contract awards in the prior Federal fiscal year. The representation is optional if the Offeror received less than $7.5 million in Federal contract awards in the prior Federal fiscal year.

(b) Representation. [Offeror is to check applicable blocks in paragraphs (b)(1) and (2).]

(1) The Offeror (itself or through its immediate owner or highest-level owner) [ ___ ] does, [ ___ ] does not publicly disclose greenhouse gas emissions, i.e., make available on a publicly accessible Web site the results of a greenhouse gas inventory, performed in accordance with an accounting standard with publicly available and consistently applied criteria, such as the Greenhouse Gas Protocol Corporate Standard.

(2) The Offeror (itself or through its immediate owner or highest-level owner) [ ___ ] does, [ ___ ] does not publicly disclose a quantitative greenhouse gas emissions reduction goal, i.e., make available on a publicly available Web site a target to reduce absolute emissions or emissions intensity by a specific quantity or percentage.

(3) A publicly accessible Web site includes the Offeror's own Web site or a recognized, third-party greenhouse gas emissions reporting program.

(c) If the Offeror checked ``does'' in paragraphs (b)(1) or (b)(2) of this provision, respectively, the Offeror shall provide the publicly accessible Web site(s) where greenhouse gas emissions and/or reduction goals are reported: ___ .

(End of provision)

52.225-20 PROHIBITION ON CONDUCTING RESTRICTED BUSINESS OPERATIONS IN SUDAN--CERTIFICATION (AUG 2009)

(a) Definitions. As used in this provision--

Business operations means engaging in commerce in any form, including by acquiring, developing, maintaining, owning, selling, possessing, leasing, or operating equipment, facilities, personnel, products, services, personal property, real property, or any other apparatus of business or commerce.

Marginalized populations of Sudan means--

(1) Adversely affected groups in regions authorized to receive assistance under section 8(c) of the Darfur Peace and Accountability Act (Pub. L. 109-344) (50 U.S.C. 1701 note); and

(2) Marginalized areas in Northern Sudan described in section 4(9) of such Act.

Restricted business operations means business operations in Sudan that include power production activities, mineral extraction activities, oil-related activities, or the production of military equipment, as those terms are defined in the Sudan Accountability and Divestment Act of 2007 (Pub. L. 110-174). Restricted business operations do not include business operations that the person (as that term is defined in Section 2 of the Sudan Accountability and Divestment Act of 2007) conducting the business can demonstrate--

(1) Are conducted under contract directly and exclusively with the regional government of southern Sudan;

(2) Are conducted pursuant to specific authorization from the Office of Foreign Assets Control in the Department of the Treasury, or are expressly exempted under Federal law from the requirement to be conducted under such authorization;

(3) Consist of providing goods or services to marginalized populations of Sudan;

(4) Consist of providing goods or services to an internationally recognized peacekeeping force or humanitarian organization;

(5) Consist of providing goods or services that are used only to promote health or education; or

(6) Have been voluntarily suspended.

(b) Certification. By submission of its offer, the offeror certifies that the offeror does not conduct any restricted business operations in Sudan.

(End of provision)

52.225-25 PROHIBITION ON CONTRACTING WITH ENTITIES ENGAGING IN CERTAIN ACTIVITIES OR TRANSACTIONS RELATING TO IRAN--REPRESENTATION AND CERTIFICATIONS. (JUN 2020)

(a) Definitions. As used in this provision--

Person--

(1) Means--

(i) A natural person;

(ii) A corporation, business association, partnership, society, trust, financial institution, insurer, underwriter, guarantor, and any other business organization, any other nongovernmental entity, organization, or group, and any governmental entity operating as a business enterprise; and

(iii) Any successor to any entity described in paragraph (1)(ii) of this definition; and

(2) Does not include a government or governmental entity that is not operating as a business enterprise.

Sensitive technology--

(1) Means hardware, software, telecommunications equipment, or any other technology that is to be used specifically--

(i) To restrict the free flow of unbiased information in Iran; or

(ii) To disrupt, monitor, or otherwise restrict speech of the people of Iran; and

(2) Does not include information or informational materials the export of which the President does not have the authority to regulate or prohibit pursuant to section 203(b)(3) of the International Emergency Economic Powers Act (50 U.S.C. 1702(b)(3)).

(b) The offeror shall email questions concerning sensitive technology to the Department of State at CISADA106@state.gov.

(c) Except as provided in paragraph (d) of this provision or if a waiver has been granted in accordance with Federal Acquisition Regulation (FAR) 25.703-4, by submission of its offer, the offeror—

(1) Represents, to the best of its knowledge and belief, that the offeror does not export any sensitive technology to the government of Iran or any entities or individuals owned or controlled by, or acting on behalf or at the direction of, the government of Iran;

(2) Certifies that the offeror, or any person owned or controlled by the offeror, does not engage in any activities for which sanctions may be imposed under section 5 of the Iran Sanctions Act. These sanctioned activities are in the areas of development of the petroleum resources of Iran, production of refined petroleum products in Iran, sale and provision of refined petroleum products to Iran, and contributing to Iran's ability to acquire or develop certain weapons or technologies; and

(3) Certifies that the offeror, and any person owned or controlled by the offeror, does not knowingly engage in any transaction that exceeds the threshold at FAR 25.703-2(a)(2) with Iran's Revolutionary Guard Corps or any of its officials, agents, or affiliates, the property and interests in property of which are blocked pursuant to the International Emergency Economic Powers Act (50 U.S.C. 1701 et seq.) (see OFAC's Specially Designated Nationals and Blocked Persons List at https://www.treasury.gov/resource-center/sanctions/SDN-List/Pages/default.aspx).

(d) Exception for trade agreements. The representation requirement of paragraph (c)(1) and the certification requirements of paragraphs (c)(2) and (c)(3) of this provision do not apply if—

(1) This solicitation includes a trade agreements notice or certification (e.g., 52.225-4, 52.225-6, 52.225-12, 52.225-24, or comparable agency provision); and

(2) The offeror has certified that all the offered products to be supplied are designated country end products or designated country construction material.

(End of provision)

252.203-7005 REPRESENTATION RELATING TO COMPENSATION OF FORMER DOD OFFICIALS (NOV 2011)

(a) Definition. Covered DoD official is defined in the clause at 252.203-7000, Requirements Relating to Compensation of Former DoD Officials.

(b) By submission of this offer, the offeror represents, to the best of its knowledge and belief, that all covered DoD officials employed by or otherwise receiving compensation from the offeror, and who are expected to undertake activities on behalf of the offeror for any resulting contract, are presently in compliance with all post-employment restrictions covered by 18 U.S.C. 207, 41 U.S.C. 2101-2107, and 5 CFR parts 2637 and 2641, including Federal Acquisition Regulation 3.104-2.

(End of provision)

252.204-7016 COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES -- REPRESENTATION (DEC 2019)

(a) Definitions. As used in this provision, covered defense telecommunications equipment or services has the meaning provided in the clause 252.204-7018, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.

(b) Procedures. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (https://www.sam.gov) for entities excluded from receiving federal awards for “covered defense telecommunications equipment or services”.

(c) Representation. The Offeror represents that it [ ] does, [ ] does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

(End of provision)

252.204-7017 PROHIBITION ON THE ACQUISITON OF COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES--REPRESENTATION (DEC 2019)

The Offeror is not required to complete the representation in this provision if the Offeror has represented in the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services--Representation, that it “does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.”

(a) Definitions. Covered defense telecommunications equipment or services, covered mission, critical technology, and substantial or essential component, as used in this provision, have the meanings given in the 252.204-7018 clause, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services, of this solicitation.

(b) Prohibition. Section 1656 of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91) prohibits agencies from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system.

(c) Procedures. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at https://www.sam.gov for entities that are excluded when providing any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless a waiver is granted.

(d) Representation. If in its annual representations and certifications in SAM the Offeror has represented in paragraph (c) of the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services--Representation, that it "does" provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument, then the Offeror shall complete the following additional representation:

The Offeror represents that it [ ] will [ ] will not provide covered defense telecommunications equipment or services as a part of its offered products or services to DoD in the performance of any award resulting from this solicitation.

(e) Disclosures. If the Offeror has represented in paragraph (d) of this provision that it "will provide covered defense telecommunications equipment or services," the Offeror shall provide the following information as part of the offer:

(1) A description of all covered defense telecommunications equipment and services offered (include brand or manufacturer; product, such as model number, original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable).

(2) An explanation of the proposed use of covered defense telecommunications equipment and services and any factors relevant to determining if such use would be permissible under the prohibition referenced in paragraph (b) of this provision.

(3) For services, the entity providing the covered defense telecommunications services (include entity name, unique entity identifier, and Commercial and Government Entity (CAGE) code, if known).

(4) For equipment, the entity that produced or provided the covered defense telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known).

(End of provision)

252.209-7004 SUBCONTRACTING WITH FIRMS THAT ARE OWNED OR CONTROLLED BY THE GOVERNMENT OF A COUNTRY THAT IS A STATE SPONSOR OF TERRORISM (MAY 2019)

(a) Unless the Government determines that there is a compelling reason to do so, the Contractor shall not enter into any subcontract in excess of the threshold specified in Federal Acquisition Regulation 9.405-2(b) on the date of subcontract award with a firm, or a subsidiary of a firm, that is identified in the Exclusions section of the System for Award Management System (SAM Exclusions) as being ineligible for the award of Defense contracts or subcontracts because it is owned or controlled by the government of a country that is a state sponsor of terrorism.

(b) A corporate officer or a designee of the Contractor shall notify the Contracting Officer, in writing, before entering into a subcontract with a party that is identified, in SAM Exclusions, as being ineligible for the award of Defense contracts or subcontracts because it is owned or controlled by the government of a country that is a state

sponsor of terrorism. The notice must include the name of the proposed subcontractor and the compelling reason(s) for doing business with the subcontractor notwithstanding its inclusion in SAM Exclusions.

(End of clause)

252.209-7997 REPRESENTATION BY CORPORATIONS REGARDING AN UNPAID DELINQUENT TAX LIABILITY OR A FELONY CONVICTION UNDER ANY FEDERAL LAW—DOD APPROPRIATIONS (DEVIATION 2013-O0006) (JAN 2013)

(a) In accordance with section 101 (a) (3) of the Continuing Appropriations Resolution, 2013, (Pub. L. 112-175) none of the funds made available by that Act for general appropriations for DoD may be used to enter into a contract with any corporation that—
(1) Has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability, unless the agency is aware of the unpaid tax liability, unless the agency has considered suspension or debarment of the corporation and made a determination that this further action is not necessary to protect the interests of the Government.
(2) Was convicted of a felony criminal violation under any Federal law within the preceding 24 months, where the awarding agency is aware of the conviction, unless the agency has considered suspension or debarment of the corporation and made a determination that this action is not necessary to protect the interests of the Government.
(b) The Offeror represents that—
(1) It is [ ] is not [ ] a corporation that has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability,
(2) It is [ ] is not [ ] a corporation that was convicted of a felony criminal violation under a Federal law within the preceding 24 months.

(End of provision)

252.209-7998 REPRESENTATION REGARDING CONVICTION OF A FELONY CRIMINAL VIOLATION UNDER ANY FEDERAL OR STATE LAW (DEVIATION 2012-O0007) (MAR 2012)

(a) In accordance with section 514 of Division H of the Consolidated Appropriations Act, 2012, none of the funds made available by that Act may be used to enter into a contract with any corporation that was convicted of a felony criminal violation under any Federal or State law within the preceding 24 months, where the awarding agency is aware of the conviction, unless the agency has considered suspension or debarment of the corporation and made a determination that this further action is not necessary to protect the interests of the Government.
(b) The Offeror represents that it is [ ] is not [ ] a corporation that was convicted of a felony criminal violation under a Federal or State law within the preceding 24 months.

(End of provision)

252.209-7999 REPRESENTATION BY CORPORATIONS REGARDING AN UNPAID DELINQUENT TAX LIABILITY OR A FELONY CONVICTION UNDER ANY FEDERAL LAW (DEVIATION 2012-O0004) (JAN 2012)

(a) In accordance with sections 8124 and 8125 of Division A of the Consolidated Appropriations Act, 2012,(Pub. L. 112-74) none of the funds made available by that Act may be used to enter into a contract with any corporation that—
(1) Has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability, where the awarding agency is aware of the unpaid tax liability, unless the agency has considered suspension or debarment of the corporation and made a determination that this further action is not necessary to protect the interests of the Government.
(2) Was convicted of a felony criminal violation under any Federal law within the preceding 24 months, where the awarding agency is aware of the conviction, unless the agency has considered suspension or debarment of the corporation and made a determination that this action is not necessary to protect the interests of the Government.
(b) The Offeror represents that—

(1) It is [ ____ ] is not [ ____ ] a corporation that has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability,

(2) It is [ ____ ] is not [ ____ ] a corporation that was convicted of a felony criminal violation under a Federal law within the preceding 24 months.

(End of provision)

252.225-7005 IDENTIFICATION OF EXPENDITURES IN THE UNITED STATES (JUN 2005)

(a) Definition. United States, as used in this clause, means the 50 States, the District of Columbia, and outlying areas.

(b) This clause applies only if the Contractor is--

(1) A concern incorporated in the United States (including a subsidiary that is incorporated in the United States, even if the parent corporation is not incorporated in the United States); or

(2) An unincorporated concern having its principal place of business in the United States.

(c) On each invoice, voucher, or other request for payment under this contract, the Contractor shall identify that part of the requested payment that represents estimated expenditures in the United States. The identification--

(1) May be expressed either as dollar amounts or as percentages of the total amount of the request for payment;

(2) Should be based on reasonable estimates; and

(3) Shall state the full amount of the payment requested, subdivided into the following categories:

(i) U.S. products--expenditures for material and equipment manufactured or produced in the United States, including end products, components, or construction material, but excluding transportation;

(ii) U.S. services--expenditures for services performed in the United States, including all charges for overhead, other indirect costs, and profit under construction or service contracts;

(iii) Transportation on U.S. carriers--expenditures for transportation furnished by U.S. flag, ocean, surface, and air carriers; and

(iv) Expenditures not identified under paragraphs (c)(3)(i) through (iii) of this clause.

(d) Nothing in this clause requires the establishment or maintenance of detailed accounting records or gives the U.S. Government any right to audit the Contractor's books or records.

(End of clause)

252.225-7012 PREFERENCE FOR CERTAIN DOMESTIC COMMODITIES (DEC 2017)

(a) Definitions. As used in this clause--

Component means any item supplied to the Government as part of an end product or of another component.

End product means supplies delivered under a line item of this contract.

Qualifying country means a country with a reciprocal defense procurement memorandum of understanding or international agreement with the United States in which both countries agree to remove barriers to purchases of supplies produced in the other country or services performed by sources of the other country, and the memorandum or agreement complies, where applicable, with the requirements of section 36 of the Arms Export Control Act (22 U.S.C. 2776) and with 10 U.S.C. 2457. Accordingly, the following are qualifying countries:

Australia
Austria
Belgium
Canada
Czech Republic
Denmark
Egypt
Estonia
Finland
France
Germany
Greece
Israel
Italy
Japan
Latvia
Luxembourg
Netherlands
Norway
Poland
Portugal
Slovenia
Spain
Sweden
Switzerland
Turkey
United Kingdom of Great Britain and Northern Ireland.

Structural component of a tent--

(i) Means a component that contributes to the form and stability of the tent (e.g., poles, frames, flooring, guy ropes, pegs);

(ii) Does not include equipment such as heating, cooling, or lighting.

United States means the 50 States, the District of Columbia, and outlying areas.

U.S.-flag vessel means a vessel of the United States or belonging to the United States, including any vessel registered or having national status under the laws of the United States.

(b) The Contractor shall deliver under this contract only such of the following items, either as end products or components, that have been grown, reprocessed, reused, or produced in the United States:

(1) Food.

(2) Clothing and the materials and components thereof, other than sensors, electronics, or other items added to, and not normally associated with, clothing and the materials and components thereof. Clothing includes items such as outerwear, headwear, underwear, nightwear, footwear, hosiery, handwear, belts, badges, and insignia.

(3) (i) Tents and structural components of tents;

(ii) Tarpaulins; or

(iii) Covers.

(4) Cotton and other natural fiber products.

(5) Woven silk or woven silk blends.

(6) Spun silk yarn for cartridge cloth.

(7) Synthetic fabric, and coated synthetic fabric, including all textile fibers and yarns that are for use in such fabrics.

(8) Canvas products.

(9) Wool (whether in the form of fiber or yarn or contained in fabrics, materials, or manufactured articles).

(10) Any item of individual equipment (Federal Supply Class 8465) manufactured from or containing fibers, yarns, fabrics, or materials listed in this paragraph (b).

(c) This clause does not apply--

(1) To items listed in section 25.104(a) of the Federal Acquisition Regulation (FAR), or other items for which the Government has determined that a satisfactory quality and sufficient quantity cannot be acquired as and when needed at U.S. market prices;

(2) To incidental amounts of cotton, other natural fibers, or wool incorporated in an end product, for which the estimated value of the cotton, other natural fibers, or wool--

(i) Is not more than 10 percent of the total price of the end product; and (ii) Does not exceed the simplified acquisition threshold in FAR part 2;

(3) To waste and byproducts of cotton or wool fiber for use in the production of propellants and explosives;

(4) To foods, other than fish, shellfish, or seafood, that have been manufactured or processed in the United States, regardless of where the foods (and any component if applicable) were grown or produced. Fish, shellfish, or seafood manufactured or processed in the United States and fish, shellfish, or seafood contained in foods manufactured or processed in the United States shall be provided in accordance with paragraph (d) of this clause;

(5) To chemical warfare protective clothing produced in a qualifying country; or

(6) To fibers and yarns that are for use in synthetic fabric or coated synthetic fabric (but does apply to the synthetic or coated synthetic fabric itself), if--

(i) The fabric is to be used as a component of an end product that is not a textile product. Examples of textile products, made in whole or in part of fabric, include--

(A) Draperies, floor coverings, furnishings, and bedding (Federal Supply Group 72, Household and Commercial Furnishings and Appliances);

(B) Items made in whole or in part of fabric in Federal Supply Group 83, Textile/leather/furs/apparel/findings/ tents/flags, or Federal Supply Group 84, Clothing, Individual Equipment and Insignia;

(C) Upholstered seats (whether for household, office, or other use); and

(D) Parachutes (Federal Supply Class 1670); or

(ii) The fibers and yarns are para-aramid fibers and continuous filament para-aramid yarns manufactured in a qualifying country.

(d)(1) Fish, shellfish, and seafood delivered under this contract, or contained in foods delivered under this contract--

(i) Shall be taken from the sea by U.S.-flag vessels; or

(ii) If not taken from the sea, shall be obtained from fishing within the United States; and

(2) Any processing or manufacturing of the fish, shellfish, or seafood shall be performed on a U.S.-flag vessel or in the United States.

(End of clause)

252.225-7018 PHOTOVOLTAIC DEVICES—CERTIFICATE (DEVIATION 2020-O0019) (JULY 2020)
(a) Definitions. "Bahrainian photovoltaic device," "Caribbean Basin photovoltaic device," "designated country," "designated country photovoltaic device," "domestic photovoltaic device," "foreign photovoltaic device," "Free Trade Agreement country," "Free Trade Agreement photovoltaic device," "Korean photovoltaic device," "least developed country photovoltaic device," "Moroccan photovoltaic device," "Panamanian photovoltaic device," "Peruvian photovoltaic device," "photovoltaic device," "qualifying country," "qualifying country photovoltaic device," "United States," "U.S.-made photovoltaic device," and "WTO GPA country photovoltaic device" have the meanings given in the Photovoltaic Devices clause of this solicitation.
(b) Restrictions. The following restrictions apply, depending on the estimated aggregate value of photovoltaic devices to be utilized under a resultant contract:
(1) If more than the micro-purchase threshold but less than $182,000, then the Government will not accept an offer specifying the use of other foreign photovoltaic devices in paragraph (d)(2)(ii), (d)(3)(ii), or (d)(4)(ii) of this provision, unless the offeror documents to the satisfaction of the Contracting Officer that the price of the foreign photovoltaic device plus 50 percent is less than the price of a comparable domestic photovoltaic device.
(2) If $182,000 or more, then the Government will consider only offers that utilize photovoltaic devices that are U.S.-made, qualifying country, or designated country photovoltaic devices.

(c) Country in which a designated country photovoltaic device was wholly manufactured or was substantially transformed. If the estimated value of the photovoltaic devices to be utilized under a resultant contract exceeds $25,000, the Offeror's certification that such photovoltaic device (e.g., solar panel) is a designated country photovoltaic device shall be consistent with country of origin determinations by the U.S. Customs and Border Protection with regard to importation of the same or similar photovoltaic devices into the United States. If the Offeror is uncertain as to what the country of origin would be determined to be by the U.S. Customs and Border Protection, the Offeror shall request a determination from U.S. Customs and Border Protection. (See http://www.cbp.gov/trade/rulings.)

(d) Certification and identification of country of origin.

[The offeror shall check the block and fill in the blank for one of the following paragraphs, based on the estimated value and the country of origin of photovoltaic devices to be utilized in performance of the contract:]

___ (1) No photovoltaic devices will be utilized in performance of the contract, or such photovoltaic devices have an estimated value that does not exceed the micro-purchase threshold.

(2) If more than the micro-purchase threshold but less than $83,099—

___ (i) The offeror certifies that each photovoltaic device to be utilized in performance of the contract is a domestic photovoltaic device;

___ (ii) The offeror certifies that each photovoltaic device to be utilized in performance of the contract is a qualifying country photovoltaic device [Offeror to specify country of origin_____]; or

___ (iii) The foreign (other than qualifying country) photovoltaic devices to be utilized in performance of the contract are the product of _____. [Offeror to specify country of origin, if known, and provide documentation that the cost of a domestic photovoltaic device would be unreasonable in comparison to the cost of the proposed foreign photovoltaic device, i.e. that the price of the foreign photovoltaic device plus 50 percent is less than the price of a comparable domestic photovoltaic device.]

(3) If $83,099 or more but less than $100,000—

___ (i) The offeror certifies that each photovoltaic device to be utilized in performance of the contract is a domestic photovoltaic device;

___ (ii) The offeror certifies that each photovoltaic device to be utilized in performance of the contract is a Free Trade Agreement country photovoltaic device (other than a Bahrainian, Korean, Moroccan, Panamanian, or Peruvian photovoltaic device) or a qualifying country photovoltaic device [Offeror to specify country of origin_____]; or

___ (iii) The offered foreign photovoltaic devices (other than those from countries listed in paragraph (d)(4)(ii) of this provision) are the product of _____. [Offeror to specify country of origin, if known, and provide documentation that the cost of a domestic photovoltaic device would be unreasonable in comparison to the cost of the proposed foreign photovoltaic device, i.e. that the price of the foreign photovoltaic device plus 50 percent is less than the price of a comparable domestic photovoltaic device.]

(4) If $100,000 or more but less than $182,000—

___ (i) The offeror certifies that each photovoltaic device to be utilized in performance of the contract is a domestic photovoltaic device;

___ (ii) The offeror certifies that each photovoltaic device to be utilized in performance of the contract is a Free Trade Agreement country photovoltaic device (other than a Bahrainian, Moroccan, Panamanian, or Peruvian photovoltaic device) or a qualifying country photovoltaic device [Offeror to specify country of origin_____]; or

___ (iii) The offered foreign photovoltaic devices (other than those from countries listed in paragraph (d)(5)(ii) of this provision) are the product of _____. [Offeror to specify country of origin, if known, and provide documentation that the cost of a domestic photovoltaic device would be unreasonable in comparison to the cost of the proposed foreign photovoltaic device, i.e. that the price of the foreign photovoltaic device plus 50 percent is less than the price of a comparable domestic photovoltaic device.]

(5) If $182,000 or more, the Offeror certifies that each photovoltaic device to be used in performance of the contract is—

___ (i) A U.S.-made photovoltaic device; or

___ (ii) A designated country photovoltaic device or a qualifying country photovoltaic device. [Offeror to specify country of origin_____.]

(End of provision)

252.225-7031 SECONDARY ARAB BOYCOTT OF ISRAEL (JUN 2005)

(a) Definitions. As used in this provision--

(1) Foreign person means any person (including any individual, partnership, corporation, or other form of association) other than a United States person.

(2) United States means the 50 States, the District of Columbia, outlying areas, and the outer Continental Shelf as defined in 43 U.S.C. 1331.

(3) United States person is defined in 50 U.S.C. App. 2415(2) and means--

(i) Any United States resident or national (other than an individual resident outside the United States who is employed by other than a United States person);

(ii) Any domestic concern (including any permanent domestic establishment of any foreign concern); and

(iii) Any foreign subsidiary or affiliate (including any permanent foreign establishment) of any domestic concern that is controlled in fact by such domestic concern.

(b) Certification. If the offeror is a foreign person, the offeror certifies, by submission of an offer, that it--

(1) Does not comply with the Secondary Arab Boycott of Israel; and

(2) Is not taking or knowingly agreeing to take any action, with respect to the Secondary Boycott of Israel by Arab countries, which 50 U.S.C. App. 2407(a) prohibits a United States person from taking.

(End of provision)

Section L - Instructions, Conditions and Notices to Bidders

CLAUSES INCORPORATED BY FULL TEXT

52.204-7 SYSTEM FOR AWARD MANAGEMENT (OCT 2018)

(a) Definitions. As used in this provision--

Electronic Funds Transfer (EFT) indicator means a four-character suffix to the unique entity identifier. The suffix is assigned at the discretion of the commercial, nonprofit, or Government entity to establish additional System for Award Management records for identifying alternative EFT accounts (see subpart 32.11) for the same entity.

Registered in the System for Award Management (SAM) means that--

(1) The Offeror has entered all mandatory information, including the unique entity identifier and the EFT indicator, if applicable, the Commercial and Government Entity (CAGE) code, as well as data required by the Federal Funding Accountability and Transparency Act of 2006 (see subpart 4.14) into SAM;

(2) The offeror has completed the Core, Assertions, and Representations and Certifications, and Points of Contact sections of the registration in SAM;

(3) The Government has validated all mandatory data fields, to include validation of the Taxpayer Identification Number (TIN) with the Internal Revenue Service (IRS). The offeror will be required to provide consent for TIN validation to the Government as a part of the SAM registration process; and

(4) The Government has marked the record ``Active".

Unique entity identifier means a number or other identifier used to identify a specific commercial, nonprofit, or Government entity. See www.sam.gov for the designated entity for establishing unique entity identifiers.

(b)(1) An Offeror is required to be registered in SAM when submitting an offer or quotation, and shall continue to be registered until time of award, during performance, and through final payment of any contract, basic agreement, basic ordering agreement, or blanket purchasing agreement resulting from this solicitation.

(2) The Offeror shall enter, in the block with its name and address on the cover page of its offer, the annotation ``Unique Entity Identifier" followed by the unique entity identifier that identifies the Offeror's name and address exactly as stated in the offer. The Offeror also shall enter its EFT indicator, if applicable. The unique entity identifier will be used by the Contracting Officer to verify that the Offeror is registered in SAM.

(c) If the Offeror does not have a unique entity identifier, it should contact the entity designated at www.sam.gov for establishment of the unique entity identifier directly to obtain one. The Offeror should be prepared to provide the following information:

(1) Company legal business name.

(2) Tradestyle, doing business, or other name by which your entity is commonly recognized.

(3) Company physical street address, city, state, and Zip Code.

(4) Company mailing address, city, state and Zip Code (if separate from physical).

(5) Company telephone number.

(6) Date the company was started.

(7) Number of employees at your location.

(8) Chief executive officer/key manager.

(9) Line of business (industry).

(10) Company headquarters name and address (reporting relationship within your entity).

(d) Processing time should be taken into consideration when registering. Offerors who are not registered in SAM should consider applying for registration immediately upon receipt of this solicitation. See https://www.sam.gov for information on registration.

(End of Provision)

52.204-16 COMMERCIAL AND GOVERNMENT ENTITY CODE REPORTING (AUG 2020)

(a) Definition. As used in this provision--

Commercial and Government Entity (CAGE) code means—

(1) An identifier assigned to entities located in the United States or its outlying areas by the Defense Logistics Agency (DLA) Commercial and Government Entity (CAGE) Branch to identify a commercial or government entity by unique location; or

(2) An identifier assigned by a member of the North Atlantic Treaty Organization (NATO) or by the NATO Support and Procurement Agency (NSPA) to entities located outside the United States and its outlying areas that the DLA Commercial and Government Entity (CAGE) Branch records and maintains in the CAGE master file. This type of code is known as a NATO CAGE (NCAGE) code.

(b) The Offeror shall provide its CAGE code with its offer with its name and location address or otherwise include it prominently in its proposal. The CAGE code must be for that name and location address. Insert the word "CAGE" before the number. The CAGE code is required prior to award.

(c) CAGE codes may be obtained via--

(1) Registration in the System for Award Management (SAM) at www.sam.gov. If the Offeror is located in the United States or its outlying areas and does not already have a CAGE code assigned, the DLA Commercial and Government Entity (CAGE) Branch will assign a CAGE code as a part of the SAM registration process. SAM registrants located outside the United States and its outlying areas shall obtain a NCAGE code prior to registration in SAM (see paragraph (c)(3) of this provision).

(2) The DLA Commercial and Government Entity (CAGE) Branch. If registration in SAM is not required for the subject procurement, and the Offeror does not otherwise register in SAM, an Offeror located in the United States or its outlying areas may request that a CAGE code be assigned by submitting a request at https://cage.dla.mil.

(3) The appropriate country codification bureau. Entities located outside the United States and its outlying areas may obtain an NCAGE code by contacting the Codification Bureau in the foreign entity's country if that country is a member of NATO or a sponsored nation. NCAGE codes may be obtained from the NSPA at https://eportal.nspa.nato.int/AC135Public/scage/CageList.aspx if the foreign entity's country is not a member of

NATO or a sponsored nation. Points of contact for codification bureaus, as well as additional information on obtaining NCAGE codes, are available at http://www.nato.int/structur/AC/135/main/links/contacts.htm.

(d) Additional guidance for establishing and maintaining CAGE codes is available at https://cage.dla.mil.

(e) When a CAGE code is required for the immediate owner and/or the highest-level owner by Federal Acquisition Regulation (FAR) 52.204-17 or 52.212-3(p), the Offeror shall obtain the respective CAGE code from that entity to supply the CAGE code to the Government.

(f) Do not delay submission of the offer pending receipt of a CAGE code.

(g) If the solicitation includes FAR clause 52.204-2, Security Requirements, a subcontractor requiring access to classified information under a contract shall be identified with a CAGE code on the DD Form 254. The Contractor shall require a subcontractor requiring access to classified information to provide its CAGE code with its name and location address or otherwise include it prominently in the proposal. Each location of subcontractor performance listed on the DD Form 254 is required to reflect a corresponding unique CAGE code for each listed location unless the work is being performed at a Government facility, in which case the agency location code shall be used. The CAGE code must be for that name and location address. Insert the word "CAGE" before the number. The CAGE code is required prior to award.

(End of Provision)

52.211-4 AVAILABILITY FOR EXAMINATION OF SPECIFICATIONS NOT LISTED IN THE GSA INDEX OF FEDERAL SPECIFICATIONS, STANDARDS AND COMMERCIAL ITEM DESCRIPTIONS (JUN 1988)

(End of provision)

52.214-3 AMENDMENTS TO INVITATIONS FOR BIDS (DEC 2016)

(a) If this solicitation is amended, then all terms and conditions which are not modified remain unchanged.

(b) (1) Bidders shall acknowledge receipt of any amendment to this solicitation--

(i) By signing and returning the amendment;

(ii) By identifying the amendment number and date in space provided for this purpose on the form for submitting a bid;

(iii) By letter;

(iv) By facsimile, if facsimile bids are authorized in the solicitation; or

(v) By email, if email bids are authorized in the solicitation.

(2) The Government must receive the acknowledgement by the time and at the place specified for receipt of bids.

(End of provision)

52.214-4 FALSE STATEMENTS IN BIDS (APR 1984)

Bidders must provide full, accurate, and complete information as required by this solicitation and its attachments. The penalty for making false statements in bids is prescribed in 18 U.S.C. 1001.

(End of provision)

52.214-5 SUBMISSION OF BIDS (DEC 2016)

(a) Bids and bid modifications shall be submitted in sealed envelopes or packages (unless submitted by electronic means) (1) addressed to the office specified in the solicitation, and (2) showing the time and date specified for receipt, the solicitation number, and the name and address of the bidder.

(b) Bidders using commercial carrier services shall ensure that the bid is addressed and marked on the outermost envelope or wrapper as prescribed in subparagraphs (a)(1) and (2) of this provision when delivered to the office specified in the solicitation.

(c) Facsimile bids, modifications, or withdrawals, will not be considered unless authorized by the solicitation.

(d) Bids submitted by electronic commerce shall be considered only if the electronic commerce method was specifically stipulated or permitted by the solicitation.

(End of provision)

52.214-6 EXPLANATION TO PROSPECTIVE BIDDERS (APR 1984)

Any prospective bidder desiring an explanation or interpretation of the solicitation, drawings, specifications, etc., must request it in writing soon enough to allow a reply to reach all prospective bidders before the submission of their bids. Oral explanations or instructions given before the award of a contract will not be binding. Any information given a prospective bidder concerning a solicitation will be furnished promptly to all other prospective bidders as an amendment to the solicitation, if that information is necessary in submitting bids or if the lack of it would be prejudicial to other prospective bidders.

(End of provision)

52.214-7 LATE SUBMISSIONS, MODIFICATIONS, AND WITHDRAWALS OF BIDS (NOV 1999)

(a) Bidders are responsible for submitting bids, and any modifications or withdrawals, so as to reach the Government office designated in the invitation for bids (IFB) by the time specified in the IFB. If no time is specified in the IFB, the time for receipt is 4:30 p.m., local time, for the designated Government office on the date that bids are due.

(b)(1) Any bid, modification, or withdrawal received at the Government office designated in the IFB after the exact time specified for receipt of bids is “late” and will not be considered unless it is received before award is made, the Contracting Officer determines that accepting the late bid would not unduly delay the acquisition; and--

(i) If it was transmitted through an electronic commerce method authorized by the IFB, it was received at the initial point of entry to the Government infrastructure not later than 5:00 p.m. one working day prior to the date specified for receipt of bids; or

(ii) There is acceptable evidence to establish that it was received at the Government installation designated for receipt of bids and was under the Government's control prior to the time set for receipt of bids.

(2) However, a late modification of an otherwise successful bid that makes its terms more favorable to the Government, will be considered at any time it is received and may be accepted.

(c) Acceptable evidence to establish the time of receipt at the Government installation includes the time/date stamp of that installation on the bid wrapper, other documentary evidence of receipt maintained by the installation, or oral testimony or statements of Government personnel.

(d) If an emergency or unanticipated event interrupts normal Government processes so that bids cannot be received at the Government office designated for receipt of bids by the exact time specified in the IFB and urgent Government requirements preclude amendment of the IFB, the time specified for receipt of bids will be deemed to be extended to the same time of day specified in the solicitation on the first work day on which normal Government processes resume.

(e) Bids may be withdrawn by written notice received at any time before the exact time set for receipt of bids. If the IFB authorizes facsimile bids, bids may be withdrawn via facsimile received at any time before the exact time set for receipt of bids, subject to the conditions specified in the provision at 52.214-31, Facsimile Bids. A bid may be withdrawn in person by a bidder or its authorized representative if, before the exact time set for receipt of bids, the identity of the person requesting withdrawal is established and the person signs a receipt for the bid.

(End of provision)

52.214-10 CONTRACT AWARD--SEALED BIDDING (JUL 1990)

(a) The Government will evaluate bids in response to this solicitation without discussions and will award a contract to the responsible bidder whose bid, conforming to the solicitation, will be most advantageous to the Government considering only price and the price-related factors specified elsewhere in the solicitation.

(b) The Government may (1) reject any or all bids, (2) accept other than the lowest bid, and (3) waive informalities or minor irregularities in bids received.

(c) The Government may accept any item or group of items of a bid, unless the bidder qualifies the bid by specific limitations. Unless otherwise provided in the Schedule, bids may be submitted for quantities less than those specified. The Government reserves the right to make an award on any item for a quantity less than the quantity offered, at the unit prices offered, unless the bidder specifies otherwise in the bid.

(d) A written award or acceptance of a bid mailed or otherwise furnished to the successful bidder within the time for acceptance specified in the bid shall result in a binding contract without further action by either party.

(e) The Government may reject a bid as nonresponsive if the prices bid are materially unbalanced between line items or subline items. A bid is materially unbalanced when it is based on prices significantly less than cost for some work and prices which are significantly overstated in relation to cost for other work, and if there is a reasonable doubt that the bid will result in the lowest overall cost to the Government even though it may be the low evaluated bid, or if it is so unbalanced as to be tantamount to allowing an advance payment.

(End of provision)

52.214-12 PREPARATION OF BIDS (APR 1984)

(a) Bidders are expected to examine the drawings, specifications, Schedule, and all instructions. Failure to do so will be at the bidder's risk.

(b) Each bidder shall furnish the information required by the solicitation. The bidder shall sign the bid and print or type its name on the Schedule and each continuation sheet on which it makes an entry. Erasures or other changes must be initialed by the person signing the bid. Bids signed by an agent shall be accompanied by evidence of that agent's authority, unless that evidence has been previously furnished to the issuing office.

(c) For each item offered, bidders shall (1) show the unit price, including, unless otherwise specified, packaging, packing, and preservation and (2) enter the extended price for the quantity of each item offered in the "Amount" column of the Schedule. In case of discrepancy between a unit price and an extended price, the unit price will be presumed to be correct, subject, however, to correction to the same extent and in the same manner as any other mistake.

(d) Bids for supplies or services other than those specified will not be considered unless authorized by the solicitation.

(e) Bidders must state a definite time for delivery of supplies or for performance of services, unless otherwise specified in the solicitation.

(f) Time, if stated as a number of days, will include Saturdays, Sundays, and holidays.

(End of provision)

52.214-15 PERIOD FOR ACCEPTANCE OF BIDS (APR 1984)

In compliance with the solicitation, the bidder agrees, if this bid is accepted within 60 calendar days (60 calendar days unless a different period is inserted by the bidder) from the date specified in the solicitation for receipt of bids, to furnish any or all items upon which prices are bid at the price set opposite each item, delivered at the designated point(s), within the time specified in the Schedule.

(End of clause)

52.216-1 TYPE OF CONTRACT (APR 1984)

The Government contemplates award of a FIRM FIXED PRICE SERVICE contract resulting from this solicitation.

(End of provision)

52.225-10 NOTICE OF BUY AMERICAN REQUIREMENT--CONSTRUCTION MATERIALS (MAY 2014)

(a) Definitions. “Commercially available off-the-shelf (COTS) item,” “construction material,” “domestic construction material,” and “foreign construction material,” as used in this provision, are defined in the clause of this solicitation entitled “Buy American --Construction Materials” (Federal Acquisition Regulation (FAR) clause 52.225-9).

(b) Requests for determinations of inapplicability. An offeror requesting a determination regarding the inapplicability of the Buy American statute should submit the request to the Contracting Officer in time to allow a determination before submission of offers. The offeror shall include the information and applicable supporting data required by paragraphs (c) and (d) of the clause at FAR 52.225-9 in the request. If an offeror has not requested a

determination regarding the inapplicability of the Buy American statute before submitting its offer, or has not received a response to a previous request, the offeror shall include the information and supporting data in the offer.

(c) Evaluation of offers. (1) The Government will evaluate an offer requesting exception to the requirements of the Buy American statute, based on claimed unreasonable cost of domestic construction material, by adding to the offered price the appropriate percentage of the cost of such foreign construction material, as specified in paragraph (b)(3)(i) of the clause at FAR 52.225-9.

(2) If evaluation results in a tie between an offeror that requested the substitution of foreign construction material based on unreasonable cost and an offeror that did not request an exception, the Contracting Officer will award to the offeror that did not request an exception based on unreasonable cost.

(d) Alternate offers.

(1) When an offer includes foreign construction material not listed by the Government in this solicitation in paragraph (b)(2) of the clause at FAR 52.225-9, the offeror also may submit an alternate offer based on use of equivalent domestic construction material.

(2) If an alternate offer is submitted, the offeror shall submit a separate Standard Form 1442 for the alternate offer, and a separate price comparison table prepared in accordance with paragraphs (c) and (d) of the clause at FAR 52.225-9 for the offer that is based on the use of any foreign construction material for which the Government has not yet determined an exception applies.

(3) If the Government determines that a particular exception requested in accordance with paragraph (c) of the clause at FAR 52.225-9 does not apply, the Government will evaluate only those offers based on use of the equivalent domestic construction material, and the offeror shall be required to furnish such domestic construction material. An offer based on use of the foreign construction material for which an exception was requested--

(i) Will be rejected as nonresponsive if this acquisition is conducted by sealed bidding; or

(ii) May be accepted if revised during negotiations.

(End of provision)

52.232-13 NOTICE OF PROGRESS PAYMENTS (APR 1984)

The need for customary progress payments conforming to the regulations in Subpart 32.5 of the Federal Acquisition Regulation (FAR) will not be considered as a handicap or adverse factor in the award of the contract. The Progress Payments clause included in this solicitation will be included in any resulting contract, modified or altered if necessary in accordance with subsection 52.232-16 and its Alternate I of the FAR. Even though the clause is included in the contract, the clause shall be inoperative during any time the contractor's accounting system and controls are determined by the Government to be inadequate for segregation and accumulation of contract costs.

(End of clause)

52.232-38 SUBMISSION OF ELECTRONIC FUNDS TRANSFER INFORMATION WITH OFFER (JULY 2013)

The offeror shall provide, with its offer, the following information that is required to make payment by electronic funds transfer (EFT) under any contract that results from this solicitation. This submission satisfies the requirement

to provide EFT information under paragraphs (b)(1) and (j) of the clause at 52.232-34, Payment by Electronic Funds Transfer--Other than System for Award Management.

(1) The solicitation number (or other procurement identification number).

(2) The offeror's name and remittance address, as stated in the offer.

(3) The signature (manual or electronic, as appropriate), title, and telephone number of the offeror's official authorized to provide this information.

(4) The name, address, and 9-digit Routing Transit Number of the offeror's financial agent.

(5) The offeror's account number and the type of account (checking, savings, or lockbox).

(6) If applicable, the Fedwire Transfer System telegraphic abbreviation of the offeror's financial agent.

(7) If applicable, the offeror shall also provide the name, address, telegraphic abbreviation, and 9-digit Routing Transit Number of the correspondent financial institution receiving the wire transfer payment if the offeror's financial agent is not directly on-line to the Fedwire and, therefore, not the receiver of the wire transfer payment.

(End of provision)

52.233-2 SERVICE OF PROTEST (SEP 2006)

(a) Protests, as defined in section 33.101 of the Federal Acquisition Regulation, that are filed directly with an agency, and copies of any protests that are filed with the Government Accountability Office (GAO), shall be served on the Contracting Officer (addressed as follows) by obtaining written and dated acknowledgment of receipt from USACE, LOS ANGELES DISTRICT, CONTRACTING DIVISION, 915 WILSHIRE BLVD, LOS ANGELES, CA 90017 OR email to Patricia.B.Bonilla@usace.army.mil

(b) The copy of any protest shall be received in the office designated above within one day of filing a protest with the GAO.

(End of provision)

52.237-1 SITE VISIT (APR 1984)

Offerors or quoters are urged and expected to inspect the site where services are to be performed and to satisfy themselves regarding all general and local conditions that may affect the cost of contract performance, to the extent that the information is reasonably obtainable. In no event shall failure to inspect the site constitute grounds for a claim after contract award.

(End of provision)

52.252-1 SOLICITATION PROVISIONS INCORPORATED BY REFERENCE (FEB 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its

quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

www.acquisition.gov

(End of provision)

52.252-5 AUTHORIZED DEVIATIONS IN PROVISIONS (APR 1984)

(a) The use in this solicitation of any Federal Acquisition Regulation (48 CFR Chapter 1) provision with an authorized deviation is indicated by the addition of"(DEVIATION)" after the date of the provision.

(b) The use in this solicitation of any Defense Federal Acquisition Regulation Supplement DFARS (48 CFR Chapter 1) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of provision)

252.204-7018 PROHIBITION ON THE ACQUISITION OF COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES (DEC 2019)

(a) Definitions. As used in this clause--

Covered defense telecommunications equipment or services means--

(1) Telecommunications equipment produced by Huawei Technologies Company or ZTE Corporation, or any subsidiary or affiliate of such entities;

(2) Telecommunications services provided by such entities or using such equipment; or

(3) Telecommunications equipment or services produced or provided by an entity that the Secretary of Defense reasonably believes to be an entity owned or controlled by, or otherwise connected to, the government of a covered foreign country.

Covered foreign country means--

(1) The People's Republic of China; or

(2) The Russian Federation.

Covered missions means--

(1) The nuclear deterrence mission of DoD, including with respect to nuclear command, control, and communications, integrated tactical warning and attack assessment, and continuity of Government; or

(2) The homeland defense mission of DoD, including with respect to ballistic missile defense.

Critical technology means--

(1) Defense articles or defense services included on the United States Munitions List set forth in the International Traffic in Arms Regulations under subchapter M of chapter I of title 22, Code of Federal Regulations;

(2) Items included on the Commerce Control List set forth in Supplement No. 1 to part 774 of the Export Administration Regulations under subchapter C of chapter VII of title 15, Code of Federal Regulations, and controlled--

(i) Pursuant to multilateral regimes, including for reasons relating to national security, chemical and biological weapons proliferation, nuclear nonproliferation, or missile technology; or

(ii) For reasons relating to regional stability or surreptitious listening;

(3) Specially designed and prepared nuclear equipment, parts and components, materials, software, and technology covered by part 810 of title 10, Code of Federal Regulations (relating to assistance to foreign atomic energy activities);

(4) Nuclear facilities, equipment, and material covered by part 110 of title 10, Code of Federal Regulations (relating to export and import of nuclear equipment and material);

(5) Select agents and toxins covered by part 331 of title 7, Code of Federal Regulations, part 121 of title 9 of such Code, or part 73 of title 42 of such Code; or

(6) Emerging and foundational technologies controlled pursuant to section 1758 of the Export Control Reform Act of 2018 (50 U.S.C. 4817).

Substantial or essential component means any component necessary for the proper function or performance of a piece of equipment, system, or service.

(b) Prohibition. In accordance with section 1656 of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91), the contractor shall not provide to the Government any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless the covered defense telecommunication equipment or services are covered by a waiver described in Defense Federal Acquisition Regulation Supplement 204.2104.

(c) Procedures. The Contractor shall review the list of excluded parties in the System for Award Management (SAM) at https://www.sam.gov for entities that are excluded when providing any equipment, system, or service, to carry out covered missions, that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless a waiver is granted.

(d) Reporting.

(1) In the event the Contractor identifies covered defense telecommunications equipment or services used as a substantial or essential component of any system, or as critical technology as part of any system, during contract performance, the Contractor shall report at https://dibnet.dod.mil the information in paragraph (d)(2) of this clause.

(2) The Contractor shall report the following information pursuant to paragraph (d)(1) of this clause:

(i) Within one business day from the date of such identification or notification: The contract number; the order number(s), if applicable; supplier name; brand; model number (original equipment manufacturer number, manufacturer part number, or wholesaler number); item description; and any readily available information about mitigation actions undertaken or recommended.

(ii) Within 10 business days of submitting the information in paragraph (d)(2)(i) of this clause: Any further available

information about mitigation actions undertaken or recommended. In addition, the Contractor shall describe the efforts it undertook to prevent use or submission of a covered defense telecommunications equipment or services, and any additional efforts that will be incorporated to prevent future use or submission of covered telecommunications equipment or services.

(e) Subcontracts. The Contractor shall insert the substance of this clause, including this paragraph (e), in all subcontracts and other contractual instruments, including subcontracts for the acquisition of commercial items.

(End of clause)

252.211-7002 AVAILABILITY FOR EXAMINATION OF SPECIFICATIONS, STANDARDS, PLANS, DRAWINGS, DATA ITEM DESCRIPTIONS, AND OTHER PERTINENT DOCUMENTS (DEC. 1991)

The specifications, standards, plans, drawings, data item descriptions, and other pertinent documents cited in this solicitation are not available for distribution but may be examined at the following location:

(Insert complete address)

(End of provision)

252.211-7005 SUBSTITUTIONS FOR MILITARY OR FEDERAL SPECIFICATIONS AND STANDARDS (NOV 2005)

(a) Definition. “SPI process,” as used in this clause, means a management or manufacturing process that has been accepted previously by the Department of Defense under the Single Process Initiative (SPI) for use in lieu of a specific military or Federal specification or standard at specific facilities. Under SPI, these processes are reviewed and accepted by a Management Council, which includes representatives of the Contractor, the Defense Contract Management Agency, the Defense Contract Audit Agency, and the military departments.

(b) Offerors are encouraged to propose SPI processes in lieu of military or Federal specifications and standards cited in the solicitation. A listing of SPI processes accepted at specific facilities is available via the Internet at http://guidebook.dcma.mil/20/guidebook_process.htm (paragraph 4.2).

(c) An offeror proposing to use an SPI process in lieu of military or Federal specifications or standards cited in the solicitation shall--

(1) Identify the specific military or Federal specification or standard for which the SPI process has been accepted;

(2) Identify each facility at which the offeror proposes to use the specific SPI process in lieu of military or Federal specifications or standards cited in the solicitation;

(3) Identify the contract line items, subline items, components, or elements affected by the SPI process; and

(4) If the proposed SPI process has been accepted at the facility at which it is proposed for use, but is not yet listed at the Internet site specified in paragraph (b) of this clause, submit documentation of Department of Defense acceptance of the SPI process.

(d) Absent a determination that an SPI process is not acceptable for this procurement, the Contract shall use the following SPI processes in lieu of military or Federal specifications or standards:

(Offeror insert information for each SPI process)

SPI Process:_____

Facility:_____

Military or Federal Specification or Standard:_____

Affected Contract Line Item Number, Subline Item Number, Component, or Element:_____

_____

(e) If a prospective offeror wishes to obtain, prior to the time specified for receipt of offers, verification that an SPI process is an acceptable replacement for military or Federal specifications or standards required by the solicitation, the prospective offeror--

(1) May submit the information required by paragraph (d) of this clause to the Contracting Officer prior to submission of an offer; but

(2) Must submit the information to the Contracting Officer at least 10 working days prior to the date specified for receipt of offers.

(End of clause)

252.215-7008 ONLY ONE OFFER (JUL 2019)

(a) Cost or pricing data requirements. After initial submission of offers, if the Contracting Officer notifies the Offeror that only one offer was received, the Offeror agrees to--

(1) Submit any additional cost or pricing data that is required in order to determine whether the price is fair and reasonable or to comply with the statutory requirement for certified cost or pricing data (10 U.S.C. 2306a and FAR 15.403-3); and

(2) Except as provided in paragraph (b) of this provision, if the acquisition exceeds the certified cost or pricing data threshold and an exception to the requirement for certified cost or pricing data at FAR 15.403-1(b)(2) through (5) does not apply, certify all cost or pricing data in accordance with paragraph (c) of DFARS provision 252.215-7010, Requirements for Certified Cost or Pricing Data and Data Other Than Certified Cost or Pricing Data, of this solicitation.

(b) Canadian Commercial Corporation. If the Offeror is the Canadian Commercial Corporation, certified cost or pricing data are not required. If the Contracting Officer notifies the Canadian Commercial Corporation that additional data other than certified cost or pricing data are required in accordance with DFARS 225.870-4(c), the Canadian Commercial Corporation shall obtain and provide the following:

(1) Profit rate or fee (as applicable).

(2) Analysis provided by Public Works and Government Services Canada to the Canadian Commercial Corporation to determine a fair and reasonable price (comparable to the analysis required at FAR 15.404-1).

(3) Data other than certified cost or pricing data necessary to permit a determination by the U.S. Contracting Officer that the proposed price is fair and reasonable [U.S. Contracting Officer to provide description of the data required in accordance with FAR 15.403-3(a)(1) with the notification].

(4) As specified in FAR 15.403-3(a)(4), an offeror who does not comply with a requirement to submit data that the U.S. Contracting Officer has deemed necessary to determine price reasonableness or cost realism is ineligible for award unless the head of the contracting activity determines that it is in the best interest of the Government to make the award to that offeror.

(c) Subcontracts. Unless the Offeror is the Canadian Commercial Corporation, the Offeror shall insert the substance of this provision, including this paragraph (c), in all subcontracts exceeding the simplified acquisition threshold defined in FAR part 2.

(End of provision)

252.219-7010 NOTIFICATION OF COMPETITION LIMITED TO ELIGIBLE 8(a) PARTICIPANTS--PARTNERSHIP AGREEMENT (OCT 2019)

(a) Offers are solicited only from small business concerns expressly certified by the Small Business Administration (SBA) for participation in SBA's 8(a) Program and which meet the following criteria at the time of submission of offer:

(1) The Offeror is in conformance with the 8(a) support limitation set forth in its approved business plan.

(2) The Offeror is in conformance with the Business Activity Targets set forth in its approved business plan or any remedial action directed by SBA.

(3) If the competition is to be limited to 8(a) concerns within one or more specific SBA regions or districts, then the offeror's approved business plan is on the file and serviced by **.

**** all eligible Participants, regardless of location, may submit a bid in response this competitive 8(a) solicitation**

(b) By submission of its offer, the Offeror represents that it meets all of the criteria set forth in paragraph (a) of this clause.

(c) Any award resulting from this solicitation will be made directly by the Contracting Officer to the successful 8(a) offeror selected through the evaluation criteria set forth in this solicitation.

(d)(1) Unless SBA has waived the requirements of paragraphs (d)(1)(i) through (iii) and (d)(2) of this clause in accordance with 13 CFR 121.1204, a small business concern that provides an end item it did not manufacture, process, or produce, shall--

(i) Provide an end item that a small business has manufactured, processed, or produced in the United States or its outlying areas; for kit assemblers, see paragraph (d)(2) of this clause instead;

(ii) Be primarily engaged in the retail or wholesale trade and normally sell the type of item being supplied; and

(iii) Take ownership or possession of the item(s) with its personnel, equipment, or facilities in a manner consistent with industry practice; for example, providing storage, transportation, or delivery.

(2) When the end item being acquired is a kit of supplies, at least 50 percent of the total cost of the components of the kit shall be manufactured, processed, or produced by small businesses in the United States or its outlying areas.

(3) The requirements of paragraphs (d)(1)(i) through (iii) and (d)(2) of this clause do not apply to construction or service contracts.

(e) The ____ [insert name of SBA's contractor] will notify the ____ [insert name of contracting agency] Contracting Officer in writing immediately upon entering an agreement (either oral or written) to transfer all or part of its stock or other ownership interest to any other party.

(End of clause)

PROJNET INQUIRIES FOR 52.214-6

**FAR 52.0000-4010 INQUIRIES**

Any prospective offeror desiring an explanation or interpretation of the solicitation, drawings, specifications, etc., must request it in writing soon enough to allow a reply to reach all prospective bidders/offerors before submission of their bids/offers. Oral explanations or instructions given before award of a contract are not binding. Any information given to a prospective offeror concerning a solicitation will be furnished promptly to all other prospective offerors as an amendment to the solicitation, if that information is necessary in submitting offers or if lack of it would be prejudicial to other prospective bidders/offerors.
**1.** All inquiries relating to this solicitation are to be submitted via Bidder Inquiry in ProjNet at www.projnet.org/projnet (Projnet will be available for inquiries starting **9-23-2020)**

**a)** To submit and review bid inquiry items, bidders will need to be a current registered user, or self-register into the ProjNet system.
To access the Bid Inquiry system, go to the ProjNet web page and fill in: Managing Agency - USACE
- Email address
- Key Access (this is the Bidder Inquiry Key - see below for key)
- Click on “Sign In”

- You will be prompted for the answer to your secret question on the next screen
- If this is your first time accessing ProjNet, you will be directed to a screen titled “User account not found. Please create one using the form below”. Fill in the requested information (name, company, city, phone #, etc) For additional guidance, see the attached 1-page pdf file for accessing the Bid Inquiry system.

**b)** From this page, you may view all bidder inquiries or add an inquiry. Please Note: Offerors shall only submit one question per inquiry. All inquiries containing multiple questions may be rejected.

**c)** Offerors will receive an acknowledgement of their question via email, followed by an answer to their question after it has been processed by the technical team.

**d)** The Solicitation Number is: **W912PL-20-B-0015** The Bidder Inquiry Key is: **PXIXCQ-58PPB7**

**2.** The Bidder Inquiry System will be unavailable for new inquiries 5 business days prior to bid/proposal submission in order to ensure adequate time allotted to form an appropriate response and amend the solicitation if necessary.

**3.** Offerors are requested to review the solicitation in its entirety, review the Bidder Inquiry System for answers to questions prior to submission of a new inquiry.

**4.** The ProjNet call center operates weekdays from 8AM to 5PM U.S. Central Time Zone (Chicago). The telephone number for the Call Center is 800-428-HELP.

**5.** Responses on the Bidder Inquiry System do not revise, change, amend or supersede the provisions of the solicitation. Changes to the solicitation must be by written amendment thereto. Any Bidder Inquiry System response that can be interpreted to be in conflict with the solicitation or amendment, shall be subordinate to the conflicting provision, term, and/or note, wherever it appears in the solicitation, until revised or altered by a written amendment to the solicitation.

Additionally, offerors may not anticipate a change to the solicitation until the change, revision, correction, or alteration of the solicitation is actually made, in writing and published as an amendment to the solicitation.

SUBMISSION OF BIDS

INSTRUCTIONS FOR SUBMITTING ELECTRONIC BIDS:

In an effort to reduce paperwork and cost, all bids shall be submitted electronically through the SAFEsite. Submission shall be in Adobe PDF format. You are limited to five (5) maximum files per upload (total size cannot exceed 8GB). If you have a large number of files, recommend that you combine your files before uploading to the SAFE site.

REQUEST FOR UPLOAD CODE: Bidders must email Contract Specialist Stanislav.Y.Sekacov@usace.army.mil and to Contracting Officer Patricia.B.Bonilla@usace.army.mil no later than five (5) working days prior to the bid due date to receive a request code which will allow for file uploads via the SAFE site. Bidders who fail to email for request a code five (5) working days before bid submission date may not be able to receive a request code in time to upload their submission.

FILE DESCRIPTION: Include a "File Description" for each file(s) you upload. The "File Description" will be included in the email notice to each of the recipients you choose to have access your file(s). NOTE: Do NOT enter Privacy Act Data (Personal Identification Information (PII)) in the File Description.) Submission shall be in Adobe PDF format.
(End of Statement)

SPECIAL INSTRUCTIONS PERTAINING TO SUBMISSION OF ELECTRONIC BIDS (APR 2020)

The Bidder's bid shall be submitted electronically, as described below. The IFB will provide the Government address and receipt date for bid submittal. The Bidder's bid shall not contain classified data. The use of hyperlinks in bids is prohibited.

NOTE: The only authorized transmission method for bids in response to this solicitation is electronically via SAFE online submission. NO OTHER TRANSMISSION METHODS (EMAIL, FACSIMILE, REGULAR MAIL, HAND CARRIED, ETC.) WILL BE ACCEPTED.
The Bidder's bid must be received by the Government by the date/time specified in the solicitation.

Bidders shall email their bid using the following link: https://safe.apps.mil/
Please send bids using the link above to Contract Specialist Stanislav.Y.Sekacov@usace.army.mil AND to Contracting Officer Patricia.B.Bonilla@usacearmy.mil.

INSTRUCTIONS TO FOLLOW ON THE SAFE WEBSITE:

1. Once at the SAFE website select the “Drop-off” icon. This allows users without a CAC or users whose computer is not configured to read a CAC the option to access the SAFE site as a guest. After selecting the “Click Here” link you will be prompted to add your personal information, file information, recipient (Government representative) information and email settings.

2. When completing your file information for transmittal via the SAFE website, you will be required to enter the email address for all recipients. For this solicitation, the recipients are the Contract Specialist and the Contracting Officer. The Contract Specialist for this solicitation is Stanislav.Y.Sekacov@usace.army.mil and the Contracting Officer is Patricia.B.Bonilla@usace.army.mil. The E-Mail address of the Government Employee who initiated the request code will be automatically entered. The Proposer must enter the E-Mail address for both the Contracting Officer and Specialist. The Proposer can enter an additional E-Mail address if desired.

After entering the email address, click the ADD button to add the person(s) email to the “Recipients List” of your response. When your proposal is submitted, a notification will be sent to the recipients you added.

NOTE: Do NOT send the SAFE site packages to group email accounts. Even if you successfully upload your bid to the SAFE site, notification will not be sent to the government recipients until you verify your email address. Entering an incorrect email may result in the rejection of your submission for lateness. A Proposer can confirm proper submission by the “Drop-Off Completed”scren which generates based on proper file submission.

NOTE: It has been reported that documents are more quickly uploaded into the SAFE website when using a Firefox web browser. The Government cannot verify that this is true and offers no guarantee that Bidders will have more success utilizing any particular browser.
(End of Statement)

RECEIPT OF SUBMISSIONS:

For the purposes of establishing whether a bid submission is considered timely, the government considers the date and time the submission is completely uploaded into the SAFE website. For bidslarger than the 8GB capacity of the SAFE website and require multiple submissions, the Governmentwill consider the date and time the last submission is completely uploaded into the SAFE website. Donot assume that electronic communication is instantaneous. It can take several minutes or even hoursin some cases.

The government will not be responsible for submissions delivered to any location or to anyone other than those designated to receive bids. Bidders are responsible for ensuring that bids are submitted so as to reach the designated recipient. Bidders are responsible for allowing sufficient time for the bid to be received in accordance with the instructions provided.
(End of statement)

VIRTUAL BID OPENING

VIRTUAL BID OPENING PROCEDURES AND INSTRUCTIONS FOR BIDDER’S PARTICIPATON

a. The electronic bids for this project are due on the date and time as specified on the SF 33, block 9.
b. In order to allow the bid opening officer sufficient time to download the bids after bids are due, the virtual bid opening will be held one hour after the time bids are due.
c. At the bid opening teleconference, bids and the Independent Government Estimate will be read aloud, just as in a traditional bid opening.
d. The Abstract of Bids will be posted to beta.SAM.gov as soon as practicable, typically within 24 hours of bid opening.

e. To participate in the Virtual Bid Opening, the following information is provided:

**Call-in toll-free number (ATT Audio Conference): 1-877.873.8018**
**Access Code: 533 383 1**
**Security code is 1111**